



I.R.E

FORM 3 NOTES



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Form three

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I.R.E. STUDENT BOOK 3

CHAPTER ONE

QUR'AN

Preservation of the Holy Qur'an



In the first chapter of book two, we discussed revelation, recording and compilation of the Holy Qur'an. Can you mention the stages of revelation? Can you also mention some of the reasons why the Qur'an was recorded? The process of recording the Quran from the time of the Prophet to the Swahabas time aimed at preserving it. In this chapter, we are going to discuss how the recorded and compiled Qur'an was preserved.

Can you define the term preservation? From your definition, you will learn that preservation literally, refers to the act of preventing, protecting, conserving or safe guarding something or a piece of information from interference. People preserve information for the sake of referring to it in future so that its authenticity is not lost.

Technically, preservation of the Qur'an refers to the process of employing measures to maintain or keep the originality and authenticity of the Qur'an as it was revealed. It also means to prevent the Qur'an from interference. Allah (SWT) Has promised to protect the Qur'an from any corruption.

Allah (SWT) says,

“We have, without doubt, send down the message; And We will assuredly (guard it from corruption.)”[Q 15:9]

إِنَّا نَحْنُ نَزَّلْنَا الذِّكْرَ وَإِنَّا لَهُ لَحَافِظُونَ ﴿٩﴾

It was very important for the Qur'an to be preserved through out the stages of its use. The process of preserving the Qur'an was done in three different periods. The prophet (hBUH) and his *Swahabas* (companions) took a major role in ensuring that the Qur'an maintained its originality. Likewise, the present Muslims have made use of the advancement in technology to ensure that the Quran is preserved and can be accessed by many people. Let us now look at each of the three phases of preservation of the Quran.

a) During the time of Prophet (PBUH)

In Form One, we discussed the reasons that led to the revelation of the Qur'an in portions. We identified that some of these reasons were to allow room for memorization of the Qur'an and make its understanding and application easier. Since the Holy Prophet (PBUH) was the only source of reference and the sole transmitter of the Holy Qur'an (as he used to receive revelation from Angel Jibril (AS)), it was feared that after his demise nothing would be left to offer guidance to humanity. Therefore the prophet (hBUH) had to devise ways to preserve the Holy Qur'an and ensure that it reached future generations including ours.



The following are the ways in which the hrophet (hBUH) ensured that the Qur'an was preserved:

- i. The Prophet used to instruct his scribes such as Zaid BinThabit, to write down the verses as they were revealed to him through Angel Jibril (AS). The scribes wrote them down on skins, wooden boards, bones and scrolls. This indeed was an assurance of the preservation of the Holy Qur'an.
- ii. The hrophet (hBUH) encouraged his companions to memorisethe verses of the HolyQur'an. In one of his Hadith narrated by Ismah bin Malik: thatthe Prophet(PBUH) said, *"If the Qur'an is enclosed by skin (i.e if a person memorises the entire Qur'an) then Allah (SWT) will never burn it in the fire of hell."* (Baihaqi)By this the Prophet was able to popularize the memorization of Qur'an.
- iii. The new converts were taught how to recite the HolyQur'ancorrectly by the companions of the Prophet (PBUH) who had memorised and mastered the correct recitation.
- iii.iv. After the battle of Badr, the Prophet (PBUH) asked the captives of war to teach the beleivers the art of writing in order to regain their freedom. Those who learnt how to write were then asked by the Prophet (hBUH) to write the verses of the Qur'an.
- iv.v. The Holy Qur'an was recited daily in swalat and being one of the compulsory requirements of any Swalat, it encouraged the preservation of the HolyBook. The Muslims had to learn and memorise several verses of the Qura'n which they recited in swalat.
- v.vi. The Prophet (PBUH) authorized a few companions who had weak memory to write down the verses of the Holy Qur'an thus encouraging its preservation.
- vi.vii. The Prophet encouraged the *Muhajirun* i.e. migrants from Makkah to Madina to teach Qur'an to the *Ansar*(helpers from Madina).
- vi.viii. Several women used to be taught the HolyQur'an by their husbands as part of their *Mahr*(dowry).
- viii.ix. The Prophet (PBUH) cautioned his companions against forgetting parts of the Qur'an and informed them about the punishment awaiting them in the hereafter. This encouraged his companions to repeatedlyrecite the Qur'anhence helping in its preservation.
- ix.x. The hrophet taughtand explained the verses of the HolyQur'an.
- x.xi. The Prophet (PBUH) listened to the oral recitation of the Qur'an by his companions to ensure its accuraterecitation and pronunciation. He would correct them when they read or recited wrongly by repeating the verses for them until they mastered.
- xi.xii. The entire Qur'an was recited during the Month of Ramadhan by the Prophet (PBUH) and his companions. This prophet's tradition encouraged the reciters to preserve the Holy Qur'an.

b) Preservation during the time of Caliph



The **ra**liphs had great love for the Qur'an and to ensure they preserved the Holy Scripture. They did the following:

- i. They applied the teachings of the Qur'an in their administration.
- ii. They used to recite the Qur'an frequently. For example, **ra**liph Uthman (RA) used to recite Qur'an daily and loudly outside his house. Even during the time of his assassination, he met his death while reading the Holy Qur'an.
- iii. The Qur'an continued to be recited in the daily *Swalat* (prayers) just like it had been practiced during the **h**rophet's time.
- iv. They preserved the Qur'an in writing. It was written on date palm leaves, stone tablets, skin parchments, and shoulder blades of sheep or camels. It was also engraved on pieces of wood. Most of the **Sw**ahabas had written down their own personal copies which they referred to.

c) Preservation during the present time

Can you mention some of the present ways in which information is preserved? Compare these ways to the ones during the ancient time. You will realize that the methods of storing information have advanced with time due to modern technology. Apart from the methods used by the **h**rophet and the **ra**liphs, preservation of the Qur'an has also been achieved using the modern ways. Some of the ways in which we preserve the glorious Qur'an today are as follows:

- i. Recording in audio or visual devices electronic devices. For example cassettes, mobile phones, DVDs, CDs, iPods, MP3 which are easily accessible.
- ii. Broadcasting the Qur'an recitation and translation in Radio Stations.
- iii. Islamic Television Stations that broadcast the Qur'an recitation
- iv. Organizing competition programs on Qur'an recitation.
- v. Constant recitation in daily prayers, as one of the pillars of prayer.
- vi. Recitation of the entire Qur'an by *Hafidhs* (those who have memorised the Qur'an) during Taraweh prayers in the month of Ramadhan encourages its preservation.
- vii. Translation of the Qur'an into various languages in order to understand its meaning. For example; Translation by Sheikh Abdullah Swaleh al Farsi.
- viii. In the print media, Qur'anic verses are written on wall hangings, stickers, calendars among others.
- ix. Copies of the Qur'an are available in print form in the Mosques, shops and homes.
- x. The Qur'an is usually recited at the beginning and close of Islamic functions.

1. Standardization of Qur'an

Standardization refers to the process of employing measures to create uniformity and similarity.

We learnt that during the reign of **ra**liph Uthman the Qur'an was recited in different dialects such as Kinaana, Quraish, Thaqeef, Hawazeen, Hudhyl and Tameem, which resulted in varied pronunciation. This was observed in Provinces such as; Makkah, Madina, Syria, Yemen, Bahrain, Basra and Kufa. Hence there was need for the Qur'an to be consistent. Hudheifa came to Uthman



(RA) at the time when the people of Syria and the people of Iraq were at war with Armenia and Azerbaijan. He was alarmed by the differences in the recitation by the people of Syria and Iraq, and he said to Uthman, “O leader of the believers! Save this nation before they dispute about the Qur’a’n as the Jews and the Christians did dispute about their books.” Uthman listened to the advice and took the noble task to ensure that the Qur’a’n is recited uniformly.

We shall therefore discuss some of the circumstances that led to the standardization of the Qur’a’n during the reign of Caliph Uthman (RA). These are as follows;

- a) The Qur’a’n was recited in seven dialects of the Arabic language. Each tribe wanted to popularize its own dialect thus posing unnecessary competition and at the same time creating confusion among the new converts. This also led to the misinterpretation of the Qur’a’n. It was therefore necessary to select a uniform dialect for the purpose of consistency and to unite all the Muslims.
- b) The expansion of the Muslim empire. Islam spread rapidly during the time of the Caliphs. The new converts needed a copy of the Qur’a’n to refer to. The only available copy was the one compiled during Caliph Abubakar’s time and kept in the custody of Hafswa. It was therefore necessary to standardize the Qur’a’n so as to make its application easier. Several copies were also produced in order to make the Qur’a’n accessible to many Muslims.
- c) The position of the Qur’a’n as the first source of Sharia for the Muslims. Standardization of the Qur’a’n was necessary in order to make it applicable to the entire Muslim Ummah.

Caliph Uthman (RA) played a very important role in the compilation of the Quran as follows:

- He sent for the standard copy of the Qur’a’n that had been compiled at the time of Abubakar (RA) and kept under the custody of Hafswa. Uthman said, “Send us the manuscript so that we may make copies and we will return the manuscript to you.”
- He appointed a committee led by Zaid bin Thabit to spearhead the process of standardization. He was assisted by Abdallah bin Zubeir, Abdul Rahman bin Harith and Sa’ad bin Al A’s. Uthman asked the committee to use the Quraish dialect in case they disagreed. The scribes unanimously agreed to use the Quraish dialect. This is because it was the dialect of the Prophet and rich in vocabulary. Besides, it was one of the most popular dialects among the Arabs. The scribes reproduced several copies of the Qur’a’n using the Quraish dialect and sent them to each of the Provinces. He then collected all other personal copies of the Qur’a’n and burnt them.

2. Diacriticalization of Qur’a’n



Your teacher for English must have taught you punctuation marks. Can you mention some of these marks? Can you explain some of their uses? In this subtopic we shall discuss how the vowels and articulatory sounds were inserted in the Holy Qur'an and the circumstances behind this exercise. This exercise is referred to as diacriticalization.

diacriticalization of the Qur'an is a method of inserting articulation symbols e.g the *harakat*(*fatah*, *dhumma* and *qasra*)*tanwin*(*fatahtein*,*kasrtein*,*dhummatein*) and other punctuation symbols in order to enhance correct pronunciation. This is also meant to create uniformity in the actual recitation of the Holy book. These marks were introduced into the Qur'anic script during the time of Caliph Abdul Malik bin Marwan (685-705 C.E.)

SOME OF THE ARABIC DIACRITICS

SYMBOL	NAME	IMPACT	EXAMPLE
◌َ	FAT-HA	/a/ vowel	Abun (father)
◌ِ	KASRA	/i/ vowel	Ismun (name)
◌ُ	DHUMMA	/u/ vowel	Ummun (mother)
◌ْ	FAT-HATEIN	Adding /n/ sound after <i>fat-ha</i>	Idhan (then)
◌ٍ	KASRATEIN	Adding /n/ sound after <i>kasra</i>	Liakhin (for brother)
◌ٌ	DHUMMATEIN	Adding /n/ sound after <i>dhumma</i>	Abun (father)
◌◌	SUKUN	Absence of a vowel in a consonant	Ismun (name)
◌◌◌	SHADDA	Double consonant for stressing a consonant	Rubba (may be)
آ	ALIF	Symbol of diphthong	Alaa! (surely!)
أ	MADDA	Symbol of triphthong	Yaaaa! (O You!)

The original Qur'anic text,

which was in Arabic language, did not have any signs indicating the vowels. Since Arabic was their first language, the Arabs did not need any vowel signs or diacritical marks for appropriate pronunciation of the Qur'an. But for the non-Arabs found it difficult to read the Qur'an correctly without the vowels. Due to the expansion of Muslim empire, differences arose especially to those non Arab and non - Quraish in reciting the Qur'an without vocalization. In order to solve the problem, Caliph Abdul Malik bin Marwan organized the diacriticalization of the Qur'an to ensure uniformity in the reading of the Qur'an across vast Muslim empire.

3. Qur'an as the book for guidance

In form One, we defined the term 'Qur'an.' Can you recall the definition of Qur'an? In the definition, we mentioned that the Qur'an is a book of guidance. Here, we shall discuss the reasons



which make the Muslims regard the Qur'an as a book for guidance. Some of the reasons are as follows:

- a) The Qur'an refers to itself in Surah tul Baqara as "*Hudan lil Muttaqeen*" which mean guidance for those who fear Allah (SWT) [Q 2:2]
- b) The content of the Qur'an is comprehensive in that it covers all forms of knowledge including scientific, social, political and economic.
- c) It gives a detailed explanation on the performance of acts of worship such as performance of Wudhu, Hajj, fasting etc
- d) The Qur'an provides in depth guidance on human relations that foster harmonious co-existence.
- e) It narrates the events and history of the past Prophets from which the Muslim Ummah draw lessons to better their lives.
- f) It warns mankind on Allah's punishment and at the same time encourages the performance of virtuous deeds.

Suratul Nur (The Light) [Q.24]

Historical Background of the Surah

This is the twenty fourth chapter of the Holy Qur'an. This Madinan Surah derives its name from the word 'Nur' found in the Surah in verses 31. Nur is an Arabic word which means light. In the context of this verse, the word Nur is used symbolically to refer to the guidance of Allah (SWT). These verses discussing 'the light' are a parable. They explain about the niche, the lamp and the olive oil. The guidance of Allah (SWT) enables humankind to enjoin the good and what is lawful and permissible. The opposite of light is darkness, which symbolises the unpermissible, unlawful and forbidden.

The Surah is connected to the incident of slander concerning Aisha (RA), the wife of the Holy Prophet (PBUH). This happened after the victory of the Muslims in the battle of Badr and Khandaq. The success of Muslim was attributed to their moral superiority. The enemies of Islam led by the hypocrites and the Jews started a campaign of defamation against the Muslims and the Prophet. One of the attempts was the slander against Aisha (RA) the wife of the Prophet (PBUH). They accused her of committing adultery with Safwan bin Muattal, the prophet's slave. This incident took place while the Muslims were returning from the Campaign against *Banu Mustaliq*. On their return journey, the Muslim caravan led by the Prophet (PBUH) stopped at a place and camped there for the night. Lady Aisha went out to ease her self and accidentally dropped her necklace. On the same night, the caravan began to prepare for departure. While on their way, Lady Aisha (RA) realized that



her necklace was missing and hurriedly returned at the halted place to look for it. Meanwhile the caravan left and she had to spend the night there hoping that the caravan would come back for her rescue. In the morning the prophet's slave, Safwan bin Muattal passed by and saw Lady Aisha. He hastily escorted her to meet the caravan. A man by the name Abdulla Ibn Ubay saw this as an opportunity to create a scandal. This almost brought chaos to the Muslims and the Prophet (PBUH) had to calm down the situation by giving a sermon. In order to clear the uncertainty among the Muslims and to protect the chastity of Aisha (RA) and maintain the respect of the Prophet (PBUH), Allah (SWT) revealed the verses of slander in this Surah which shall be discussed later in this chapter.

This Surah highlights a number of teachings as follows:-

- i. It prescribes the punishments for women and men guilty of *zinaa*. Those found guilty of the offence to be flogged 100 lashes each in public. The punishment to be witnessed by a party of believers and no pity upon them.
- ii. It stresses that a believer should not marry a fornicator or a polytheist.
- iii. The punishment for the slanders is explained .i.e. flogging 80 lashes.
- iv. It emphasizes the importance of seeking enough evidence for any offence committed before the award of punishment.
- v. It stresses the need to bring forth witnesses in any case concerning *zinaa*.
- vi. It explains the oath of condemnation (Li'an) i.e. for men who accused their wife of adultery and fail to bring witness except themselves should take four oaths and invoke a curse upon them in the fifth oath.
- vii. The Surah warns believers against spreading evil talks which may damage other people's character.
- viii. It discourages a Muslim from speaking things which one has no knowledge of. I.e. guarding the tongue.
- ix. The Surah also cautions those who love to hear and circulate scandals among the believers. Allah (SWT) assures such people of a great punishment in this world and in the hereafter.
- x. It explains the etiquette of entering people's households. Believers should seek for permission before entering people's habited houses.
- xi. It explains the etiquette of greeting the inhabitants of the houses you are permitted to enter.
- xii. It identifies occasion when servants and your children should not enter private rooms. These are:-
 - a) Before *Fajr Swalat* (morning prayer)
 - b) During midday
 - c) After Isha prayers
- xiii. Grown up children should seek permission before entering the private rooms of their parents.



- xiv. It emphasizes on modesty e.g. lowering one's gaze in order to control oneself from looking at the forbidden things.
- xv. It emphasizes on good moral values e.g abstaining from illegal sexual relations in order to attain purity.
- xvi. It prohibits the believing women from exposing their beauty except to the people mentioned in verse 31.
- xvii. It prescribes that believing women should lower their veils over their bosoms.
- ~~xvii~~ xviii. Believing women should not strike their feet while walking lest they draw attention to their hidden ornaments.
- ~~xviii~~ xix. It highlights the marrying of slave girls but should be honoured with their dowry. Slave woman should not be forced into prostitution by their masters and more so to free them accordingly.
- ~~xix~~ xx. It reminds those to whom Allah (SWT) has bestowed with wealth to help their kinsmen, those who ask for their help and those who have left their homes in Allah's cause.
- ~~xx~~ xxi. It guides Muslims to accord respect and honour to the houses which have been raised by Allah (SWT). These houses include the Kaaba and all the Mosques. Muslims should perform prayers and glorify Allah's name in these places.
- ~~xxi~~ xxii. It prescribes that Muslims should honour invitations without bias whether it is from the visually impaired, physically challenged or the sick or from other relatives.
- ~~xxii~~ xxiii. It teaches that traders should remember Allah (SWT), perform regular prayer, pay Zakat and fear the Day of Judgment.

Answer the following Questions in your I.R.E revision exercise book.

1. a) Explain the modes of preservation of the Qur'an.
b) Outline the circumstances that led to standardization of the Qur'an.
2. Identify some of the Islamic manners as mentioned in Surah al Nur.

ACTIVITY

In groups compare and contrast the present methods of preservation of the Qur'an to those used during the prophet's time.

CHAPTER TWO

HADITH

Types of hadith

In form two, we defined of the term Muhadith. Can you remember who we said a Muhadith is? We mentioned that a Muhadith is a pious Muslim who has memorised and narrated a large number of



Hadith. We also discussed the stages of the growth and development of Hadith. In this chapter we shall discuss more on Hadith. We shall start by discussing the types of Hadith.

[There are two types of hadith:](#)

a) Hadith Qudsi (Sacred Hadith)

The term “Qudsi” is an Arabic word which literally means, sacred, divine or holy. In the context of Hadith, Qudsi refers to the sacred or divine hadith. This Hadith is called ‘sacred’ or ‘divine’ because it is traced back to Allah (SWT). It is the Hadith which Allah (SWT) communicated directly to the Prophet (PBUH) through inspiration or in a dream, and the Prophet of Allah (PBUH) then communicated it to his people in his own words. It is the saying of the Prophet (PBUH) as revealed to him by Allah (SWT). Although it is a revelation from Allah, it should be understood that this communication is not part of the Qur’an. It is different from the Qur’an because Qur’an is superior. The Holy Qur’an is superior because it is Allah’s wording while in Hadith Qudsi the speech is the Messenger’s (PBUH). This type of Hadith can be easily identified since it opens with: *“From what his Lord Has inspired him with”* or *“Allah the Almighty says”*.

Examples of Hadith Qudsi

Abu Hurairah (RA) said that the Messenger of Allah said: Allah (SWT) said: *“I am so self-sufficient that I am in no need of having an associate. Thus he who does an action for someone else's sake as well as Mine will have that action renounced by Me to him whom he associated with Me.”*

Abu Hurairah (RA) said that the Prophet (PBUH) said that Allah (SWT) said: *“Spend (on charity), O son of Adam, and I shall spend on you.”* (Al-Bukhari and Muslim)

Abu Hurairah (RA) said that the Messenger of Allah (PBUH) said that Allah (SWT) said: *“The gates of Paradise will be opened on Mondays and on Thursdays, and every servant [of Allah] who associates nothing with Allah will be forgiven, except for the man who has a grudge against his brother.”* [About them] it will be said: *Delay these two until they are reconciled; delay these two until they are reconciled.* (Muslim and Abu Dawud)

Hadith Nabawi

‘Nabawi’ is a word derived from the Arabic term, *Nabii* (prophet) or *Nubuwa* (prophethood)

[Technically,](#) this is a Hadith which one of the Prophet’s *sahabas* (companion) reports what the

Prophet said, what he did or what he approved to be okay on things that happened in his presence.



Hadith Nabawi summarises the sayings, reports, recommendations or teachings of the Holy Prophet that evolved out of his own initiative or the way he responded to questions, the solutions he offered to the arising circumstances and his interpretation of the Holy Qur'an.

In this type of Hadith, the speech and the thoughts belong to the Messenger of Allah. The Hadith usually begins with the words: *“The Messenger of Allah said”* or *“I heard the Messenger of Allah saying”* or *“I saw the messenger of Allah doing”*

Difference between Hadith Qudsi and Hadith Nabawi

We have learnt from the definition of Hadith Qudsi and Hadith Nabawi that the two types of Hadith were both passed to the swahabas by the prophet. However, there are some features and distinct characteristics that differentiate between Hadith Qudsi and Hadith Nabawi. These are as follows:

Hadith Qudsi	Hadith Nabawi
A hadith communicated by Allah to the Prophet (SAW) through revelation and the Prophet communicates to his people in his own words.	Reports from the Swahabas about the hrophet's statements, deeds, or approvals
Meaning is from Allah but the words are from the prophet.	Both meaning and wording are from the Prophet.
Most of them make direct reference to Allah	The subject matter is addressed directly.
The teachings from Hadith Qudsi deal mostly with spiritual and ethical subjects.	Its teachings encompasses all aspects of life
They are few in number	They are numerous in number
They begin with the statement, “the hrophet (hBUH) says that Allah (SWT) says...”	They begin with the statement, “The hrophet (hBUH) said...” or “I heard the Mesenger of Allah say...” or “I saw the messenger of Allah doing...”



Diferrence between Hadith Qudsi and the HolyQur'an

The Holy Qur'an	Hadith Qudsi
Allah words that is, both its words and meaning are from Allah	Its words are from the Prophet (PBUH). The sayings of the Prophet through the medium of divine inspiration
It is <i>mu'jizah</i> (inimitable, miraculous and unique	A statement that the Messenger (PBUH) reports and he refers it directly to Allah (SWT)
It is recited in every prayer	Only used as reference or for guidance but should not be recited in prayers.
One is not allowed to touch the Qur'an when is in the state of impurity	One is not prohibited for touching the books of Hadith Qudsi.
Must be recited in every Salat for the Salat to be valid.	Hadith Qudsi cannot be recited in Salat
Was revealed through Angel Jibril to the Prophet (PBUH)	May have been inspired by other ways such as in the form of a dream.
All the surahs and ayahs were collected and compiled during the Caliphate of Abubakar	Was not compiled into a book form until generations after the death of the Prophet and the Sahabah

a) Test to determine the authenticity of Hadith

Islam has a methodology of determining the authenticity of hadith. There are several tests used to identify a genuine from mistaken or fabricated hadith. In Form Two, we studied the components of Hadith. We mentioned that there are two components of Hadith, namely; *Matn* and *Sanad*. In this chapter we are going to study in details the test to determine the authenticity of a Matn and Sanad.

i. Test for *Sanad*

The following criteria are used to test the authenticity of *Sanad* of a Hadith;

- The narrator must be a pious and practicing Muslim of sound Aqeeda.
- The Hadith must be traceable to the Prophet.
- The biographies of the narrators must be well documented.



- The narrators should be reliable, trustworthy and of excellent moral character.
- The reporters should have excellent and retentive memory.
- The narrator should narrate what he exactly heard from the Prophet or saw the prophet do.

ii. Test for *Matn*

The following criteria are used to test the authenticity of *Matn* of a Hadith;

- The Hadith should not go against the teachings of the Holy Qur'an or the commandments of Allah (SWT).
- The Hadith should not go against any established Sunnah or tradition of the Prophet (PBUH).
- The hadith should be consistent e.g it should not promise small rewards for big deeds.
- It should not go against the foundations of Islam like Tawheed or acts of devotion.
- It should not speak ill or defame any member of the prophet's family.
- The Hadith should not contain minute details or specific dates for future events.
- A Hadith that contradicts basic commonsense will not be accepted.
- The hadith must be quoted in Arabic language.
- The hadith should not directly benefit the narrator, an individual or clan.
- It should not contradict any other universally accepted Hadith.

b) Simple classification of Hadith.

You might have come across situations where items are sorted out to determine the genuine ones from those that are bogus. How do the sorters identify this? Definitely, they must have a method that enables them to perform such challenging work. Can you, for example, mention any way of identifying genuine currency note from fake one? One of the ways is by categorizing, grading, sorting or grouping items according to their qualities and characteristics. This is called classification.

The following are three of the simple classification of Hadith:

i) *Hadith Sahih*

The word Sahih is an Arabic term which means 'sound'. This class of Hadith is the most authentic and indisputable. They are faultless hadith, in which there is no weakness either in regard to the chain of transmission (*Isnad*) or in regard to the text (*Matn*), and in which there is no contradiction of any kind of any of the established beliefs of Islam. Sahih Hadith has the following characteristic:

- i) It was reported by a reliable and trustworthy narrator.
- ii) The narrator is of perfect integrity



- iii) The reporter is known to be truthful in his narrating.
- iv) It has a continuous chain of narrators.
- v) The narrator should understand what he narrates e.g one should know how a different expression can alter meaning.
- vi) The narrator has sound memory.
- vii) Reporter should be able to report the wording of Hadith accurately and not the meaning alone.

There are five classifications of Hadith Sahih, namely, Mutawatir, Mash'hur, Marfu', Muttafaq, Muttasil. Ask your teacher to elaborate more the meaning of these Hadith during your discussion lesson.

ii) *Hassan*

The term '*Hassan*' is an Arabic word which means 'good' or 'fair'. This class of Hadith is one where its source is well known and its reporters are clear only that they may have slight defects on *Sanad* i.e Some of its narrators might have weaker or defective memory as compared to the narrator of Sahih hadith. Its Isnad is free from any narrators who may have been accused of misconduct. Hassan hadith are reliable for legal decisions although they are inferior to the Sahih Hadith.

iii) *Dhaif*

Dhaif is an Arabic term which means 'weak'. A *dhaif* Hadith is one which its authenticity is disputed. Usually, the weakness is due to discontinuity in the isnad or some defects in the matn (text) or in the sanad (chain of transmitters). This category of Hadith is one that fails to reach the rank of '*Hassan*'. Such a Hadith has the following characteristics:

- i) It has a discontinuity in its chain of narration (isnad). The nature of discontinuity could be hanging, broken or hurriedly written.
- ii) One of the narrators has questionable character surrounding him. e.g he or she may have been involved in telling lies, making excessive mistakes or involved in innovation.

The following illustration shows a summary of the types of Hadith

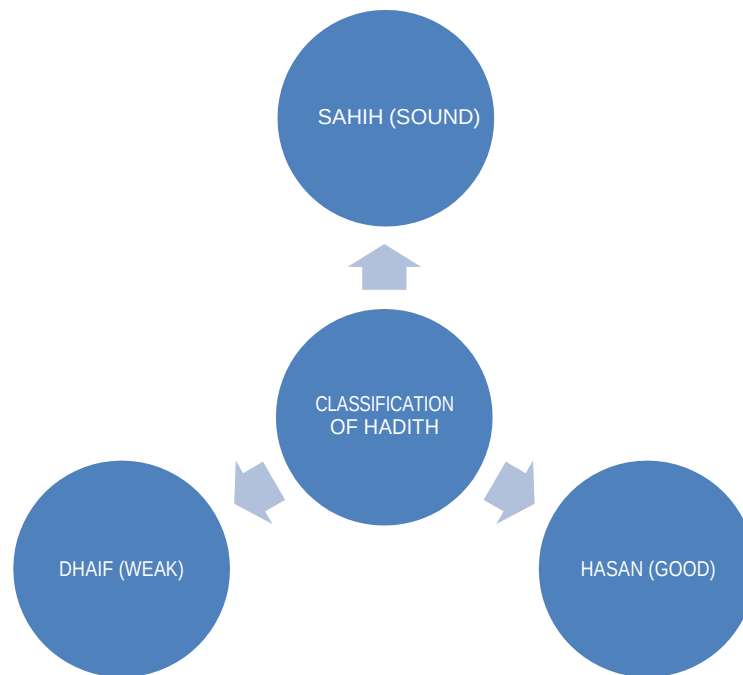


Figure 1: Diagrammatic representation of the simple classification of Hadith

Sunni and Shia collection of Hadith

Collections refer to the titles of Hadith books compiled by various scholars of Hadith among the Sunni and the Shia. Both the Shia and Sunni have their dependent and reliable scholars of Hadith who also compiled various collections of Hadith in book form. In this chapter, we shall discuss the Sunni and Shia collections of Hadith.

a) *Sahihul-Sitta* (the six sunni collection of Hadith)

The six Sunni collection of Hadith are referred to as *Sahihul Sitta* which translates to “The Authentic Six”. Sometimes the collection is referred to as *Al-Kutub Al-Sittah* (the six books). They are the collections by the Sunni Muslim scholars of Hadith. All these Hadiths are attributed to the Prophet (PBUH). The books are identified as follows:

- i) Sahih Bukhari
- ii) Sahih Muslim
- iii) Sunan Ibn Majah
- iv) Sunan Abu Daud
- v) Sunan Nasai
- vi) Jamii Tirmidhi.



Brief survey of the compilers of Sunni Hadith

These important Sunni books of Hadith were compiled by renowned Muslim scholars of Hadith. We shall now look at a brief biography of each of these compilers of the Sahihul-Sitta and the method he used in the compilation of his book.

i) Imam Bukhari

His full name is Abu Abdullah Muhammad ibn Ismail ibn Ibrahim Ibn Mughira Ibn Al Bardezbah al-Bukhari al-Jufi. He was born in 194 A.H. in the city of Bukhara. It is from the name of this city that he got the name Bukhari. His father, Ismail died when Bukhari was quite young.

He memorised the whole Quran while at the age six. He used to research the history and biography of the narrators in order to help him in memorise hadith. At the age of sixteen, he went for Hajj with his mother and father and thereafter stayed in Makkah and Madina. This became his first step in the seeking of knowledge away from his home environment. He then started writing his books such as Tarikh al-Kabeer, a Biography of the narrators of hadith. He visited Syria, Palestine, Egypt, Iraq and Turkey in search for knowledge. Among his books include; Al-Adab al-Mufrad, Al-Tarikh, Al-Tarikh al-Kabeer, Asami al-Sahaba, Al-Musnad al-Kabeer and Sahih Bukhari. During the compilation of his book Sahih Bukhari, he employed a certain methodology. We shall now look at the features of this book:

Features of Sahih Bukhari

- It includes only those Hadiths that are authentic.
- It contains about 7,275 Hadith.
- The book is divided into chapters dealing with specific topics.
- Most of the titles of the chapters are named according to Bukhari's opinion. For example the "Book of Salat contains a title on the obligation of takbeeratu al-ihram.
- The book refers to or quotes previously written Hadith that is related to another title or narrated by two different swahabas.

ii) Imam Muslim

His full name is Abul Hussein Muslim bin Hajjaj al Nishapur. He was an Arab of the Qushair clan. Imam Muslim was born in 202 A.H. in Nishapur. His family had a good religious background which greatly influenced his character. He developed high interest in the study of hadith while at the age of 14. He travelled to different places in search for knowledge and to collect Hadith. Among the places he travelled to include Arabia, Egypt, Iraq and Syria. He collected 300,000 hadith but he included only



4000 in his book which he considered as authentic. He was also a student of Imam Bukhari. Among the scholars whom he received instructions from include, Imam Bukhari, and Mohamed bin Yahya al Dhuli who greatly influenced him to study Hadith. He had many students such as Abu Issa Al Tirmidh, ibn Khuzaima, and Abu Amru al Mustamali among others. He wrote several books which include; Al musnadul kabir, Tabaqatu Tabiin, Kitab al Wijdan and his famous book Sahih Muslim among others. Sahih Muslim is considered as the second in authority to Sahih Muslim. He died in 261 A.H. at the age of 57.

iii) Imam Ibn Majah

Ibn Majah also known as Abu `Abdullah Muhammad ibn Yazid Ar-Rub`ai was born in Qazween, a famous city of Iran in 209 A.H. Not much is known about the days of his early life but he lived in the city of Qazween which was at that time a center of knowledge and civilization. The city had several jurists and scholars and full of scientific activities which influenced him greatly in search of knowledge.

Imam ibn Majah memorised the Holy Qur'an and sought knowledge of hadith from various Hadith scholars in Qazween. At the age of 22 he set out to various centres of learning in pursuit of knowledge and also to collect hadith from scholars. He travelled to Khurasan, Basra, Kufah, Baghdad, Damascus, Makkah, Madinah, and Egypt.

Some of the highly knowledgeable scholars who taught him include among others, Ibrahim ibn Al-Mundhir, Al-Halawani Abu Muhammad Hassan, Az-Zubair ibn Bitar, Ya`qoub ibn Hamid, Isma`il ibn Mousa, Harmalah ibn Yahya, and Zuhair ibn Harb.

After 15 years of his journey Imam ibn Majah returned to Qazween where he spent most of his time writing, classifying, and narrating hadiths. At that time, he became famous and knowledge seekers from far places travelled all the way to Qazween to learn from him.

He was an excellent, reliable and had reputable personality. He is reckoned as one of the greatest imams and scholars of Hadith.

He left for the Muslim Umma valuable books and compilations such as Tafseer (interpretation) of the Qur'an, *Al-Tarikh*, and a book on history that continued to exist for a long time after his death. His only surviving book is *Sunan ibn Majah* which is included among the authentic books of Sunnah. It is ranked together with the three well known books of Abu aawud, Tirmidhi and Nasa'i. Ibn Majah died on 22nd of Ramadan 273 A.H. at Qazween during the reign of the caliphate of Al-Mu`tamid billah.

iv) Imam Abu Daud



His full name is Abu aaud Suleiman bin Al Aash'ath. Hewas born in 202 A.H in Sijistan near Qandar(the present Afghanistan). He is one of the Muslim scholars who travelled widely in search of Hadith. He visited places like Damascus, Egypt, Basra, Syria, Nishapur, Arabia and Khurasan. Even though the Imam's main area of study was in *fiqh* (Islamic law) he had a lot of interest in Hadith. He began the learning of hadith while he was less than 20 years old. He collected many Hadith and compiled them in his book called *SunnanAbuDaud* which contained only the authentic Hadith. He earned a lot of respect and gained a wide reputation in his lifetime. Several other scholars praised him for his great ability, trustworthiness and accuracy. Apart from his great talent as a narrator, he was also a good lawyer. He died in 275 A.H.

v) Imam Nasai

Sunan an-Nasa'i is a collection of hadith containing about 5700 Hadith compiled by Imam Abu Abdur-Rahman Ahmad bin Shu'aib bin Bahr An-Nasai. He was born in 214 AH in the town of Nasa'i in the hersian province of Khorasan. He learnt hadith from his teachers in his own home town before travelling to Khorasan, Iraq, Hijaz, Syria and Egypt to collect and study more on Hadith. He studied from many teachers. Among them are; Muhaddith Qutaibah ibn Sa'id al Balkhi, Ishaq ibn Rahawaih, Muhammad ibn Nasr, Muhammad ibn Bishr and Imam Abu Dawud. He settled and established his center for teaching and studies in Egypt. He spent most of his days and nights in prayers and collection of Hadith. He was very particular of the Sunnah of the Prophet (PBUH). His students came from all over the Muslim world. They include Abul Qasim at-Tabrani, Ali ibn Jafar at-Tahawi, Muhammad ibn Mu'awiyah al Andalusi and Abu Jafar at-Tahani.

Imam an-Nasa'i travelled to aamascus, Syria in 302 A.H. where he noticed people displaying hostility towards Ali bin Abu Talib (RA). He therefore wrote a book known as "*Khasais Ali*" to honor the character of Ali (RA) and started giving lectures in the mosque. When the Umayyad rulers learnt about this, they asked him to also compile all Hadith that were in favor of Muawwiya. Al-Nasa'i rejected their request by saying that there were no Hadith or sayings of the Prophet in favor of Muawwiya. The Khawarij then beat Al-Nasa'i and left him with severe injuries. In this state he requested to be taken back to Makkah. The Imam passed away after reaching Makkah 303 A.H.

vi) Imam al Tirmidhi

Imam Tirmidhi was born in the year 209 A.H. during the reign of the Abbasid Khalifa Ma'mun al-Rashid. He grew up in a learning environment and dedicated his life to the study of Hadith. He obtained his basic Islamic knowledge at home and later travelled to far off lands in search for further knowledge. He studied Hadith under instruction of great Muslim Scholars such as Imam Bukhari, Imam Muslim and Imam Abu Dawud.

Imam Tirmidhi had an exceptionally remarkable memory and would not forget what he had read or heard. Imam Tirmidhi had a large number of students from all over the world. The most famous



amongst them were Haysam ibn Kulaib, Abul Abbaas and Muhammed ibn Ahmed Shah. Imam Tirmidhi died at the age of 70 in the year 279 A.H. in a village called Bawag.

Compilation of his book

Imam Tirmidhi combined the styles of Bukhari, Muslim, Abu Dawud and Nasa'i by mentioning the discrepancies regarding the narrators. The following are the special characteristics of *al-Jamii Tirmidhi*

1. Very few Hadith have been repeated i.e. about 8.
2. Imam Tirmidhi omits the major portion of the hadith and only mentions that part which is relevant to the title.
3. After mentioning a hadith he classifies its narration as authentic, good or weak.
4. He specifies the narrators names, e.g. if the narrator's nickname was mentioned, he would then mention his proper name and vice versa.
5. He explains the different madh'hab together with their proofs.
6. He gives an explanation to all difficult hadith.

b) Shia collection of Hadith

The shias have seven books of Hadith collected and compiled by Shia scholars of Hadith. However, there are four major books which they rely on for reference. These books are known as Al Kutub al Arba' (the four major collections). They include the following:

- i) Kitab Al Kafi (the compendium)—collected and compiled by Muhammad ibne' kub al Kulayni al Razi. It contains about 16,099 Hadith.
- ii) Man la Yahdhuru al-Faqih (for him not in the presence of jurisprudence) -collected and compiled by Muhammad ibn Babuya. This book contains 9,044 Hadith.
- iii) Tahdhib al Ahkam (rectification of the statutes) by Abu Jaafar Muhammad Ibn Hassan at Tusi It contains 13,590 Hadith.
- iv) Al Istibsar fi ma ukhtulif fihi minal akhbar (reflection upon the disputed traditions) by Abu Jaafar Muhammad Ibn Hassan at Tusi. The book is divided into four parts and contains 5,511 Hadith.

Three later books of Shia

1. Bihar ul Anwar – ("Oceans"of light) by Mulla Muhammad Baqir Majlisi
2. Al Wafi by Muhammad bin Murtaza
3. WasailuShia (details for Shia) by Muhammad bin Hassan Al Hurcontains 5,511 Hadith.

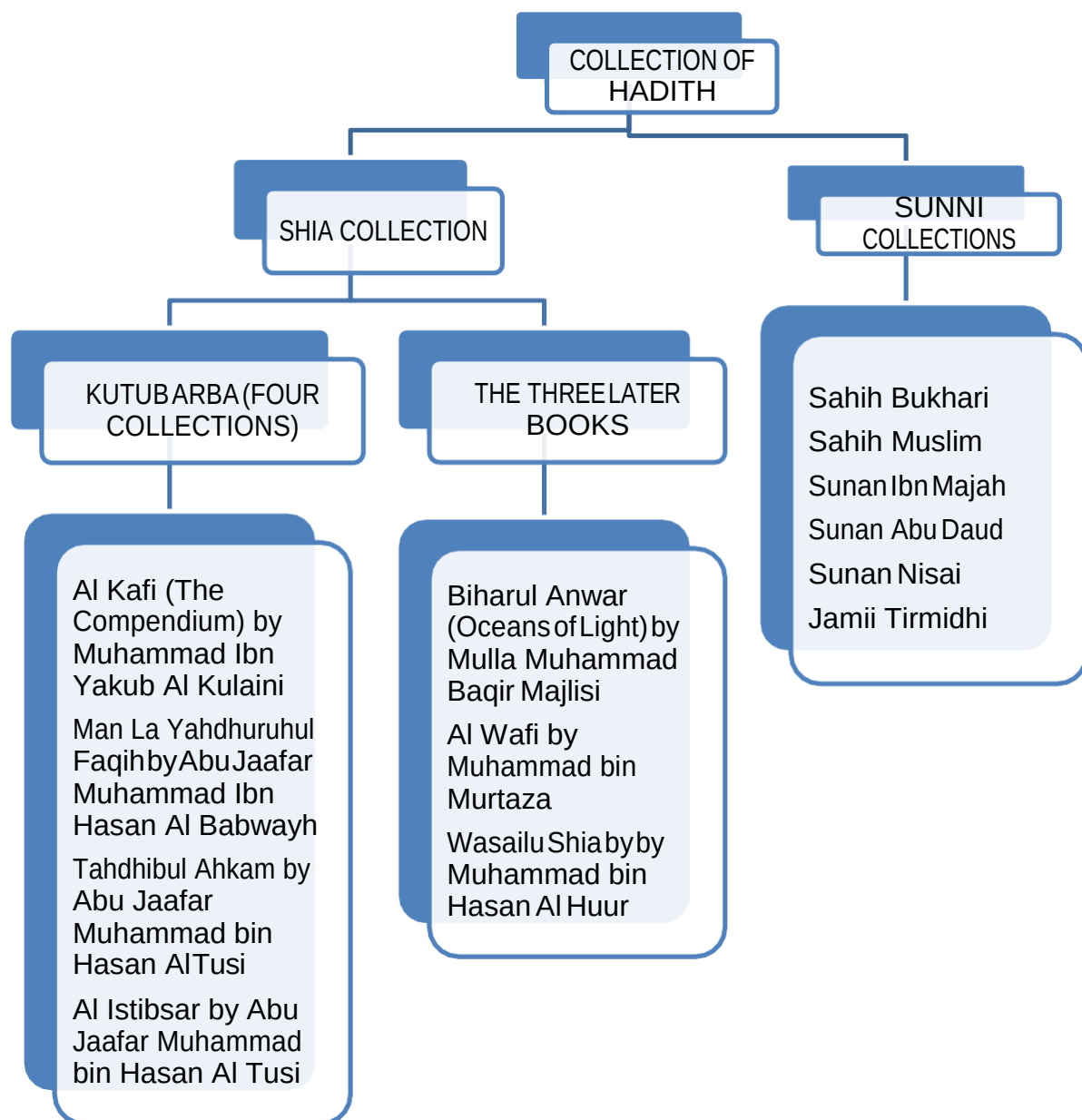


Figure 3: illustration of the Sunni and Shia collections of Hadith

Study of selected Hadith

a) *Talabulilm* (Seeking Knowledge)

Islam is a religion that lays great emphasis on seeking knowledge. This is evident in the revelation of the first verses of Surah al Alaq which Allah insists that it is obligatory for humankind to seek knowledge. Allah (SWT) says, “*Read in the name of Allah who created.*” [Q 96: 1]

The prophet (PBUH) taught his companions and the Muslim Ummah the need to seek knowledge because of the following among others:



- i) Knowledge enables believers to understand Allah (SWT) better.
- ii) It enlightens an individual thus promoting the performance of righteous deeds.
- iii) Allah (SWT) rewards those who have knowledge and use it well.
- iv) Acquisition of knowledge and skills enhances employment thus strengthening the economy of the society.
- v) Knowledge boosts an individual's confidence thus promoting self esteem.
- vi) Acquisition of religious knowledge helps a person perform the acts of Ibada correctly.
- vii) It instills in a person the sense of struggling in order to improve his status and acquire more knowledge hence promoting virtues such as endurance, humility, perserverance.

The following are examples of Hadith emphasizing seeking knowledge:

- i) Anas reported that the Messenger of Allah (hBUH), said: "The seeking of knowledge is obligatory upon every muslim man and woman." (At-Tirmidhy)
 - ii) Abu Huraira said: The messenger of Allah may Allah be pleased with him said: "The word of wisdom is the lost property of the believer, so wherever he finds it he has a right to it."
 - iii) Anasbin Malik (RA) relates that the messenger of Allah (hBUH) said: "He who goes out seeking knowledge will be in the path of aod till he comes back." ((At-Tirmidhy)
 - iv) Abu Huraira (RA) narrates that the hrophet (hBUH) said: "When a person dies,his action ceases except for the three things:an act of charity that continues,knowledge from which benefits can be drawn, or a virtuous who prays for him(he will be credited for these things)." (Muslim)
 - v) Abu Omama (RA) relates that the Messenger of Allah (hBUH) said : "A learned person is superior to a worshiper as I am superior to the commonest among you .Then,he added- Allah (SWT) and His angels,the inhabitants of heavens and earth,even an ant in its hole and fish send blessings to those who teach people virtue." (Al Tirmidhi).
- b) An Niyyah (Intention)
- Niyyah or intention refers to that element that gives importance to a person's action A Muslim should make An Niyaah (intention) before performing any good deed. Intention is the pillar of worship. The Niyyah should be pure, sincere and done for the sake of Allah (SWT). Good acts gain value and rewards from Allah (SWT) on account of the purely good intentions. Prophet Muhammad (PBUH) taught his companions the need for having intention in every action.The following are some of the Hadith of the Prophet (PBUH) on intention:
- Umar bin Khattab (R.A.) relates having heard the Messenger of Allah (PBUH) saying,



“Actions are judged by intentions, and every person shall have but what he intends. He whose hijra (migration) is intended to (please) Allah and His Messenger will have his migration (reckoned as being) to Allah and His Messenger and he whose migration is for (some worldly object) to obtain or for a woman to marry, his migration will be for what he migrated for. (Al Bukhari and Muslim)

- Jabir bin Abdullah (R.A.) relates,
“We were with the prophet (PBUH) in a campaign and he said to us, ‘In Madina there are people whom we left behind, but who are with you in every march you make and every valley you cross; they have been detained by sickness.’” (Muslim)
- Abu Musa Al Ash’ari (RA) relates that the Messenger of Allah (PBUH) was asked about a man fighting to display his courage, a man fighting out of vehemence, and a man fighting to show off; whom one of the three will be fighting in the way of Allah? The Messenger of Allah (PBUH) said, *“He who fights to bring Allah’s word above all others will be fighting in the way of Allah.” (Al Bukhari and Muslim)*
- Abu Bakra Al Thaqafi (R.A.) said that the prophet (PBUH) said,
“If two Muslims confront each other with their swords, both the killer and the killed will reside in hell.” I asked him, “This is understandable for the killer; but what about the killed?” He said, “He was full of the intention to kill the other one.” (Al Bukhari and Muslim)

c) Tawakkul (reliance on Allah (SWT))

Tawakkul means putting one’s trust in Allah (SWT). Any believer should put his trust in the hands of Allah (SWT) for care and protection. Allah (SWT) says:

“... and if anyone puts his trust in Allah, sufficient is (Allah), for Allah will surely accomplish his purpose.” [Q 61:3]

Although a Muslim is supposed to rely on Allah (SWT), *Tawakkul* should not make us to be irresponsible and lazy. One should make necessary preparations and efforts and play his/her role fully and then vest his trust in Allah (SWT).

Instances where believers require Tawakkul

The following are some of the instances when a Muslim shows Tawakkul;

1. *Tawakkul in our life.* There are several instances in this world where a believer is encountered with so many challenges. The challenges may include; death of a beloved one, loss of a job, sickness, failure in examinations among others. A believer is supposed to put his trust in Allah (SWT) during such times of agony. He should do this by seeking assistance and help from the Creator of the Universe and avoid any acts they may result in *Kufr* (disbelief). He or she should not resort to any acts of *shirk* (polytheism) to find solutions.
2. Ali (RA) narrated that, ‘I have seen the Messenger of Allah (hBUH) taking silk in his right hand and gold in his left hand and saying, “These two are prohibited for the males of my Umma (followers/community).” (Abu aawud with a good chain of reporters)
3. *Tawakkul on sustenance.*



A believer should not bow to humanbeings and belittle oneself to believe that these people can provide them with sustenance.

Allah (SWT) says, *“Who is God fearing, Allah shall appoint (for him) a way out for him. And Allah will provide for him (a quarter) whence he has no expectation.”* [Q 65:2-3]

In a Hadith of the Prophet (PBUH), Umar (RA) relates having heard the Messenger of Allah saying: *“If you put trust in Allah in the true sense, Allah shall grant you sustenance as He provides sustenance for the birds. They leave their nests in the morning hungry with empty stomachs and return at the end of the day with filled stomachs.”* (At-Tirmidhy)

Ali (RA) narrated that, ‘I have seen the Messenger of Allah (hBUH) taking silk in his right hand and gold in his left hand and saying, “These two are prohibited for the males of my Umma (followers/community).” (Abu aawud with a good chain of reporters)

3.4. Tawakkul as a sign of Iman (faith). One of the characteristics of a believer is to put trust in Allah (SWT) for whatever one does. It is only Allah who protects, provides and sustains all the creatures. Allah (SWT) says in the Holy Qur’an:

“So you put your trust in Allah, if you are indeed believers.” [Q5:23]

“When you have firmly resolved (on something), then put trust in Allah (for its completion), for Allah loves those who put their trust (in Him).” [Q 3:159]

“And trust you in the Living One who does not die and celebrate His praises.” [Q 25:58]

Answer the following questions and activity in your I.R.E revision books.

1. State the differences between Hadith Qudsi and Hadith Nabawi.
2. Explain the test used in determining the authenticity of Hadith:
 - a) Matn
 - b) Sanad
3. Identify the Sahihul Sitta and their compilers

Activity

In groups narrate stories related to the themes of the selected Hadith.

CHAPTER THREE

Pillars of Iman

Imamah



1. Different interpretation of the term Imam

a) Ordinary meaning of Imam

The term ‘Imamah’ is derived from the Arabic word *Imam* which means ‘a leader’. In Islam it refers to the person leading other Muslims in *Swalat*. One is considered an Imam or leader when he is knowledgeable in the Islamic law, has acceptable character and excellent moral standards. A Muslim leader should also be responsible and one who abides by the Islamic laws and teachings of the Sharia. Leaders must be able to make sound decisions that will be acceptable in the context of their jurisdiction. He has to be a role model to others. Apart from the leader in *swalat*, the term Imam is also used to refer to:

- (i) Nabii Ibrahim (AS) when Allah (SWT) promised him leadership for the entire Nations. Allah (SWT) says,
“...He (Allah) said: ‘I will make you an Imam to the nations.’ He (Ibrahim) pleaded: ‘And also (Imams) from my offspring!’ He (Allah) answered: ‘My promise is not within the reach of evil doers!’” [Q 2:124]
- (ii) Prophet Muhammad (PBUH) was also referred to as Imam. He as *Imam ul Anbiya wal Mursalin* (leader of Prophets and messengers) as referred to in the journey of *Isra wal Miraj* when he led all the prayers in *Swalat*.
- (iii) The person leading other Muslims during other acts of worship. For example the one who leads others in the burial rituals, during *aa’awa* activities among others.
- (iv) The scholars of Fiqh, who came up with the four schools of thought (*Madhahib*) i.e. Imam Malik, Imam Shafi, Imam Hambal and Imam Abu Hanifa.
- (v) Major compilers of Hadith among the Sunni like Imam Bukhari, Imam Muslim, Tirmidhi, Imam Abu Daud, Imam Ibn Majah and Imam Nasai.
- (vi) The Khalifa of the Muslims e.g. Khalifa Abubakar, Umar, Uthman and Ali.
- (vii) Muslim philosophers like Imam Ghazal, Ibn Rushd, and Ibn Sina among others.
- (viii) The spiritual leaders of the Shia such as Imams Zainul Abidin, Jafar us Sadiq, Musa Al Kadhim etc

b) Shia concept of an Imam

We earlier learnt in this chapter that an Imam literally means a leader. The Shias also hold the belief about Imamah. They have several beliefs about an Imam as follows:

- i) An Imam is appointed by Allah through divine inspiration to the previous Imam.
- ii) The leadership of the Muslims was passed over to the Imams after the death of the Prophet.
- iii) All Imams were from the *Ahl ul bait* (close family members) of the Prophet.
- iv) The first Imam according to the Shia was Ali bin Abu Twalib.
- v) Imams receive spiritual guidance from Allah (SWT).
- vi) They are conversant with the divine law.



vii) All the Imams are *Maasumin* i.e they are protected from sin by Allah.

2. The doctrine of Imamah

a) Appointment of the Imam

For any Imam (Muslim leader), there is a procedure of appointment. During the time of the prophet (PBUH) he himself would declare one as a leader using certain criteria such as, one who had memorised Quran and a large number of hadith, and had good qualities. Likewise, the selection or appointment of an Imam in the present age is based on one's knowledge of the Qur'an, Hadith and Fiqh, the degree of taqwa and age of the person.

b) Declaration of Ali bin Abi Talib at Ghadir Khum (the pond of Khum)

Ali bin Abi Talib was one of the closest companions of Prophet Muhammad (PBUH). According to the Shia, the Prophet openly declared who would succeed him as a Khalifa before his demise. This happened after Hijjatul Wida' (the farewell pilgrimage). The Holy prophet (PBUH) left Makkah on 12th Dhul Hijja 10 A.H. and his caravan reached Ghadir Khum (about 3 miles north-west of Makkah) on 18th Dhul Hijja. This was the place where people from various provinces would bid Good bye to each other and take different routes for their home. In this place, the following verse was revealed:

"O Apostle! Deliver what has been sent down to you from your Lord; and if you don't do it, you have not delivered His message (at all); and Allah will protect you from the people ..." [Q 5:67].

After the revelation of this Holy verse from Allah (SWT), the Prophet then delivered a memorable sermon in which he said:

"...O faithfulls, whomsoever I am his master (Mawla) and the authority on whom he obeys, Ali will be his master. O Allah! Be friendly towards the friends of Ali: help those who help him and hinder those who hinder him, and may the truth always be with him."

In a Hadith cited by the Shias Buraida narrates:

"I invaded Yemen with Ali and I saw coldness from his part; so when I came (back) to the Messenger of Allah and mentioned Ali and criticized him, I saw the face of the Messenger of Allah change and he said: 'O Buraida, am I not closer to the believers than they are to themselves?' I said: 'Yes, O Messenger of Allah.' He (then) said: 'Whosoever's Mawla (master) I am, this Ali is also his Mawla (master).'" (Musnad Ahmad [v5 #22995])

From the above Hadith, the Shias believe that the Prophet appointed Ali as the leader of the Muslims after his death.



c) Qualities of an Imam

We had mentioned earlier in this chapter that an Imam is a leader. And as a leader one is supposed to have qualities that make him stand out in the society. Therefore an Imam is required to have the following qualities:

- i) He should know and understand the Holy Qur'an and Hadith.
- ii) He should be able to recite the Qur'an correctly and nicely.
- iii) He should be a respected member of the community.
- iv) He should be acceptable to the believers.
- v) Is also required to be very knowledgeable in all aspects of Islamic Sharia because he must be able to give sermons regarding Islam.
- vi) He should be pious and morally upright.

d) Duties and significance of an Imam

An Imam performs the following functions in the Muslim society.

- i) An Imam leads Muslims during prayers.
- ii) The Imam may also serve as a member of the larger leadership team in a Muslim community.
- iii) The Imam may be involved in community and social services like visiting the sick, raising funds for the needy members of the community.
- iv) As a respected member of the community, the Imam may be consulted for personal or religious issues.
- v) The Imam is involved in ensuring peace, harmony and social cohesion in the society e.g. engaging in inter-faith service programs.
- vi) He gives spiritual advice and is consulted in family issues, or in other times of need.
- vii) Officiating Muslim marriages and organizing educational gatherings in the mosque.
- viii) The Imam is a teacher for he teaches others about the Muslim religion, through lectures and Friday sermons.
- ix) The Imam also conducts Islamic religious ceremonies.
- x) The Imam is the leader of a mosque.

Answer the following Questions and activity in your I.R.E revision exercise book

1. a) Give the ordinary meaning of the term 'Imam'.
b) Outline the different interpretations of the term Imam.
2. a) Discuss the Shia concept of Imamah
b) Mention the qualities of an Imam.

Activity

In groups elaborate the duties and significance of an Imam

CHAPTER FOUR

DEVOTIONAL ACTS

Meaning of Sharia



Sharia is a word derived from the Arabic term '*Shara'*' which literally means "the straight path or road leading to a watering place." The word has been referred to in the Qur'an as *Shir'ah* (law, rules of practical conduct). [Q 5:48]

Technically, it is the Islamic code of law ordained by Allah for his servants as derived from the Holy Qur'an and *Sunnah* (hadith) of Prophet Mohammad (PBUH.) The law is composed of a divinely ordained path of conduct showing Allah's commands to guide the Muslim society.

The major purpose of Islamic Sharia is to guide man's search for truth. Therefore, shari'ah touches on all aspects of every person's spiritual or moral relations with other humans and with the rest of Creation. In these dealings, there are six broad areas expounded on by the Sharia. These are:

- Matters of faith (*Iman*)
- Acts of worship (*Ibadah*)
- Family relations (*Muammalat*)
- Business transactions (*Tijara*)
- The concept of crimes and punishments (*Uqubat*)
- International laws.

Meaning of Fiqh

The word *fiqh* is an Arabic term meaning "a deep understanding" or "full comprehension" of what is intended. An example of this is found in the supplication of Prophet Musa (AS) when he asked Allah (SWT) to remove impediment from his speech so that Firaun and his people could understand him. Prophet Musa (AS) said to Allah (SWT), "*And remove the impediment from my tongue so that they may understand my speech (yafqahu-qawly).*" [Q 20: 27-28]

The Prophet (PBUH) said, "*Whomever Allah wants good for, He will grant him Fiqh (deep understanding) of the religion.*" (Bukhari)

Technically the word Fiqh is used to signify deep understanding of matters related to Islam. It is the knowledge and the understanding of Sharia.

Fiqh refers to the study of Islamic sources of Sharia (i.e. Qur'an, Hadith, Ijma and Qiyas) in order to understand them. It is an expansion of the code of conduct (Sharia) dealing with the observance of acts of worship, morals and social legislation in Islam using the rulings and interpretations of Muslim Jurists. These jurists are known as *Fuqah* (singular, *faqih*). Let us now look at the differences between Sharia and Fiqh.



Differences between Sharia and Fiqh

Sharia	Fiqh
Body of revealed laws found in both Qura'n and Sunnah.	Body of laws deduced from sharia to cover specific situations not directly mentioned in the Sharia.
It is God given and its main aim is to lead on to a meaningful life.	Refers to the effort employed to the understanding of the sources of Sharia.
Most parts are general	They tend to be specific
They lay down basic principles in Islam	They give details in the understanding and application of the Sharia.
They are fixed, unchangeable and eternal.	Certain components are fixed while others are subject to change according the situation.
Embrace all human beliefs activities and actions.	Deals with legal rulings and acts.

Sources of Islamic Sharia

We have earlier learnt that *Sharia* is a path leading to a watering point. The purpose of Sharia is to guide man to the straight path so that he can attain peace of mind and co-exist harmoniously with the other creations. This guidance is derived from the Allah (SWT) and through the guidance of the Prophet (PBUH). There are four sources of Islamic Sharia but are categorized into two: The Primary sources and

Primary sources of Sharia

Anything that is referred to as 'primary' usually forms the basis, foundation or pillar upon which others depend on. The structure of Islamic law is based on foundations known as 'the roots of law.' They form the primary sources of Sharia. These are the main pillars guiding the Muslims on all



aspects of life. These sources include: Qura'n and Hadith. We are to discuss each of these sources in details.

a) Qur'an

In Book 1, we studied the reasons why the Qur'an was revealed. Can you remember these reasons? Among them is to offer guidance to the humankind. Allah (SWT) says: *"This (Qur'an) is a plain statement for mankind, a guidance and instruction to those who are Al Muttaqun (the pious)."* [Q 3:138] Revelation of the Qur'an came at a time when the society was practicing many social evils like worshipping idols, performing shirk, gambling, taking intoxicants among others. The Qura'n is the fundamental and main source of Sharia from which all other sources derive authority. Prophet Mohammad (hBUH), to whom the Qur'an was revealed, had the duty of teaching the society good morals and ridding it off the evils. Allah (SWT) therefore sent Angel Jibril (AS) with the Qur'an to the Prophet as the first source of Islamic Sharia. Allah (SWT) says,

"Say (O Muhammad) Ruhul Qudus (Angel Jibril) has brought it (the Qur'an) down from your Lord with truth, that it may make firm and strengthen (the faith of) those who believe, and as a guidance and glad tidings to those who have submitted (to Allah as Muslims)." [Q 16:102]

The above verse points out that indeed Angel Jibril (AS) was in charge of revelation which was given by Allah (SWT). The Qur'an was revealed within duration of 23 years divided into Makkan and Madinan period. We shall study more about these periods in Book 4. Throughout these revelation, the verses were necessitated by the certain events or questions asked to the Prophet which he had to respond to. We shall therefore find most of the legislations discussed in the Qur'an responding to questions or events that took place either during the life time of the prophet or concerning the previous nations. Let us consider the following examples:

- When the Makkans asked the Prophet about wine and gambling, Allah revealed the following verse: *"They ask you about wine and gambling say, 'there is great evil in them as well as benefit to man. But the evil is greater than the benefit.'"* [Q 2:219]
- The Makkans at one time asked the Prophet about the day of Qiyama. Allah revealed the following verse: *"They ask you about the Hour: 'When will be its appointed time?' Say: 'The knowledge thereof is with my Lord (Alone). None can reveal its time but He. Heavy is its burden through the heaven and the earth. It shall not come upon you except all of sudden.' They ask you as if you have a good knowledge of it, say: 'The knowledge thereof is with Allah (Alone) but most of mankind know not.'"* [Q 7:187]



- Allah (SWT) teaches the Prophet previous events in the Qur'an by use of stories. Almighty Allah (SWT) says: *"We relate to you (Muhammad) the best of stories through our revelations to you, of this Qur'an. And before it (.ie. the coming of Divine revelation to you), you were among those who knew nothing about it (Qur'an). [Q 12:3]* The stories mentioned here are narrated to the Prophet so that he can learn about the previous nations so that he could offer guidance to the people. We are going to learn more about the use of narratives in the Qur'an when we study the language and style of the Qur'an in Book 1.
- Allah says: *"And this is a Book which We have revealed as a blessing: So follow and be righteous, that you may receive mercy."* [Q6:155]

From the above examples, we discover that the Qur'an as a source of law outlines legislations on various issues at length. It makes it in a simple way so that they can be understood. We shall discuss them in two main categories:

1. Laws dealing with Allah and human beings.

- The relationship between Allah (SWT) and His creations is based on belief and worship. Allah (SWT) say: Muslims should establish a strong relationship by believing in the pillars of Iman. They include; believing in Allah (SWT), the Angels, His Books, His Messengers in the Day of Judgment and in Qadar.
- Muslims should also perform the acts of Ibadah as prescribed in the Qur'an. They include performing Swalat, giving Zakat, observing Saum and going for Hajj.
- Verses of the Qur'an outline complete details on punishments to be awarded for crimes committed. For example, punishments for murder, theft, adultery among others.

2. Laws dealing with human relations.

In this case, the Qur'an has well established legislations on how man should govern himself and his affairs. It outlines the following:

- The family law on marriage, divorce and roles of the family members.
- It has a well established system of inheritance with each heir having specific shares allocated.
- Trade and business laws are clearly stated.
- It directs man on how to relate with the international community and avoid conflicts.
- The moral expectations of a Muslim are laid out proportionately with punishments on social evils like theft, adultery, taking of intoxicants among others.



Let us now identify as to why the Qur'an is considered as a major source of Sharia.

- It is the external miracle of Allah that cannot be imitated.
- It outlines legislations dealing with man, his creator and other creations.
- It addresses all humankind without distinction of race, region or time.
- Its rules are simple and easy to follow as they were gradually revealed.
- It seeks to guide humankind in all aspects of life.
- It gives guidance on the modes of worship.
- It gives solutions to the daily challenges of man and guides him to the right path.
- It gives the criterion to distinguish between good and evil.
- It gives knowledge of the unseen world like the description of hell and paradise.
- It contains rules dealing with all aspects of life i.e. social, economic, political and moral.

Hadith

In Form 2, we mentioned that Hadith are the sayings, actions, approvals and qualities of the Prophet. Allah (SWT) says, *“He who obeys the apostle assuredly obeys Allah.”* [Q 4:56] He further says, *“Whatever the messenger gives you, take it and whatever he forbids you, leave it.”* [Q 57:9]

These two verses are emphasizing on the importance of following the teachings of the Prophet. Can you recall what the prophet (ﷺ) said about the Qur'an and Hadith during his farewell address? He stressed to the believers thus, *“... verily I have left among you the book of Allah (SWT) and the Sunnah of His apostle which if you hold fast you shall never go astray...”*.

A believer observes that Hadith is the second most important source of Sharia after the Holy Qur'an. Hadith offers the best explanation to the verses of the Qur'an. Allah (SWT) tells the prophet in the Qur'an, *“And We have sent down unto you also the message, that you may explain clearly to men what is sent for them, and that they may give thought.”* [Q 16:44] The Prophet therefore gave his sahabas the practical teachings of the Qur'an through his exemplary life and character. Even today Muslims still learn this exemplary character through the hadith that were collected and compiled by the Muslim scholars.

Hadith as a source of Sharia

- 1) Hadith explains verses of the Qur'an.



- a) The Qur'an states that the every Muslim should establish prayer but it does not explain the details. Allah (SWT) says: *"And establish regular prayers at the two ends of the day and at the approaches of the night."* [Q 11:114]

Hadith of the Prophet clarifies on the number of rak'as in each Salat, their times, conditions, and the Sunnah prayers. Let us consider the following examples;

Abdullah bin Amr (RA) narrates that the Prophet said, *"The time of noon prayer is when the sun passes the meridian and the shadow of the man (is of the same length) as his height and it (last) as long as the time of the afternoon prayer has not come: The time of the evening prayer is as long as the twilight does not disappear and the time of the night prayer is upto the middle of the night. The time of the morning prayer is from the appearance of the dawn as long as the sun has not risen, but when the sun has risen, refrain from prayer, for it rises between the horns of the devil."* (Muslim)

- b) The Quran ordains believers to pay Zakat but the details on the time for paying it, items payable for zakat among others are explained by the Prophet in his Hadith.

Abu Huraira (RA) narrated that the Messenger of Allah (PBUH) said, *"No zakat is to be paid on one's horse (that he rides) or one's slave."* (Bukhari)

In another narration, Ali (RA) says that the Messenger of Allah (pbuh) says, *"When you possess two Dirhams at the end of the year (if you still have all of them), five Dirhams are levied on them as zakat. There is nothing upon you (to be paid) in gold until it reaches (the value of) twenty Dinars. When you possess twenty Dinars, at the end of the year, then there is half a Dinar levied on it as zakat. Any additional amount will be calculated in the same manner. No zakat is to be paid on monetary holdings, until they have been owned for one year."* (Abu A'ud)

- 2) Hadith also explains and gives guidelines on economic, business transactions and commercial ethics.

Rifa'ah bin Rafi' (RA) narrated that the prophet (hBUH) was asked, *"Which type of earning is the best? He said, "A man's earning through working with his own hands, and every business transaction which is approved."* (Al-Bazzar)



- 3) Hadith guides Muslims on moral traits, virtues which regulate people's lives. Below are some examples in Hadith:

Anas bin Malik (RA) relates that: *The Prophet (PBUH) used to repeat his words three times to make sure that they are understood; and when he met people and greeted them, he used to repeat his greetings three times.* ” (Bukhari)

Abu Qadata (RA) relates that the Prophet (PBUH) said, *“The one who serves drinks to people should be the last to drink.”* (Al-Tirmidhi)

Aisha (RA) relates, *“I never saw the messenger of God (PBUH) laughing in a way that the inside of his mouth is apparent; he only used to smile.”* (Bukhari and Muslim)

Secondary sources of Sharia

Apart from the two main sources of Sharia, we have others which supplement the rules of the Qur'an and Hadith. These are referred to as secondary sources of Sharia. They include *Ijma* (the consensus of the companions of the Prophet) and *Qiyas* (general consensus of the scholars). Let us discuss in details each of these sources.

Ijma

Ijma is a verbal word from the Arabic term *Ajma'*, which means to determine or to agree upon something. Literally, Ijma means assembling, coming together or collecting. The process of Ijma therefore involves bringing together different materials or information.

Technically, Ijma refers to the unanimous agreement or consensus of opinion of various Muslim jurists who are referred to as Mujtahidin on an issue concerning the Sharia in the light of the Qur'an and Hadith. Ijma is the third source of Islamic Sharia. Allah (SWT) directs the Muslims in the Qur'an to obey Him, His prophet and those in authority. Allah (SWT) says, *“O you who believe! Obey Allah and obey the messenger and those charged with authority among you...”* [Q 4:59] In another verse, Allah (SWT) says, *“When there comes to them some matter touching (public) safety or fear, they divulge it. If they had only referred it to*



the messenger or to those charged with authority among them, the proper investigation would have tested it from them (directly)... ” [Q 4:83]

Muslims should therefore refer to the Qur'an and the Hadith when looking for solutions on 3472: 9]. This verse mentions only business but can be applied to any other activities that people may be involved in and will divert the attention for prayers. They may include; meetings, work, recreational activities among others.

- An heir who kills the bequeathed or a person he or she should inherit from is prohibited from inheritance. This is following the prophet's hadith reported by Abu Huraira (RA), "A murderer doesn't inherit." Likewise, a bequeathed who kills the person who wrote a will in his favour shall not inherit.
- If a guardian burns the orphan's property, he shall be regarded as one who has squandered the wealth himself. This is based on the verses of the Qur'an when Allah (SWT) says, "*Lo! Those who devour the wealth of orphans wrongfully, they do not but swallow fire into their bellies, and they will be exposed to burning flame.*" [Q 4:10]

General rules for valid application of Qiyas

- The rules should not be found in the Qur'an, Hadith or issue agreed upon by Ijma.
- The person engaged in Qiyas should be Mujtahiduns.
- The Qiyas must be reasoned out well and conform to the teachings of Islam.
- It must be applicable to the relevant situation.

Ijtihad

The term Ijtihad is rooted from Arabic word *Ijtahada*, *Juhd* which means to strive, to endeavour, to struggle or to employ effort in performing certain activities.

Technically, the term Ijtihad refers to the process of making legal decisions through independent interpretations of the legal sources of Sharia i.e. Quran and Hadith. The person who carries out the process of Ijtihad is referred to as a *Mujtahid* who should have the following qualities:

1. Mastery of the Arabic language. This is meant to minimize the possibility of misinterpreting the revelation.
2. Mastery of the *Ulumul Hadith* (Science of Hadith.)
3. Good mastery of the Quran and Sunnah.
4. Should be logical and have sound reasoning.
5. Should have vast knowledge on the views of the *Swahabas* (prophets' companions)
6. Should have knowledge of Qiyas, its types and conditions for its application.
7. Knowledge of one's own society and of public interest.
8. He should understand the fundamental principles of fiqh.



9. Know the general objectives of Sharia.
10. He should be of good moral character.

FIQH

- a) **Historical development of fiqh (Islamic Jurisprudence)**
 - i) **During the time of the Prophet (610-632 C.E)**

This period begins from the time when Prophet Muhammad (PBUH) started receiving *wahyi* (revelation) upto the time when he passes away, a period of 23 years. At the beginning of Prophethood, Allah (SWT) revealed to His noble Prophet verses emphasizing on *Tawheed* (Oneness of Allah). These verses condemned evils like shirk among other vices. However, after *Hijra* (migration) the first Muslim community was established in Madina under the headship of the Prophet (PBUH) in 622 C.E. At this period Allah revealed more verses but had a lot of emphasis on rules and regulations in order to govern the Muslims. The Muslim community was under the leadership of Prophet Muhammad (PBUH) who was also their supreme judge. The Prophet (SWT) started teaching his companions the basic principles of the Islamic conduct as laid down in the Holy Qur'an. He also helped resolve all legal problems that arose in his community. During this time the Qur'an was the main source of Islamic Sharia and the Prophet used to interpret and explain the verses of the Holy Qur'an. The Prophet's *swahaba* (companions) made sure that they learned the Holy Qur'an and the Prophet's Hadith by heart and applied their teachings in their day-to-day life. The Prophet had a number of scribes who wrote down the verses of the Holy Qur'an for the purpose of preservation. They would consult the Prophet in case of doubt or to seek clarification.

- ii) **During the era of the righteous caliphate (632-661 C.E.)**

This is during the time of the four rightly guided caliphs (Sayyidna Abubakar, Umar, Uthman and Ali) and the major companions of the Prophet. The Prophet encouraged his companions to memorise the whole Qur'an. By the time he died, the whole Qur'an had been revealed and most of his *swahaba* had memorized it.

After the death of the prophet, his companions continued to use the Qur'an and Hadith as the main sources of reference. It was during the period of caliphate Sayyidna Abubakar that the Qur'an was compiled into one volume. Then Caliph Uthman standardized the Qur'an by using the Quraish dialect. He did this in order to bring uniformity in its recitation. Then the companions collected the Prophet's Hadith and preserved them in writing.

Islam continued to expand far and wide and received many converts. Most of the converts brought into new cultures and patterns of behavior which had never been experienced before in Islam. This became a big challenge to the caliphs since the new problems could not fetch solutions directly from the Holy Qur'an and the Prophet's traditions. In order to solve them the righteous caliphs depended



on on decisions by *Ijma* (consensus) as well as *Ijtihad*. The Caliphs extensive use of *Ijma* and *Ijtihad* in tackling the new challenges made them establishe procedures which later became the foundation for Islamic legislation. This later resulted to the well established madhabs, namely; Shafi, Hanafi, Hanbal and Maliki schools of thought.

i) Era of Abassid

This was a period that came immediately after the decline of the Umayyad Dynasty. It covers the rise of the Abassid extending from 750-950 C.E. During this period Fiqh took place as an independent Islamic science. All the Muslim Caliphs gave significant support to the scientific, philosophical and theological scholarly work which had great influence to Islamic thought. It was also during this period that various compilations of Hadith and Fiqh were made. The various schools of thought (madhabs) gained popularity and students of Fiqh (Islamic jurisprudence) learnt from their specific imams.

b) Brief survey of the life of the five Imams of Fiqh

We learnt earlier in this chapter that *Ijtihad* is a valid source of Islamic Sharia applied by Muslim jurists to explain areas where the Quran and Hadith are explicit. The right of proper reasoning and *ijtihad*, or the exercise of judgement can only be left in the hands of proper Muslim scholars who are well versed with the Holy Quran and the hadith.

There were many Muslim jurists who practiced *Ijtihad* but those theologians highly recognized with the knowledge of Fiqh were four i.e. Abu Hanifa, Maliki, Shafii and Hanbal. These four Jurists came up with the prominent schools of Islamic thought refererd to as Madhabs. All these four schools of thought had their reference to the Holy Qur'an and Hadith. These schools are in good



agreement on all fundamental aspects of Islam. We are all aware that the schools of thought did not exist during the time of the Prophet but were prompted by the following reasons:

- i) The need to have a Muslim scholar to rely on in matters of the Sharia. Some Muslims opted to rely on the *Ahlul Hadith* (the people of Hadith) while others preferred *Ahlul Ra'ay* (people of opinion.)
- ii) The need to resolve the difference that arose in the interpretation and understanding of some of the verses of the Holy Qur'an.
- iii) The need to remove the differences in the interpretation and understanding of the Hadith and Sunnah of the Prophet (PBUH).
- iv) Emergence of new situations that had not existed during the earlier times led to differences in opinion among scholars.
- v) The Muslim empire expanded to far areas which had unique problems that required solutions based on their Geographical positions or cultural backgrounds.

i) IMAAM ABU HANIFAH

He was born 699 A.D. in Kufa Iraq in the era of the Sahabas. His full name is Nu'man ibn Thabit Ibn Zuta Ibn Ma'ah. He was of Persian origin. He lived during the era of the Tabi'ns at a time when the Umayyad dynasty was in charge of the Muslim empire. A time when the Muslim scholars were denied the opportunity to study or give rulings based on the Sharia.

He acquired basic Islamic teachings as a child from his father who was of Persian origin and a silk merchant. Subsequently, he supported the family business as a silk merchant. He then learnt Philosophy and Ilmul Kalam (knowledge of dialects). At the age of 22 years, he spent much of his spare time in debating and associating himself with scholars in search of knowledge. He had mastered the Art of deriving rulings by *Qiyas* (Analogy). For 18 years, he joined the debate gatherings of Imam Hammad bin Abi Suleiman, a student of Anas bin Malik. Imam Hammad taught him Islamic Fiqh. Other teachers of Imaam Abu Hanifa include the following: Aamir Ibn Shurahbeel, Sha'abi Kufi, Ziyaad Ibn Ilaqa, Muhammed Ibn Munkadir Madni, Alqama Ibn Marthad, Adi Ibn Thabit, Simaak Ibn Harb, Qays Ibn Muslim Kufi, Mansoor Ibn Umar and Qataada Basri. He also attended lessons of Hadith from Imam Malik even though he was thirteen years younger than him.



Imam Abu Hanifa was also a student of Imaam Aamir Sha'bi, who taught him Hadith. As a scholar of Hadith, Abu Hanifa came up with the following principles for accepting Hadith:

1. The Hadith should be remembered in its correct form since the day of its hearing to the very time of narration.
2. The hadith must have been projected by the Holy Prophet (PBUH) and narrated onwards through reliable persons.
3. The Hadith should not contradict the Qur'an or other famous prophet's traditions.

He was God fearing, generous, knowledgeable, thoughtful and virtuous. He spent most of his time reciting and teaching the Qur'an, giving out sadaqa, visiting the sick among other acts of ibadah.

Imam Abu Hanifa started the first school of thought called, *Hanafi school of thought*. He taught several students but never asked for any payment. In fact he would pay fees for the poor students. Among his famous students include: Qazi Abu Yusuf, Muhammad Ibn Hasan, Abu Ismat Mugheera Ibn Miqsam, Zufar Ibn Huzayl, Hammad Ibn Abu Hanifah, eunus Ibn Is'haaq, Ja' far Ibn Awn, Abu Bakr Ibn Ayyaash, Abdullah Ibn Mubarak, Ali Ibn Aasim and Ubaydullah Ibn Musa. In his school of thought, he introduced the principle of *istihsan*.

Istihsan (preference of two things on the basis of the public good).

Formation of the Hanafi Madhab

Imam Abu Hanifa based his method on *Shura* (consultations). His students would discuss a problem posed to them by the Imam and would then present their agreements to the Imam. They would also debate on hypothetical problems and work out on solutions based on the principle of preparing for a problem before its occurrence. He considered the Quran and Hadith to be the main source of Islamic Sharia. He also used *Ijma* of the Swahaba, individual opinions of the Swahabas, *Qiyas*, *Istihsan* and local customs.

Features of Hanafi School of Thought



- He named his school the *Hanafiyya School*.
- The Hadith he accepted had to be both Sahih and widely used.
- He accepted to use Ijma applied by Muslim scholars of any age as long as all the Muslims abide by it.
- He prefers the *Qiyas* of sahabas but not that of Tabiins to his own *Qiyas*.
- He laid less emphasis on oral traditions.
- He developed the supplementary law which he called *Istihsan* (preference of two things on the basis of the public good).
- He advocated for the acquisition of knowledge for the betterment of Islam and not for material gain.
- He formed a committee of experts in legal matters (*shura*) which comprised of forty scholars of hadith, tafsir and grammar. Its role was to compile a book of complete set of rules on Islamic legal matters.

LITERARY WORKS:

Apart from teaching many students, Imam Abu Hanifa left behind several literary works of Islamic Jurisprudence for the Muslim Ummah. Among these books are:

1. 'Kitaab-ul-Aathar' - compiled from a total of 70,000 Hadith
2. 'Aalim-wal-muta'allim' (the scholar and the student)
3. 'Fiqh Akbar' (the great Fiqh)
4. 'Kitaabul Rad alal Qaadiriyah'

Challenges faced by Imam Abu Hanifa

During the reign of Ibn Hubaira as a ruler of Kufa, Imaam Abu Hanifah rejected his request of the post of Chief Justice because he did not want to be involved with corruption and also feared being unjust in judgement. He was therefore persecuted by passing through the city mounted upon a horse, while being whipped 10 times a day for eleven consecutive days.

Caliph Abu Jaafar Mansoor again offered him the same position which he again rejected. He was imprisoned and violently beaten. He was lashed, 30 times until blood seeped to his heels. He was again imprisoned for fifteen days, with restricted rations of food. During this time, he was forced to drink a poison that led to his death. He died in the month of Rajab 150 A.H in the state of prostration. His funeral prayer was offered five times, because of the multitude of people. Hammad,



his only child led the funeral prayer. The Hanafi laws are mostly applied in Tunisia, Egypt, Jordan, Russia, Syria, Pakistan, Afghanistan and other countries in the Middle East.

ii) Imam Malik bin Anas

Malik ibn Anas was born in Madina 717 C.E during the time of the Umayyads at the era of the Tabi'in. He is the second of the four major imams. He belonged to the Arab family of Humayr from Yemen. He is the second among the four major Imams of Islamic Jurisprudence. His family had a deep educational background and this gave Imam Malik an advantage to acquire basic Islamic knowledge from his grand father ('Amr) and uncle (Abu Suhail Nafi') at an early age. He was knowledgeable in Qur'an, Hadith and *fiqh*, spoke the truth fearlessly and advocated for the doing of good. He had a very strong memory and memorised the Qur'an at the age of seven.

Imam Malik was very simple in character, pious and had no favouritism when making legal decisions. He spent his time reciting the Qur'an and was engrossed in prayer during the night. He would take wudhu before narrating any hadith as a sign of respect.

Abu Radim Nafi' bin Abd al- Rahman taught him how to recite Qur'an according to Tajweed. Other prominent teachers of Imam Malik include, Ja'afar Al- Swidiq, Mohammad bin Yahyah al- Ansari, eahaya bin Sai'd, Hisham bin Urwa among others.

He was famous for his piety and integrity and courageously stood up to oppose suppression. For example, when the governor of Madina demanded and forced people to take the oath of allegiance to Khalifa al-Mansour, Imam Malik issued a Fatwa that such an oath was not binding, because it was given under duress. This resulted in many people finding courage to express their opposition, but the Imam was arrested, found guilty of defiance and publicly flogged. When the caliph learnt of this outrage, he apologized to the Imam and dismissed the governor.

Formation of Malik school of Thought

Imam Malik's method of teaching was based on the narration of hadith and the discussion of their meanings in the context of the problems of that day. He would either narrate Hadith or statements of the Swahabas on various topics to his students then discuss their implications, or he would inquire about problems which had arisen in the areas from where his students came and then narrate



appropriate hadith or statements of the swahabas which could be used to resolve them. He used the following sources of law; Qura'n, Sunnah, Amal (practices of the Madinites), Ijma of the sawhabas, individual opinions of the Swahabas, Qiyas, Urf (Customs of the Madinites), Istislah (Welfare) and customs or social habits of people throughout the world not contrary to Islam.

Main features of the Malik School of Thought

- He named his school of thought *Malikiya*.
- He accepted both Qur'an and Hadith as the primary sources of Sharia.
- He formulated the supplementary law called Urf (Rules based on the traditions and practices of the people of Madina).
- He collected his works in his book called al- Muwatta (the path made plain) which contained issued on Fiqh, Hadith and Islamic theology.
- He accepted Ijma of scholars of any age as a source of Sharia.
- He applied his own Qiyas but with a lot of caution and would prefer the opinion of the swahabas to his own.
- He accepted Istihsan but referred to it as Istislah i.e. laws made in public interest.

Death of Imam Malik

Imam Malik became ill for three weeks h e passed away on 10th RabiulAwal in 795C.E. and was buried in Jannatul Baqi in the Holy city of Madina.The followers of the Malik School of thought are found in North Africa, al-Andalus, Egypt, Sudan, Iraq, and Khurasan.

iii) Imam Shafi'

His full name is Abu Abdullah Muhammad bin Idris al- Shafi'. He was a descendant from the Banu Hashim clan of the Quraish. He was born in 150 A.H/767A.D in Gaza, Palestine but moved to Makkah at the age of 2 years. He was pious, generous and a very good Arabic orator. Because of his sharp memory, he learnt the Holy Qur'an by heart at the age of seven. When he reached fifteen, his knowledge was so thorough that he had mastered Imam Malik's al Muwatta. He was very keen in learning and mastering the Traditional Islamic Sciences like Qur'an, Hadith and Fiqh. Al-Shafi' traveled extensively for the sake of spreading and acquiring knowledge. He went to Madinah where



he met Imam Malik and memorised many hadith from him. He also visited Iraq twice and met Imam Al-Shaybani from whom he acquired knowledge especially on the Hanafi school of thought. While in Iraq, he taught the jurisprudence of the Qur'an and Sunnah. He also taught linguistics, poetry and genealogy, and held debates with people who were fanatically following their madhahib (schools of thought). During these debates, he never argued nor showed anger. He then left for Egypt where he intended to study under Imam Al-Layth but before he reached there, the Imam had died. He remained in Egypt where until his death in 204 A.H.

Formation of his the Shafii School of Thought

Imam Shafii integrated the systems of the *Malikiyya* (Maliki school of thought) and *Hanafiyya* (Hanafi school of thought). The integration's outcome was a book called *Al Hujja* (the evidence) which he dictated to his students as they memorised. Among his students were Ahmad bin Hanbal, Ismail ibn Yahyah Al- Muzany, Ar-Rabii al Maradii, Hassan bin Muhammad Az-Zaffarani, Yussuf ibn Yahya al-Buwayti and Abu Thaur. He holds the merit of being the first Imam to systemize the essential principles of Fiqh. He used the Qur'an and Hadith as the main sources of law. He also applied Ijma of the swahaba (prophet's companions), Qiyas, individual opinions of the swahabas, Qiyas and Istishab (linking).

Features of the Shafii school of thought

- He called his school the Shafii School of Thought.
- He accepted Qur'an as the first source of Sharia and the basis on which all the other sources of Islamic Sharia rely upon.
- He introduced the fundamentals of jurisprudence (usul Al-Fiqh). This earned him the title 'the revivalist of the second century' because he collected hadith from different countries and scholars.
- Shafii wrote his famous book, Al-Risalah (the message), purely based on the literal meaning of the Qur'an, then on the authentic Sunnah. It is considered by Muslim scholars as the foundation of Islamic jurisprudence.
- He also wrote Al-Umm (the essence/ the mother) in which he dictated the new school of thought to his students.
- He accepted a hadith provided they were authentic and considered following and applying the Sunnah as equally important as following the Qur'an.
- He supported the use of consensus (ijma) and discouraged the use of one's personal judgment without relying on the three sources of Sharia.



- Imam Shafi' considered his Qiyas to be inferior to the swahabas opinions.
- He preferred the use of the supplementary law of Istishab i.e. linking a past ruling on Fiqh to the present events happening then deriving a judgement.

His works include:

- i) Kitab-ul-umm (the essence)
- ii) Al-Risala Fi Usul al Fiqh. (the message)
- iii) Al Hujja (the evidence)

Death of Imam Shafii

Imam Shafii suffered an intestinal attack in the last years of his life and died on 30th Rajab 204 A.H. in Egypt and was buried near Mount al Muqattam. The Governor of Egypt led his Janaza prayers. His two sons Abul Hasan Muhammad and Uthmaan were present for the funeral rites. Imam Shafii has followers all over the world including; Indonesia, Egypt, Yemen, East Africa, Malaysia, Oman, South America and Hadhramout.

iv) Imam Ahmad bin Hanbal

His full name is Ahmad bin Mohammad bin Hanbal bin Hilal bin Idrees Asheybaany. He was born on 20th of Rabi` Awwal 164 A.H. /780 C.E in Baghdad, Iraq. His father passed away before his birth and was brought up by his mother. She was keen that he learns the different disciplines of knowledge prevalent at that time. So, he memorised the Qur'an and dedicated himself to the study of knowledge of Hadith from various teachers. During his early age, he joined the classes of Abu Yusuf, a student of Imam Abu Hanifah for a period of four years. He recorded in writing all what he learnt.

Imam Hashim ibn Basheer, the grand scholar of Hadith in Baghdad also taught Imam Abu Hanifa. Moreover, whenever he heard that a knowledgeable scholar came to Baghdad, he would seek to acquire knowledge from him. In this regard, he learned from the great scholars like Na'eem ibn Hammad, Abdul-Rahman ibn Mahdi, and `Umayr ibn Abdullah ibn Khaled. He dedicated himself to studying at the hands of Shafi` for a period of time, during which he learned fiqh (Islamic jurisprudence) and its principles.

Imam Ahmad used to teach and issue fatwa (legal rulings) in Baghdad in 204 A.H. / 819 CE, just after Imam Ash-Shafi died. He would hold two knowledge-imparting circles: a special one at his



home for his keen students and a general one in the mosque after the `Asr Prayer for ordinary people and knowledge-seekers in general. Among his students are; Abu Bakr Al-Maruzi, Abu Bakr Al-Athram, Al-Bukhari, Ibrahim ibn Ishaq Al-Harbi, Ishaq ibn Mansur At-Tamimi, Muslim, Abu Dawud, and Baqi ibn Makhlad.

Formation of the Hanbal School of Thought

Imam Ahmad bin Hanbal is well known for his book called *Musnad* (supported). He used to discuss and issue Fatwa (legal ruling) based on the Qur'an, the traditions of the hrophet found in the Musnad and the opinions of the Swahabas. He also used the Ijma (verdicts by the companions), opinions of the swahabas supported by divine texts and Qiyas.

Features of the Hanbal School of law

- He called his school *Hanbali School of thought*.
- He accepted Qur'an as the first and most authoritative source of law.
- On hadith, he would only accept it if it was Marfu (directly attributed to the Prophet)
- He would only accept Ijma agreed on during the Swahabas time.
- He reluctantly applied the Qiyas. He preffered to use a weak hadith where it was available as long as the weakness was not due to a narrator being a liar or Fasiq (degenerated) to his Qiyas.

Challenges faced by Imam Ahmad bin Hanbal

Imam Ahmed bin Hanbal in the later years of his life, was imprisoned and tortured by the rulers who wanted him to support their un-Islamic belief that the Qur'an was a creation of Allah (SWT). raliph Mutasim billah forced the Imam to accept the beliefs of the "Mu'tazalis" but he refused, and was beaten to such a degree that his joints were dislocated. He was chained for 30 months in a prison in Baghdad. He still refused to accept these beliefs and was again beaten till he fell unconscious.

On the 25th of Ramadhan in the year 221 A.H, Caliph Mutasim, in fear of the sin he committed, repented and set the Imam free. He passed away on 12th, Rabi` Thani 241 A.H/ 855 CE at the age of 77 and was buried in Baghdad.He started the Hanbali school of thought which has its followers mainly in Palestine, Saud Arabia, Syria and Lebanon.

His Writings



1. *Al-Musnad Ahmad bin Hanbal* (The Authenticated) is the most prominent book among his writings. It is the biggest record of the hrophet's Sunnah as it includes about twenty eight thousand traditions.
2. *As-Sunnah*, handles the hadiths on matters of belief.
3. *Kitab-us- Salat* (on the discipline of prayer)
4. *Al-Wara` wa Al-Iman* (Piety and Faith) focuses on the hadiths and narrations tackling piety and awareness of Allah (SWT).
5. *Fada'il As-Sahabah* (Virtues of the Companions) contains almost 2000 narrations about the virtues of the hrophet's rompanions.

Imam Jafar as-Sadiq

Jafar Mohammad as-Sadiq was born on the eighth of Ramadan in the 83 A.H. /702CE. He is the son of the fifth Imam of the Shia, Muhammad Al-Baqir who was also known as Zainul Abideen. He succeeded his father as the sixth Imam of the Shia. In his early life, he lived with his father and grandfather who taught him good morals and Islamic principles. He increased his knowledge of hadith by visiting prominent scholars like `Urwa, `Aata, Nafi` and Zuhri. He was a *mufasssir* (of the Qur'an, a scholar of jurisprudence, and one of the greatest *mujtahids* (qualified to give legal decisions) in Madinah. Once he had acquired knowledge, he began holding lecture sessions to thousands of Muslims in Masjidu Nabawi (hrophet's mosque).

Other than religious knowledge, Imam Ja'far was well versed in the Sciences like Al-kemy, astronomy, Geography and Geology. This advanced study of sciences is attributed to his producing scholars like Jabir bin Hayyan, Suffyan Athawry and Said al Ansari. He spent his life in worship and acts of piety for the sake of Allah. He rejected all positions of fame offered to him by both the Umayyad and the Abassid caliphs and preferred to stay in isolation from the world. He did not support either of the Dynasties and was gaining popularity from the people. When Caliph Mansoor took over the ralphate, he kept Imam Ja'far under close supervision since he feared the respect and love that Jafar enjoyed from the people. Eventually the Imam was allowed to return to Medina where he spent the rest of his life in hiding until he was poisoned. He died on 15th Rajab 148 A.H. He was washed and shrouded by his son Musa al- Kadhimi.

Nature and Purpose of Sharia

Islam came to the world to revive, and rekindle the greatest human values and qualities that had long been neglected and forgotten. Its message came with clear rules enumerating the rights of Allah



(SWT), the rights of the human being – the rights of the governed and those who govern; the rights of the young and old; the rights of the student and the teacher; the rights of the man, woman, and child; the rights of the employee and the employer among other relationships.

a) Rights of Allah

Allah only wants mankind to worship Him alone and ascribe no partners with Him in worship, and truly be His slaves. He wants them to surrender to His will, as they surrender to His control for their livelihood. It is only fair to worship only the One who holds the existence of everything and everyone is in His Hands. One should thank Allah who, alone, provides for him by worshipping Him alone.

Mu`âdh b. Jabal relates that the Prophet (P.B.U.H) said to him: *“O Mu`âdh! Do you know what Allah’s right is over His servants and what their right is over Him?”*

I said: “Allah and His Messenger know best.”

He said: “Allah’s right over His servants is that they worship Him without associating any partner with Him in worship, and their right over Him is that He does not punish anyone who worships Him without associating any partner with Him in worship.” [Bukhari and Muslim]

This hadith speaks about Allah’s rights over the people and their rights over Allah. It only mentions the right to worship Allah (SWT) alone. Muslim scholars have discussed this topic, and concluded that the rights of Allah (SWT) are based upon leniency and pardon since He is the Creator and Sustainer. There are numerous rights of Allah, but here we shall only discuss a few as follows:

a. Tawheed (Oneness of Allah)

In Book One, we discussed the pillars of Iman in Islam. Can you recall them? These pillars are based on belief and should be put into practice by all believing men and women. Among the pillars of Iman is Tawheed (monotheism). This is the act of directing all acts of worship to Allah (SWT) alone. It is the right of Allah (SWT) to be worshipped and not to be associated with anything. Allah (SWT) says,



وَالَّذِينَ كَفَرُوا لَهُمْ نَارُ جَهَنَّمَ خَالِدِينَ فِيهَا أُولَئِكَ هُمْ الضَّالُّونَ ۚ أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَىٰ كُلِّ شَيْءٍ قَدِيرٌ ۚ أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَىٰ كُلِّ شَيْءٍ حَكِيمٌ ۚ أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَىٰ كُلِّ شَيْءٍ قَدِيرٌ ۚ أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَىٰ كُلِّ شَيْءٍ حَكِيمٌ ۚ

“Your god is one God. As to those who believe not in the Hereafter, their hearts refuse to know, and they are arrogant. Undoubtedly, Allah does know what they conceal, and what they reveal; Verily He loves not the arrogant.” [Q 16:22-23]

b. Ibadah (worship)

We have seen that Allah (SWT) asks all mankind to believe in Tawheed. In this belief, mankind is expected to practice acts of Ibadah (worship) which include; performing swalat, saum, zakat, hajj among others. The Qur'an and Hadith give directions on the performance of these acts of worship in the correct manner. However, these acts should also be directed to the correct Deity, who is none other than Allah (SWT). In the world today, we see people performing shirk by observing acts of worship to their ancestors, the sun, idols, animals and other creatures. Allah (SWT) has directed all his creations to worship Him. He says:

"And I (Allah) created not the Jinn and mankind except they should worship Me (alone). I seek not any provision from them nor do I ask that they should feed Me. Verily, Allah is the All-Provider, Owner of Power, the Most Strong." [Q 51:56-58].

The above verse mentions the word ‘serve’. This involves all actions done for the sake of Allah (SWT) and to earn His pleasure.

Allah (SWT) says

وَالَّذِينَ كَفَرُوا لَهُمْ نَارُ جَهَنَّمَ خَالِدِينَ فِيهَا أُولَئِكَ هُمْ الضَّالُّونَ ۚ أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَىٰ كُلِّ شَيْءٍ قَدِيرٌ ۚ أَلَمْ تَعْلَمْ أَنَّ اللَّهَ عَلَىٰ كُلِّ شَيْءٍ حَكِيمٌ ۚ

“And your Lord says: ‘call on Me; I will answer your (prayer): But those who are too arrogant to serve Me will surely find themselves in Hell-in humiliation!” [Q 40:60]

b. Giving thanks to Allah (SWT)

Allah (SWT) says, *"And Allah has brought you out from the wombs of your mothers while*



you know nothing. And He gave you hearing, sight and hearts that you might give thanks (to Allah)." [Q 16:78]



Giving thanks is one of the rights of Allah (SWT). In Sura a Rahman, Allah discusses the favours and bounties He Has given to man. He keeps on reminding and emphasizing on the amazing creations He Has put to the service of man. It is therefore man's responsibility towards Allah (SWT) to show gratitude for all such favours. There are various ways of giving thanks. Among them are:

- Observing the acts of worship
- Making supplication
- Sharing the knowledge we have acquired with others.
- Using our parts of the body to worship Allah (SWT) and avoid any form of vice.
- Using our health in the service of Allah (SWT)
- Giving out our wealth as prescribed by Allah (SWT) for zakat and sadaqah.

c. Obedience to the Prophet (P.B.U.H)

Allah (SWT) sent many messengers to the world to guide mankind but for Muhammad (PBUH), he came as a blessing to the creations. Muslims should show obedience, love and abide by the guidance sent down on him. Allah (SWT) says: *“He who obeys the Messenger (Muhammad) indeed obeys Allah.”* [Q 4:80]

b) The rights towards self

In Book 2, we learnt about the principles of Islamic morality. We mentioned that man is dignified in the creations of Allah (SWT) and has been given the intellect and divine guidance. He therefore has the will to choose between the good and the evil. Allah says:

“We showed him the way: Whether he be grateful or ungrateful (rests on his will).” [Q 76:3]

Likewise, man has the potential to better himself and prosper when compared with the other creations. He therefore has certain rights over his own body and soul that will enable him to develop spiritually, economically and socially. Let us now look at some of these rights:

i. Source of livelihood

Every individual has a right to earn a living through the lawful means that the Sharia has outlined. Can you mention some of the lawful sources of income? Wealth earned lawfully will help a Muslim perform acts of worship that will be rewarding. Allah blesses the wealth of that person who earns legally and punishes the one who uses foul means to earn a living. In a Hadith Qudsi Allah has commanded the believers what He Has commanded the Messengers, for He



said; O Messengers! Eat from the pure foods, and do right, and He said, O ye who believe! Eat from pure and good foods We have given you. (Muslim)

ii. Good health and strength

From an Islamic perspective a strong body yields a strong spirit, thus better performance of the acts of Ibadat. Health is also viewed as a major blessing that Allah has bestowed to mankind.

Hadith: The prophet of Allah (hBUH) mounted the pulpit, then wept and said, “Ask Allah (SWT) for forgiveness and health, for after being granted certainty, one is given nothing better than health” (Tirmidh).

Health is one of the greatest favours from Almighty Allah and should not be taken for granted. Thus we must be grateful by keeping our bodies healthy. We can do this by maintaining good eating habits and avoid any harmful drinks and food such as intoxicants and drugs. Our bodies should get proper nourishment and rest. On the Day of Judgement a Muslim should also be ready to account for how he utilized his body and health.

Hadith: It is narrated that the prophet (hBUH) said: “No one will be allowed to move on the Day of Judgement until he has been asked how he spent his life, how he used his knowledge, how he earned and spent his money and in what pursuits he used his health” (Tirmidh).

iii. Controlling the desires of the soul

The human needs are endless despite Allah (SWT) bestowing on him all the bounties. The souls will always yearn for more and for that which is unlawful. Sins and crimes are committed in our society due to the weakness of man’s spirit to control the desires of the soul. Allah (SWT) says: *“Yet I do not absolve myself (of blame) the (human) soul certainly invites evil.”* [Q 12:53]

iv. Fulfilling sexual desires through marriage

Allah (SWT) has created all things in pairs for reproduction. Mankind is no exemption to this. However, the world today has challenges of fulfilling the sexual urge through either unnatural means or by being adulterous. Marriage has been availed as a legal channel of fulfilling the sexual desire legally. The Prophet (P.B.U.H) says, *“O young man, those among you who can support a wife should marry for it restrains eyes (from casting evil eyes) and preserves one from immorality. But he who cannot afford it should observe fast for it is a means of controlling sexual instinct.”*



c) Rights of other people

The theory of human rights in Islam has a strong spiritual dimension. The human being is directly accountable to his Creator. It is not just a matter of accountability before the law. Honouring the rights of other human beings is a means by which a person can become elevated in the sight of his Creator. In other words, the issue of upholding human rights becomes a means by which a person's fate in the hereafter can be sealed.

Indeed, the prophet (h.B.U.H) describes how a person can arrive "bankrupt" on the Day of Judgment without any good deeds to his credit, simply because he failed to uphold the rights of others. A Muslim is therefore expected to observe the following rights over other Muslims:

- i) Greetings. We should greet one another when we meet and reply to the *salaam* (greetings) in a good way. The Islamic greetings are: *As-salaamu Alaikum waramatullahi wabarakatuh*. As Allah (SWT) says:
"When a courteous greeting is offered you meet it with a greeting still more courteous, or at least of equal courtesy." [Q 4:86]
- ii) Accepting their invitation.
- iii) Attending their funeral rites
- iv) Making *du'as* (supplication) for scholars, leaders and authors of Islamic works.
- v) Accept the excuse and apologies of others and always wish for their good.
- vi) Visit others when they sick and assist them in any need
- vii) Accept the gifts that are sent by friends, fellow and Muslims
- viii) Saying, 'Yarhamukallah' (may Allah bless you) when they sneeze and say 'Alhamdulillah' (All praise be to Allah).
- ix) Speak to them with kindness and with soft and pleasant word
- x) If they take a pledge while relying on you, then fulfill their pledge.
- xi) If two Muslims fight then create peace between them.
- xii) Do not cause him any harm, neither in his honour nor in his wealth.

xiii) Rights of other creatures

Islam has not only laid down the rights of human beings but has also emphasized on the rights of animals, plants and other creations. Prophet Mohamad (PBUH) was not only sent as a mercy to mankind but as a blessing to all creatures as Allah (SWT) says,

"We sent thee not, but as a mercy for all creatures." [Q 21:107]

Allah (SWT) further says,



“There is not an animal (that lives) on earth, nor a being that flies on its wings, but (forms part of) communities like you...” [Q 6:38]

The above verses indicate that Allah (SWT) has put every creation in communities and human beings live among other creations of Allah (SWT). These creations include plants and animals. Allah has created them for the sole purpose of assisting man. Since we benefit from them, it is our duty to ensure that we treat them with kindness and give them their due rights. Anas bin Malik (RA) narrated that the prophet said, *“If any Muslim plants any plant and a human being or an animal eats of it, he will be rewarded as if he had given that much charity.” (Bukhari)*. We shall learn more on the hadith of the prophet on care for plants and animals in Book Four. The following are some of the rights of other creatures:

Rights of other creatures

1. Animals should be ridden in a humane way, carry a load they can bear, be given enough food and have a good place to live.
2. They should not be abused and beaten.
3. They should not be hunted as a sport or targeted during practice.
4. Do not mutilate or cut parts of an animal's body when still alive.
5. Plants should be given enough water and manure.
6. Plants should not be uprooted without any good reason.

Answer the following study questions and activity in your I.R.E revision exercise book.

1. Give reasons why the following are regarded as sources of Sharia.
 - i) Qur'an
 - ii) Hadith
2. Mention the qualities of a Mujtahid.
3. Explain the conditions for the applications of Ijma as a source of Islamic Sharia.
4. Outline the features of the Maliki school of thought.

Activity

In groups, discuss the differences and similarities between Ijma and Qiyas.



CHAPTER FIVE

AKHLAQ

Positive aspects of morality in Islam

a) Sadaqa of the tongue

In Form one, we learnt about sadaqa. Can you recall what we said sadaqa is? Sadaqa refers to any act of charity done for the sake of pleasing Allah (SWT). Among the ways of giving sadaqa is by use of the tongue. The Prophet (P.B.U.H) said:

“Every good word is sadaqa.” (Bukhari and Muslim)

Umar (RA) narrates that the Prophet (PBUH) said, “May (Allah) have mercy on that servant who gains benefit when he speaks, or one who is protected through maintaining silence. Surely the tongue is the thing which wields the most authority over a person. Be aware that everything that servant speaks is against him, except for the remembrance of Allah, the High, or the commanding of others to that which is right or preventing them from that which is evil, or setting the affair right between two believers.”

One of the companions named Ma'adh b. Jabal said, “O' Messenger of Allah! Will we be held accountable for that which we speak?” The Prophet replied, “Is there anything else except an active tongue of a person that will lead him into the hell fire? So then whoever seeks safety (from the fire), then let him protect that which comes out from his tongue.”

A Muslim should therefore use his tongue to say what is good or remain silent. He should avoid using the tongue in any ways that shall provoke evil like back biting, rumour mongering, telling lies, throwing insults and abuses, cursing, defaming the innocent, recounting the favours done or the charity he or she has given among other evils. Such deeds will disunite the society and lead to hell fire. Muslims should therefore use this precious gift from Allah (SWT) to do what is pleasing to Him. The following are some of the ways in which a Muslim can use his tongue as sadaqa:

- Saying the truth in testimony and words
- Forbidding evil deeds and commanding the good.
- Reciting the Qur'an.
- Saying the Adhkar i.e. *tasbih* (subhanallah), *tahmid* (Alhamdulillah) and *tahlililah* (la illaha ilaaha illallah)
- Bringing peace and reconciliation
- Giving admonition and advices to fellow Muslims and even to non Muslims.
- Acting with justice between two people.



b) Appreciation and gratitude (Shukr)

Shukr or gratitude means the act of showing sincere appreciation in return for the good things, assistance or favours done to you by someone. In Islam, gratitude is given much importance and emphasis. Allah (SWT) has created human being with needs and desires that require satisfaction. He has also created everything for the service of man. The trees that provide shade, flowing rivers that provide water for irrigation and domestic use, the day that is meant for work, the night that is for rest, fruits in different shades and shapes among others. Allah has placed all this on earth so that man can be able to get his needs. It is therefore very important that man should thank Allah for these bounties given to him and extend the same gratitude for the good things done to him by his fellow human beings and other creatures. Emphasis on the importance of gratitude is given in the following verses:

Allah (SWT) says,

“And remember! Your Lord caused to be declared (publicly): “If you are grateful, I will add more (favours) unto you; but if ye show ingratitude, truly My punishment is terrible indeed.” [Q14:7]

Allah (SWT) says,

“We bestowed (in the past) wisdom on Luqman: “Show (thy) gratitude to Allah.” Any who is (so) grateful, does so to the profit of his own soul; but if any is ungrateful, verily Allah is free of all wants, worthy of all praise.” [Q 31:12]

Ways in which a Muslim can show gratitude

- Praising the name of Allah (SWT)
- Engaging in acts of worship like swalat.
- Being thankful for the help given to us by others. The Prophet (PBUH) said, *“Anyone who doesn’t thank people has not thanked Allah.”* (Abu-Dawud & Tirmidhi)
- Giving out zakat and sadaqa to the less fortunate
- Being patient when misfortune befalls us.

c) Forgiveness

Allah (SWT) has created human beings with an intellect and a sense of responsibility. Someone who does not have the intellect may miss to be responsible. For example children who are immature are not held responsible of their actions, because their intellect has not yet developed. Likewise, the insane are not responsible, because they have lost their intellectual capacity. Even though human



beings have the intellects sometimes we make mistakes either deliberately or unintentionally. When we fall into error or commit mistakes, we should repent and ask for forgiveness. Forgiveness involves feeling sorry for the offence done and not repeating it. Forgiveness is among the attributes of Allah (SWT). He is Al Ghafur (The Most Forgiving). Allah (SWT) says in surah al Nur:

“Let them pardon and forgive. Do you not love that Allah should forgive you? And Allah is Oft-Forgiving Most Merciful.” [Q 24:22]

The above verse encourages Muslims to be ready to forgive his fellow Muslims who ask for his forgiveness. We should restrain from holding grudges or revenging against our fellow human beings since Allah (SWT) readily forgives those who are quick at pardoning others. The prophet (PBUH) encourages us to repeatedly pray to Allah (SWT) to forgive us. In a hadith narrated by Al-Agharr, the Prophet (PBUH) said:

“O people! Repent to Allah and seek for His forgiveness. I repent to Him in a day 100 times.”
(Muslim)

The Prophet (PBUH) displayed the act of forgiveness in several situations. Can you mention some of them?

Islamic teachings on forgiveness

- Allah (SWT) is oft forgiving.
- Allah (SWT) is ready to forgive those who ask for His forgiveness.
- Allah (SWT) may forgive all those He wishes to forgive. Allah (SWT) says, *“...weather you show what is in your mind or conceal it, Allah calls you to account for it. He forgives whom He pleases, and punishes whom He pleases.”* [Q 2:284]
- Muslims should forgive those who wrong them even when they are angry. Allah (SWT) says, *“Those who avoid the greater crimes and shameful deeds, and, when they are angry even then forgive.”* [Q 42:37]
- Muslims are commanded to ask for Allah’s forgiveness. *“... ‘we hear, and we obey: (we seek) Your forgiveness, our Lord, and to You is the end of all journeys.”* [Q 2:285]
- Angels pray for forgiveness of all human beings on earth. Allah (SWT) says, *“The heavens are almost rent asunder from above them (By His Glory): And the Angels celebrate the Praises of their Lord, and pray for forgiveness for all beings on earth: Behold! Verily Allah is He, the Oft-Forgiving, Most Merciful.”* [Q 42:5]
- Allah (SWT) is ready to forgive those who avoid great sins and shameful deeds.

d) Justice (Adl)



Read [Q 5:8]

Adl is an Arabi word derived from the term ‘Adala’ which means to justify or bring fairness and equality.

The Islamic implication of ‘Adl encompasses fairness and equity in every thing that is said or done with respect to our comments, decisions, roles and accountability. The society that Islam wants to develop can be precisely described by the words of Allah (SWT) in the Qur’an:

“Verily, Allah commands justice, the doing of good, and liberating the kith and kin, and he forbids all shameful deds, and injustice and rebellion: He instructs you, that you may receive admonition.”[Q16:90]

Justice is a virtue that brings a Muslim closer to Allah as the messenger of Allah teaches in his words narrated by Abu Said (RA) that the Prophet (PBUH) said,

“The most dear to Allah SWT and closest to Him on the Day of Judgement will be the person in authority who was fair and equitable. The most disliked and the most severely punished will be the person in authority who was unjust.”(At-Tirmidhi)

A Muslim should display justice in the following situations:

- While distributing the inheritance to the heirs.
- In the family the husband must show justice among his wives and children.
- In making judgement a Muslim should be fair to both parties involved. Allah (SWT) says, *“Allah does command you to render back your Trusts to those to whom they are due; And when you judge between man and man, That you judge with justice: Verily how excellent is the teaching which He gives you...”* [Q 4:58]
- Distribution of the property for zakat should be done fairly.
- Keeping property of someone. Do not squander or misuse the property under your care.
- We must be just while executing our day to day activities. This includes; completing tasks assigned to us, being fair in the distribution of resources to in our charge among others.
- A leader should be just to his subject.
- Muslims must be just while giving testimony. Allah (SWT) says, *“O you who believe! Stand out firmly for justice as witnesses to Allah, even as against yourselves, or your parents or your kin, and weather it be (against) rich or poor...”* [Q 4:135]

HADITH ON JUSTICE



1. Abu Huraira (RA) narrated that the Messenger of Allah (PBUH) said: “Verily, you will give back all dues to those entitled to them on the day of judgement, so much that the hornless sheep will get its due from the horned one.” (Muslim)
2. Aisha (RA) narrated that: “He who takes without right a hand span of earth will have it suspended in his neck sevenfold.” (Bukhari and Muslim).
3. Abu Umama Lyas bin Tha’laba Al Harith (RA) narrated that the Messenger of Allah (hBUH) said, “Whoever takes that which is rightful property of a Muslim by delivering a (false) oath will be written by aod for Hell fire, and he will be forbidden paradise.” A man asked, “O Messenger of Allah, even if it is a slight thing?” He answered, “Even if a twig of a shrub.” (Muslim)

DIMENSIONS OF MORALITY IN ISLAM

- a) Spiritual observance and their moral implication.

Read [Q 2:183][Q 29:45]

In Islam, the acts of devotion are meant to not only uplift the Iman of a Muslim but also to shape their morals. The five pillars of Islam encompass the basic moral obligations of a Muslim. These pillars include; Swalat, zakat, Hajj and Saum. Let us now discuss how each of these acts of worship regulates the moral behavior of a Muslim.

i) Swalat

Swalat is the second among the five pillars of Islam. Allah (SWT) has prescribed the establishment of swalat in the Qur’an. Allah (SWT) says,

“Nay, seek (Allah’s) help with patient perserverance and prayer: It is indeed hard, except to those who bring a lowly spirit.” [Q 2:45]

Muslims should always remember Allah (SWT) constantly through regular prayer in order to avoid evil and shameful deed. Allah (SWT) says,

“...and establish regular prayer: for prayer restrains from shameful and evil deeds...” [Q 29:45]

Through swalat, a Muslim is able to bring himself or herself closer to Allah (SWT) and stays away from evil deeds.

The prophet (hBUH) asked his companions, “If one of you had a river by his door in which he bathed five times a day, will any filth remain on him?” They replied, “No.” Then the Prophet added, ‘Likewise, Allah wipes away sins with the five daily prayers.’ (Muslim)



Moral Implications of Swalat

Performance of swalat shapes the morals of a Muslim in the following ways:

1. It trains muslim to avoid evil and shameful deeds
2. It promotes equality as it levels all differences among Muslims e.g colour, ranks, status and nationality.
3. It brings cohension and unity among Muslims who frequently socialiseafter the Swalat
4. It encourages time conscious to Muslims because Swalat has its prescribed time.
5. It instills virtues such as self disciplenie, love, peace respect, gentleness harmony among others.

ii) Zakat

All things belong to Allah and man has been given the responsibility to take care of them.

We have earlier learnt that the man is supposed to be grateful to his creator for all the favours he has given him. Onof the ways of showing this gratitude is through giving Zakat. This is a moral obligation that has been ordained by Allah. Allah (SWT) says,

“And be steadfast in prayer and regular in charity: And whatever good you send forth for your souls before you, ye shall find it with Allah: For Allah sees well all that you do.”[Q 2:110

Moral Implications of Zakat

Zakat has the following moral teachings to an individual Muslim and the society.

- i) It enhances the sense of responsibility in that the giver feels obliged to perform the acts as an obligatory duty upon him.
- ii) It promotes loyalty to Allah which is an aspect of integrity.
- iii) It assists in curbing vices such as theft by regulating the owning of resource in the society.
- iv) It improves relationship among people as it removes jealousy and envy.
- v) It reduces extravagance and greed of wealth to the giver.
- vi) It curbs unfair distribution of wealth in that only the rightful recipients are given.
- vii) It boosts brotherhood and unity in the society.

iii) Saum

Saum is the fourth pillar of Islam. It is obligatory upon every mature and sane Muslim to observe fast dung the month of Ramadhan. Observing saum sincerely shields a Muslim from many vices. Abu Huraira (RA) narrated that Allah’s Messenger (hBUH) said:

“Saum (fasting) is a shield (or a screen or a shelter from the Hellfire). So, the person observing Saum (fast) should avoid sexual relations with his wife and should not behave foolishly and



impudently, and if somebody fights with him or abuses him, he should say to him twice, 'I am observing Saum (fast).'” The Prophet (may peace be upon him) added, “By Him in Whose Hands my soul is, the smell coming out from the mouth of a person observing Saum (fast) is better with Allâh than the smell of musk. (Allâh says about the fasting person), ‘He has left his food, drink and desires for My sake. The Saum (fast) is for Me, So I will reward the fasting person for it... ’” (Bukhari) This hadith emphasises on the moral benefits of fasting. Among them are:

- We control ourselves against lies and backbiting (*gheebat*).
- We promote the virtue of peace and harmony.
- We learn self control and self denial.
- We become helpful and well behaved.
- To control our tempers and be in control of ourselves
- It instills patience with others and to be more considerate of them.
- The virtue of kindness, humility and care for others are enhanced.

Other Moral Implications of Saum include;

- i) Shielding one from all forms of evils.
- ii) Promoting brotherhood and unity.
- iii) Instilling a sense of discipline through restraining oneself from all evils.
- iv) Helping Muslims to control his or her desires.
- v) One gets a peace of mind and tranquility during the month.
- vi) A Muslim gets rid of undesirable habits such as backbiting, rumour mongering among others.

iv) Hajj

Even though the performance of Hajj purifies a believer’s heart and increases his or her iman, this spiritual journey as well shapes the morals of a Muslim in the following ways:

- i) Hajj creates unity and brotherhood among Muslims from different parts of the world.
- ii) The restrictions of Ihram promote peace and harmony i.e no deliberate killing and uprooting green vegetation.
- iii) It promotes equality because of the same Ihram and the performance of other numerous acts of worth.
- iv) It discourages social prejudices because it has been ordained to all Muslims.
- v) We learn self control the rules of Hajj when we abide by the rules of hajj.
- vi) By observing the rites of Ihram, the Hujjaj become disciplined.
- vii) Muslims control their tempers and practice self control amidst the largest congregation.
- viii) It inculcates the moral superiority of having accomplished one of the greatest activities that please Allah (SWT).
- ix) It is a turning point of the life of a Muslim after renewing the moral life.



- x) It promotes a social tie between strangers who go for hajj.
- xi) A Muslim is pleased by the chance to see the sceneries of Islamic attraction
- xii) It helps Muslims to keep away from non-islamic influences.

PREVENTIVE AND PRECAUTIONARY MORALITY

Prohibitions of certain foods and drinks

Foods and drinks nourish our health growth and state of mind. We are encouraged to eat good and lawful foods. Islam aims at establishing a healthy and moral society. It has therefore permitted the eating of only good, pure and wholesome foods and drinks. Allah (SWT) says in the Qura'n, *"O you who believe! Eat of what is on earth lawfull and good. And do not follow the footsteps of the evil one, for he is to you a vowed enemy."* [Q 2:168]

In the above verse, Allah refers to foods that are good, pure, clean, wholesome and pleasing to taste. Muslims should eat that which is permitted by the Sharia as stipulated in the Qura'n and Sunnnah. Allah (SWT) says: *"They ask you (O Prophet) what is made lawful for them. Say: All good and wholesome things are made lawful for you."*

This is emphasized by the following verse: *"O you who believe! Eat of the good things wherewith We have provided for you."* [Q 2:172]

"Forbidden to you (for food) are: dead meat, blood, the flesh of swine, and that on which hath been invoked the name of other than Allah." [Q 5:3]

i) Prohibition of certain foods and drinks:

1. Dead animals.

Such animals are prohibited because;

- Eating them lowers the dignity of human beings.
- The flesh of the animal may be harmful as a result of chronic disease or eating poisonous things.
- It is the will of Allah that the flesh of such animals provides food for other carnivorous animals.
- Allah wants the owner of the animal to take good care of it so that it may not die from malnutrition, diseases or as a result of neglect lest it dies and be wasted.
- The name of Allah has not been mentioned over the animal.



2. Flowing blood

This is the blood flowing from either a dead or live animal due to sustained injury. Such blood has been prohibited due to the following reasons:

- Blood is *Najs* (najasatul Mutawaswita)
- Such blood may be carrying some bacteria which can lead to infections.
- It is distasteful to the human decency.
- Allah also wishes that man should extend mercy to the animals and be kind to them.

3. Pork/ swine.

Allah prohibits the eating of pigs. The meat of a pig is prohibited for a Muslim. The Holy Qur'an explains this clearly when Allah (SWT) says:

"Forbidden to you (for food) are dead: meat, blood, the flesh of swine, and that on which hath been invoked in the name of Allah; That which hath been killed by strangling, or by a violent blow, or by a headlong fall, or by being gored to death; That which hath been (partly) eaten by a wild animal; unless ye are able to slaughter it (in due form); that which is sacrificed on stone (altars); (Forbidden) also is the division (of meat) by raffling with arrows: that is impunity..." [Q 5:3]

"He hath only forbidden to your dead meat, and blood, and the flesh of swine, and that on which any other name hath been involved besides that of Allah. But if one is forced by necessity, without willful disobedience, Nor transgressing due limits - . Then is he guiltless. For Allah is Oft-Forgiving, Most Merciful." [Q 2:173]

The following are some of the reasons identifying why pigs are prohibited in Islam.

- Pigs have been classified as haram by Allah (SWT) and Najs.
- A pig is a filthy animal which eats everything. Man has been created with dignity and Allah wants us to safeguard this dignity by avoiding anything that is filthy.
- It is injurious to the health as it carries dangerous bacteria called *trichina*.
- Pork contains a lot of fat which may cause health problems.

4. Animals slaughtered on an alter

The intention of slaughtering animals on the alter is not for the sake of Allah (SWT). It may be for the sake of ancestors or other sacrificial reasons. Islam teaches us to sacrifice only for



the sake of Allah and to provide a meal. It is ungrateful to slaughter in the honour of creations or human beings when Allah is the sole creator. Allah (SWT) says:

“Eat not meat on which Allah’s name has not been mentioned.” [Q 6:121] these animals are prohibited so as:

- To safeguard the belief in the Oneness of Allah (SWT).
 - To purify worship.
 - To protect the rights of the animals by avoiding taking their lives unnecessarily.
 - To fight shirk and polytheism.
5. The strangled animals, animals that are beaten to death or die by a fall
If an animal is strangled or beaten using a club or stones and dies before it is properly slaughtered, then its meat is prohibited. This is because cruelty has been applied to it yet Islam teaches us to be kind to animals. The animal beaten or one that dies from a fall has not shed any blood yet shedding of blood is a condition during slaughtering in order to drain blood and remove harmful germs. Also, Allah’s name has not been invoked on them.
 6. Animals killed by goring of horns.
Some communities have the customs of encouraging animals to fight against each other as a sport. This is not allowed in Islam. In the event that one of the animals involved in the fight dies, then its meat is prohibited. Islam encourages us to take good care of animals so as to protect the life of the animal.
 7. Meat which has been partially eaten by an animal. This is distasteful and lowers the dignity of man to the level of an animal. It is also important to avoid such meat in order to guard one’s health from infectious diseases. It also encourages the hunter to train his hunting animals properly.
 8. Alcohol and all other drinks that intoxicate have been prohibited because they interfere with the normal functioning of mind and body.

ii) Vain talks

Read Qur’an: [Q 23:3] [Q 31:19]

This refers to useless talks. They are irrelevant and nonsensical.



The Prophet said: *“verily, Allah Has made it unlawful for you; disobedience of mothers, burrying alive of infant babies and the refusal of giving and asking to be given. And He has hated for you: saying it is so and so who said, the asking many unnecessary questions and the wastage of money.”*

In surah al Mu'minun, the signs of a believer are explained. Among them, Allah (SWT) has mentioned those who avoid vain talks. Allah (SWT) says,

“The believers must (eventually) win through. Those who humble themselves in their prayers; Who avoid vain talks.”[Q 23:1-3]

A believer should engage in useful talk and avoid indulging in idleness and ridicule. A Muslim should avoid places which will encourage idle talk. These places may include; alleys, social places, barazas or gossip corners.

Effects of vain talks

- Leads to quarrels and misunderstanding
- The habit may lead to backbiting which is haram
- It wastes time that would be used for other activities.
- It promotes other vices such as telling lies, belittling others, among others.
- Those involved may end up missing acts of worship like swalat.
- They promote idleness and laziness.

iii) **Abortion**

Abortion means the intentional termination of a pregnancy before the completion of its period.

This is prohibited in Islam and is considered as killing an innocent soul. Fear of poverty, hunger, disability, psychological torture or any 'unwantedness' does not morally or socially justify abortion. Allah says in the Qur'an,

“Kill not your children for fear of want: we shall provide sustenance for them as well as for you. Verily the killing of them is great sin.”[Q 17:31]

Allah (SWT) says in the Qur'an,

“Say: ‘Come I will rehearse what Allah has (really) prohibited you from.’ Join not anything with Him; Be good to your parents; kill not your children on a plea of want; We provide



sustenance for you and for them; come not near to indecent deeds, whether open or secret; take not life which Allah has made sacred except by way of justice and law.” [Q 6:151]

Even though we have mentioned that abortion is prohibited, there are some reasons that may lead to termination of the pregnancy. However, in an extremely rare case, abortion is permissible. This happens when a reliable doctor declares with reasonable certainty that the continuation of pregnancy will endanger the mother's life. Abortion is therefore allowed in order to save the life of the mother.

Effects of abortion

- It may result to the death of the mother.
- It may lead to infertility.
- Future prematurity in birth
- Abortion may harm a woman's reproductive system, damaging her uterus or cervix, leading to future reproductive problems.
- It causes mental and psychological torture to the victim.

iv) Slander

This is the habit of orally defaming someone by giving false statements against a person in order to make him appear evil. It is telling others untrue statements about another person.

Islam discourages slander in both Qur'an and Hadith. Allah says: *“As for those who launch a charge against a chaste woman and produce not four witnesses, flog them with 80 stripes and reject their evidence ever after; for such men are wicked transgressors.” [Q24:4]*

The prophet as well mentions that we should avoid mentioning other people's shortcomings.

Effects of slander

Slander has the following effects:

- i) It causes enmity among the people.
- ii) It may hinder peaceful co-existence among members of the society.
- iii) It promotes other vices such as vain talks and cheating.
- iv) Mistrust may develop among married partners leading to divorce.
- v) It lowers the dignity of those who slander and spoils the name of the one who is slandered.



- vi) It may lead to psychological problems to both parties who may feel ashamed and thus withdrawing from the rest of the society.

v) Israf

The term 'Israf' is derived from an Arabic word '*Sarafa*' which means to go beyond, surpass or go over the limit of something.

Technically, Israf means extravagance or exceeding any legal, moral, or ethical limits. It is excessive expenditure on anything. Islam is etreamly against the wastage of anything. Allah hates those people who are extravagant. Allah (SWT) says,

“...And eat and drink but waste not byextravagance: surely He does not love the extravagant.” [Q 7:31]

One should not be extravagant in satiating one's hunger, thirst or lust [7:81]. One should also not be extravagant in one's expenditure. Allah (SWT) says,

“And render to the kindren their due rights, as (also) to those in want, and to the wayfarer: But squander not (your wealth) in the manner of a spendthrift.” [Q 17:26].

“(One of the signs of those who are truly obedient to Allah is that) when they spend, they are neitherextravagant and nor niggardly, but hold a just (balance) between those (extremes)” [Q 25:67]

Reasons for prohibition of Israf

- i) Allah (SWT) hates those who are wasteful. Allah (SWT) says, *“O children of Adam! Wera your beautifu apparel at every time and place of prayer: eat and drink: But waste not by excess, for Allah loves not the wasters.”* [Q 7:31]
- ii) Israf is a sign of ungratefulness to the creator who Has put all His creation in the service of man.
- iii) Israf is a sinful act that will lead a person to hell fire.
- iv) It promotes vices such as greediness, pride and selfishness.
- v) Islam is a religion of moderation yet Israf is against the principles of moderation.
- vi) It breeds irresponsibility and lack of care for those who do not have.
- vii) It brings about envy and jealousy to those who do not have thus destroying good relationship among people in the society.
- viii) Wastage of resources deprives others who may be in need an opportunity to benefit from the blessings of Allah (SWT) and lead to poverty.
- ix) Allah removes his blessings among those who are wasteful.

Islamic manners



Manners of a particular group of persons emanate from their cultural beliefs and civilization so as to promote social cohesion, order, stability and identification. Culture of a people refers to the way of life of the people. Islamic culture is the Muslim way of life in relation with the teachings of the Qura'n and Hadith of the hrophet.

Civilization on the other hand is an ideal state of social development characterized by absence of barbarism and irrational behavior.

Islamic culture gives guidance to the Muslims on how they should potray themselves in every aspect of life. In this chapter, we shall look at the teachings of Islam on the following:

a) **Manners of walking** (Q 31:18)

1. Walk in a manner that is moderate; not too fast nor too slow.
2. Recite a dua before you start walking. i.e. Bismillah Tawakkaltu alallahi
3. Walk with humility without pride or arrogance.
4. Lower your gaze and occasionally look right or left or sideways.
5. Avoid dragging or stamping your shoes or feet.
6. Avoid walking in between members of the opposite sex.
7. Remove any harmful objects from the way as you are walking.
8. Its encouraged to walk on the right hand side.
9. Avoid throwing anything on the way or spitting all over.
10. Avoid standing in the middle of the way.
11. Greet the people you meet.

b) **Islamic manners of eating**

1. Recite a dua before you start eating.
2. Wash both your hands before taking the meal.
3. Eat using your right hand.
4. Eat good and halaal food.
5. Avoid over eating.
6. Take water in between your meals.
7. Thank Allah after you finish eating.
8. It is Sunnah to eat using three fingers.
9. Eat in small portions.
10. Do not criticize the food you are eating even if it is not good.
11. Eat while you are sitting down.
12. Minimal conversation is allowed.
13. Avoid talking while you have food in your mouth.
14. If you are eating in a group, eat the food that is infront of you.
15. Invite others to join you and share the food.



Discouraged acts while eating

1. Eating while you are not hungry
2. Blowing on the food or drink
3. Over eating.
4. Gazing at others while they are eating.

Manners of Eating and Drinking

The following are some of the Prophets Hadiths that guide mankind on manners of eating:

1. Umar ibn Abu Salama (RA) narrated that the Messenger of Allah (PBUH) said to me, “*(Start your meal) in the Name of Allah, eat with our right hand, and eat from (the plate) which is next to you*”. (Al Bukhari and Muslim)
2. Abu Huraira (RA) narrates that the Messenger of Allah (PBUH) never found fault with any food. If he desired it, he ate it; and if he disliked it he would just leave it.
3. Ibn Abbas (RA) relates that the Messenger of Allah (PBUH) said, “*Do not drink in one gulp (sip) like a camel does; drink in two or three sips (pausing for breath between sips), mention the name of Allah when you start and praise Him when you finish.*” (At-Tirmidhi)
4. Abu Huraira (RA) relates that the Messenger of Allah (PBUH) interdicted drinking directly from a mouth of a water skin or a vessel.” (Al Bukhari and Muslim)
5. Ibn Abbas (RA) narrates that the Prophet (PBUH) interdicted breathing in the vessel or blowing in it. (At- Tirmidhi and he said it is a Hasan and authentic hadith)

c) Islamic manners on sleeping

1. Before sleeping, cup your hands together, blow into them gently and read *Surat ul Ikhlas, Surat ul Falaq and Surat un Naas*. Pass hands over most of the body, starting from the head downwards, three times.
2. A Muslim should go to bed early. The Prophet (P.B.U.H) said: “*after the time of Isha prayer, you may either keep awake for the purpose of remembering Allah (SWT) or talk over necessary matters with your family.*”
3. Recite a dua before you sleep. The following is one of the supplication before going to sleep or times loneliness or depression during fear to go to sleep,:
“Audhu bikalimaati lahi taammat min ghadahabihi wa iqaabihi, washarri ibaadihi, wa min hamazaatish-shaitwaan wa an yahdhuruuni.” Which means: “I seek refuge in the perfect Words of Allah from His anger and His punishment, from the evil of His slaves and from the mockery of devils and their presence.”
4. Start sleeping by lying on your right side.



5. Take ablution before you go to bed.
6. Ensure you clean your body off any dirt.
7. Cover your nakedness.
8. Avoid lying on your stomach.
9. Recite a dua in case you wake up in the middle of the night.

“Laailaha illallaahul waahidil Qahhaaru, Rabbus samaawaati wal ardh wamaa bainahumal Aziizul Ghaffaar.” Which means: “There is none to be worshipped but Allah, the One, the Victorious, Lord of the heavens and the earth and all that is between them, the Almighty, the All-Forgiving.”

Hadith on Sleeping

The following is one the prophet’s Hadith that explains the manners of sleeping.

Hudhaifa (RA) narrated that, *“When the Prophet (PBUH) lay down for sleep at night, he used to put his hand under his neck and say the following prayer, “O God, In your name I die and I live,” When he walk up, he used to say, “Praise be to God, Who Has brought us back to life after death after He Has caused us to die, and to Him belongs the return.”* (Al- Bukhari).

d) Islamic manners of dress

Read Qur’an: [Q 7:26][Q 16:81][Q 21:31]

1. Recite a dua before putting on a dress. i.e. “*“Alhamdulillahil ladhii kasaanii haadha (ath-thawba) warazaqanii min ghairi hawlin minnii walaa quwwatin”*.”

Meaning:

“hraise be to Allah who has clothed me with this (garment) and provided it for me though I was powerless myself and incapable.”

2. Shake the cloth before wearing.
3. Do not trail your dress.
4. Do not wear dresses that resemble those of people of other faiths.
5. Start by putting on the right side first.
6. Wear warm dress in cold weather and cool dress in hot weather.
7. Put on clean and presentable clothes.
8. The dressing should not expose the aura for both male and female.
9. He should not wear clothes meant for the opposite gender.



10. It should be thick enough to avoid being swayed by the wind.
11. The cloth should not be transparent.

Dress for a Muslim man

1. He should avoid wearing silk or gold. The prophet stated, *“Do not wear silk for the one who wears it in this world will not wear it in the hereafter.”* (Bukhari and Muslim)
Ali (RA) narrated that, *‘I have seen the Messenger of Allah (PBUH) taking silk in his right hand and gold in his left hand and saying, “these two are prohibited for the males of my Umma (followers/community).”* (Abu Dawud)
2. The garment should not go below the ankles. It is narrated by Abu Huraira that the prophet (hBUH) said, *“Whatever of the lower garment is beneath the ankles is in the fire.”* (Bukhari)
3. It is preferred to wear white clothes. The prophet (hBUH) said, *“Wear white clothing for it is purer and better.”* (An Nasai)
4. It should not resemble the dress of a woman.

Dress for a Muslim woman

1. It should cover all her *aura* (the whole body except the hands and the face).
2. It should not be transparent in a manner that it reveals her body.
3. It should not resemble the dress of the men.
4. It should not be tight fitting to display her figure.
5. It should not be too colourful such that it will attract the men.
6. It should not be too long or too short.
7. Avoid wearing perfume when going out of the home.

Answer the following question and activity in your I.R.E revision exercise book.

1. a) Explain ways in which a Muslim can use his tongue to fight evil.
b) State the prohibited modes of dress in Islam.
2. a) Identify the effects of Abortion.
b) What are the Islamic teachings on sleeping?

ACTIVITY



Differentiate between Islamic and non-Islamic cultural practices in reference to the following:

- a) Eating
- b) Dressing

CHAPTER SIX

MUAMALAT (RELATIONSHIPS)

1. *Mirath* (inheritance)

Read [Q 4:11-12]

a) **Meaning of *Mirath*.**

Mirath is from the root Arabic verb, '**Waratha**' which means '*to take or hold a possession or inherit*'. Technically, it is a science which shows the eligible **heirs** (those to inherit) and their shares as assigned in the Qur'an.

In several circumstances, you might have witnessed situations where family members engage in fights, disputes and wrangles over the deceased *tarka* (estate). The wrangles and fights may be due to lack of proper guidance on the distribution of wealth after one dies. Islam has outlined the method of sharing out the deceased estate to the remaining members of the family. This is prescribed in the Qur'an. Allah (SWT) says,



“It is prescribed, when death approaches any of you, if he leaves any goods that he make a bequest to parents and next of kin according to reasonable usage; this is due from the God fearing.” [Q 2:180]

This tarka (estate) is distributed using the law of *Mirath* (inheritance).

b) Significance of the law of *mirath*

Mirath is among the legal injunctions in the Qura’n that Allah (SWT) Has explained in details. This is to show how the law of inheritance is important to the society.

The law of inheritance is significant because of the following:

1. It liberates the Muslim woman from suppression by allowing her to inherit from her husband as well as her relatives.
2. It shows that resources owned by a Muslim are a trust from Allah and should be re entrusted to other Muslims in a decent manner at the end of one’s life.
3. It promotes fairness and equity in distribution of resources after the death of a Muslim.
4. It eradicates wrangles that may occur after the death of a Muslim.
5. The law safeguards the property from greedy relatives and murderers who may deprive the rightful heir their shares.
6. It creates peace and unity among Muslims when they are sure of how their estate shall be inherited peacefully.
7. It strengthens the economic ability of those heirs left behind.
8. It shows respect to right to the ownership property since only the rightful heirs are entitled to inheritance.
9. It guides the arbitrators on how they can solve any problems that may occur in the course of inheriting the estate.

c) Essentials of Inheritance

Inheritance cannot be conducted until there are three elements. Their absence makes inheritance null and void. These are as follows:

- i. There must be a deceased person who is supposed to be inherited. The deceased must either be dead by fact or by law.
- ii. There must be heirs who are directly related to the deceased. Where there are no heirs, then the property can not be inherited.
- iii. There must be the estate. This refers to the property that belongs to the deceased and is lawful for inheritance.



d) **Conditions for Mirath**

Islam lays down the specific conditions to be met before the heirs inherit the estate of the deceased. These conditions have to be met on the elements i.e. death, availability of heirs and the estate to be inherited.

i) ***Death of a person***

It should be proven that the owner of the estate to be inherited is dead. The property cannot be inherited while he is still alive. One shall be presumed dead in the event of the following:

1. Physical evidence of the death. For example death due to sickness or accident or any other natural cause and people prove beyond doubt that someone has died and the body is buried.
2. When the doctor proves that a person has died.
3. When people are informed by reliable sources like the authority that someone died at a distant place. It means that they did not see the body. An example is a person who left property, but went to another country, continent, or distant place where the relatives lose contact of such a person. If the relatives are later informed by reliable people that the person died and was buried, then the estate of such a person can be inherited.
4. Death can also be presumed on a person. When a ship sinks into deep sea, a plane falls into the ocean or people are buried deeply in a landslide, such people can be presumed to be dead after some days beyond which a normal person is not expected to be alive.

ii) ***Survival of the heirs***

The heirs to the deceased should be alive by the time of his death. These heirs should meet the following **conditions**.

- They must be closely related to the deceased as stipulated in the Islamic Sharia.
- The deceased must be a Muslim and the heirs must also be Muslims. An example is where there are two siblings but one is a Muslim while the other is not, then it becomes haram according to Islam to inherit each other.
- A spouse can only inherit if they were legally married.
- A child will only inherit from his parents if the two parents were married according to the Islamic Sharia on *Nikah*.
- A person who kills either of the parents or any other family member from whom they are entitled to inherit will be not allowed to inherit any estate.

iii) ***Existence of the estate***

The estate includes all the property and the financial gains and debts of the deceased. The estate should be legally owned by the deceased. In a case where the deceased has left no estate because of his poverty or exhaustion of his estate through settlement of debts or was used to cover funeral expenses, then there shall be no inheritance



2. Administration of the Estate of a deceased Muslim

Before distributing the estate of the deceased among heirs the following steps are to be followed:

(a) Funeral Expenses: Islam teaches that if the deceased has any money, then the expenses for preparing for his burial should be paid from this money. These expenses must be reasonably and strictly conform to the Islamic teachings. They include; washing, shrouding of the body, transportation and the burial.

(b) The settlement of debts. After the burial expenses are settled, it is now important that all the debts owed by the deceased are paid off. This includes debts that are not secured or specifically attached to the estate i.e. loans, money owed by people or any other unsettled debts.

(c) Wasiya

The third important thing to be done after settling funeral expenses and debts of the departed is honouring the wasiya (will) and legacies. However, both the will and the gifts shall not exceed one third of the estate of the deceased unless this is consented to by the heirs. The remaining property that is shared out by the heirs is called *Tarika* (the net property). This is distributed according to the specifications of the Qur'an as we shall learn later in this chapter.

3. WASIYA (Will)

The term “wasiyya” comes from an Arabic word “Auswa”, which literally means to enjoin, order, direct or command.

a) Conditions for wasiyya

In order for a will to be valid, there are certain conditions governing its execution. These conditions apply to the will, mu'swi, mu swalahu and al-Wa'swi (executor). Let us look at each of these conditions.

i) Wasiyyah (The will)

- It should not be more than a third of the total property.
- It should either have been pronounced orally or in writing.
- It must be written or pronounced by the owner of the property.
- It should come into operation after the death of the testator.
- It should be witnessed by two male reliable people.
- It should not exclude or curtail the rightful heirs from inheritance.
- It should be executed after all the debts and funeral expenses are settled.
- The content of the will must have halal intentions.
- There must be the estate or property that has been willed out at the time of writing the will.



- It should not show disparity or favour some heirs.
- The intention of the testator must be clear.
- It should state the exact property to be given to the person.

ii) The *Mu'swi* (the person writing the will)

- He or she must be of sound mind.
- He or she must be an adult (one who has reached puberty).
- He or she should write it under his own free will i.e should not be under compulsion.
- He or she must have the legal capacity to dispose of whatever he bequeaths in his will.
- He or she has the right to revoke his previous will by a subsequent one.
- He or she must own the property which has been willed out.
- He should not give out more than one third of the total property unless the heirs agree or there are no legal heirs at all or the spouse is the only surviving legal heir.

iii) The *Mu-swalahu* (the person in whose favour the will is written)

- The mu'salahu must be alive at the time when the will is executed.
- Those included in the will should not be rightful heirs.
- He or she can accept or reject the bequest only after the death of the testator.

iv) Al-Wa'swi (the executor)

- He should be trustworthy, truthful and just.
- He should carry out the wishes of the testator according to the Islamic Sharia.
- The executor can either be male or female.
- He should consider the interest of the children of the deceased and that of the estate.
- He or she can either be a Muslim or a non Muslim. If he is a non Muslim, he must follow the Islamic Sharia.
- The authority of the executor should be specified in the will.
- If the executors are more than one, the testator must state if each executor can act independently of the other(s).

b) Significance of wasiya

1. It gives the deceased an opportunity to help the poor, the needy and other vulnerable people in the society.
2. It eradicates favouritism among heirs.
3. It inculcates discipline among the heirs while handling the property of the deceased.
4. It prevents quarrels, wrangles and fights among family members.
5. It accords the rights of business partners, workers and third parties.



6. It encourages individual members in the society to be dutiful, responsible and exercise love and care since whoever does contrary to this may be exempted from the will.
7. Those bequeathed get a chance to better their lives from the property left for them.
8. A will creates a strong bond of relationship between the mu'swi (deceased) and the mu'swillahu. It can therefore be used in the appointment of a guardian for the children.
9. It cements love and friendship among the family members.
10. Controls against fraud or misappropriation of the estate.

HEIRS AND THEIR SHARES

The following table shows how the heirs get their shares:

CASE NUMBER	DECEASED	HEIRS	CONDITION	SHARES
1	Father or mother	Children (brothers and sisters)	As the only heirs	The male's portion is twice that of female. (ratio 2:1)
2	Father or mother	Two or more daughters	As the only heirs	2/3
3	Father or mother	One daughter	As the only heir	1/2
4	Daughter or son	Parents (father and mother)	If deceased left children	1/6 (to each)
5	Daughter or son	Mother	If no children	1/3 (to the mother)
6	Daughter or son	Mother	If deceased left brothers or sisters	1/6 (to the mother)
7	Wife	Husband	If wife leaves no children	1/2
8	Wife	Husband	If wife leaves a child	1/4
9	Husband	Wife	If husband leaves no child	1/4



10	Husband	Wife	If husband leaves a child	The wife gets 1/8.
11	Husband or wife	One brother or one sister	If no ascendants (father/mother/grand parents) 12nor descendants (children/grandchildren)	1/6 to each of them
12	Husband or wife	More than two brothers or more than two sisters	If no ascendants (father/mother/grand parents) nor descendants (children/grandchildren)	They share 1/3 among themselves.
13	Brother	One sister	If deceased leaves no child and also no descendant or ascendants.	1/2
14	Sister	Brother	If the deceased left no child and also no descendant or ascendants.	Brother takes her inheritance (Qur'an gives no fraction)
15	Brother	Two sisters	If the deceased left no child and also no descendant or ascendants.	2/3 shall be divided between them.
16	Brother	Brothers and sisters	If the deceased left no children and also no descendant or ascendants.	Brothers to have twice the share given to sisters. (ratio 2:1)

Table 1: A summary of the distribution of the heirs' shares

The following are examples of two cases that guide as to understand the above table on the distribution of inheritance among heirs:

Example of Case 1 and Case 4

When Khalid died, he left an estate that was valued at Ksh. 90,000 (Ninety thousand). He was survived by his parents, his two sons, Ayub and Suleiman, and his two daughters, Fatma and Zahra. Calculate the shares each is entitled to inherit.

Form this example we can deduce the following information:

- The deceased is a son (Khalid)
- The heirs are both parents of Khalid.
- The condition is the children are alive. (Two daughters, Fatma and Zahra and two sons, Ayub and Suleiman.)

SOLUTION:

The parents are entitled to 1/6 each (i.e. father will get 1/6 and the mother will get 1/6)

While the children are entitled the remaining share at a ratio of 2:1 (male to female).

These shares are calculated as follows:



STEP 1: Father = $\frac{1}{6} \times \text{Ksh. } 90,000 = \text{Ksh. } 15,000$
 STEP 2: Mother = $\frac{1}{6} \times \text{Ksh. } 90,000 = \text{Ksh. } 15,000$
 (Therefore, the parents will get a total of Ksh. 30,000)
 Children will get the remainder of the tarka i.e. $\text{Ksh. } 90,000 - \text{Ksh. } 30,000 = \text{Ksh. } 60,000$
 The children's shares should be at the ratio of 2:1 between the boys and girls.
 STEP 5: Sons = $\frac{2}{3} \times \text{Ksh. } 60,000 = \text{Ksh. } 40,000$
 STEP 6: Each son will get Ksh. 20,000
 STEP 7: Daughters = $\frac{1}{3} \times \text{Ksh. } 60,000 = \text{Ksh. } 20,000$
 STEP 8: Each daughter will get Ksh. 10,000

INSERT

Answers to study questions and activity

1. State the conditions that the survivors to the deceased must meet for them to inherit.
2. Explain the significance of Wasiya.

ACTIVITY

Case study:

Hamadi has died. He has left a tarka worth 120,000/= and is succeeded by a wife, his father and children; Maryan and Mohammad.

Using the distribution table of inheritance, discuss in groups of five how the Tarka of the deceased shall be shared.

CHAPTER SEVEN

TIJARA (TRADE AND COMMERCE)

Islam provides a comprehensive code of conduct and a perfect way of life. Apart from moral and spiritual aspects, Islam also addresses and guides Muslims on his economic life. Trade and commerce plays a very important role in acquisition of wealth. This has been so since the time of *Jahiliya* (pre-Islamic Arabia) when Arabia was a center of economic activities. Trade and commercial undertakings should be conducted according to the regulations laid down in Islam. This rules aims at ensuring that the citizens conduct themselves well during any business dealings.

1) Wealth and property

a) Islamic teachings on the acquisition of wealth



Have you ever thought of being rich? Through which means do you intend to acquire your wealth? Although Islam has not prevented one from living happily in this world but it is important to note that Islam has laid down measures to guide a Muslim in the acquisition of wealth. Islam is very keen as has placed restrictions on the ways and means through which a Muslim may obtain his wealth. The principles of supply and demand as practiced in the world also apply in the Islamic finance but with strict adherence to the Sharia. We must realize that Allah (SWT) has not discouraged Muslims from enjoying the bounties He Has bestowed on them on earth but should not go beyond the limits set by Allah (SWT). Islamic economic system has put in place certain restrictions in the acquisition of wealth, properties and owning of goods. The following are some of the Islamic teachings on the acquisition of wealth and property:

- You should acquire your wealth through legal means.
- Use the wealth you acquire to please Allah (SWT) through giving of zakat, sadaqa, assisting the needy among other useful ways. Do not use the wealth extravagantly.
- All transactions involving trade should be transparent.
- You should not exploit or take advantage of the customer or other business parties for his own gains.
- You should honour agreements and contracts in a business transaction.
- Have trust in Allah (SWT) as the provider and sustainer such trust should lead one to working hard and keeping his performance at its best while fearing Allah (SWT) in the acquisition of wealth.
- While transacting business there should be mutual consent between the parties.
- Mutual respect and consideration for others is a virtue that should be observed during acquisition of wealth.
- Agreements between parties, involving future obligations should be recorded.
- Practice justice, honesty and fairness between each other regardless of race, faith, creed, ethnic background or any other differences.
- Be considerate and take into account the interest of the others in the acquisition of wealth. Do not engage in activities that may bring harm to the community or the environment.

b) Sources of earnings

Islam encourages every member of the society to be productive and strive to earn a living. There are two forms of earning, either legitimate (legal) or illegitimate (illegal). A Muslim is encouraged to obtain wealth through legal means.

The following are some of the legitimate sources of earning:

i) Legitimate sources of earning



1. Trade activities on lawful commodities

Islam has permitted all legal trade. However, a Muslim should follow the Islamic teachings while carrying out his business. We shall look at the lawful and unlawful act in trade later in this chapter. You should make reasonable profit during trading activities.

2. Agricultural activities

Agriculture consists of arable activities which are mainly concerned with growing of crops or keeping livestock for subsistence and commercial purposes.

3. Employment activities

A Muslim can earn his or her income through legal employment. It is the provision of human expertise and services in exchange for money. This may include; service industry like teaching, hotelier or working in production industries or institutions among others. Through this employment, when may earn salaries, wages or commissions.

4. Investment e.g. house rent on commercial house, business premises, rates on land and income from rented equipment e.g hiring of tends, farm plantations among others.

ii) Illegitimate earnings

Such earnings are haram and a Muslim is prohibited from consuming. The sources of such earnings are as:

- i. Hoarding of goods.
- ii. Smuggling goods or transacting business in black market.
- iii. Dealing in harmful and expired products.
- iv. Money or capital obtained through gambling or games of chances. Islam teaches one to earn through his own sweat yet the process of gambling involves earning without striving. Easy money or money without work is prohibited in Islam.
- v. Engaging in products that are haram like narcotics, intoxicants, pork and other prohibited products.
- vi. Selling items that are legal while one is certain that they will be used for illegally e.g drugs (knowing that they are going to be abused), weapons and fruits (knowing that they will be used to make intoxicants).
- vii. Mediation and brokerage of goods that are haram e.g wholesalers and commission agents in businesses that are haram.
- viii. Rent and rates from properties leased to haram businesses e.g brothels, bars, casinos, night clubs among others.
- ix. Utilities that offer services that are haram e.g. lodges from where adultery, fornication and other prohibited activities are carried out.



- x. Child trafficking, slavery, conman ship and any other way that is suppressive to human dignity.
- xi. Acquiring property through fraud or devious means.
- xii. Exploiting the weak by taking advantage of their weakness to enrich oneself e.g. exploiting widows, orphans, divorcees, physically or mentally impaired persons among others.
- xiii. Sale of animals that are haram according to the Qur'an and hadith. However when a halal animal dies before it is slaughtered a Muslim is allowed to use its parts such as; skins, horns and bones e.g for industrial purposes.
- xiv. Illegal farming like the cultivation of bhang.
- xv. Trade on stolen, looted and vandalized properties or items.
- xvi. Any kind of business transaction involving uncertainty. The Sharia forbids transactions involving unspecified quantities and acceptance of money where there is uncertainty e.g acceptance of money for fish in the river or a bird in the air. However if the level of uncertainty is minimal, the transaction is allowed. It should also be noted that Islam allows payment on goods to be delivered at a later date when the measurements are known.
- xvii. Acquiring money through usury (interest).

2) Trade and commerce

a) Honesty in trade

Can you recall any incident where you went to a shop or a market place and realized some dishonesty done to you by the retailer? Explain briefly to your class why you feel that the retailer was dishonest? Islam calls for traders to be sincere and honest when conducting trade because it is one of the greatest virtues.

In Surat ul Israi Allah says:

“Give full measure when ye Measure, and weigh way with a balance that is straight: That it is the most fitting and the most advantageous in the final determination.” [Q 17:35]

In Surat ul Mutaaffin, Allah (SWT) also says:

“Woe to those that deal in fraud. Those who, when they have to receive by measure from men, exact full measure, But when they have to give by measure or weight to men, give less than due. Do you not think that they will be called to account?” [Q 83:1-4]

From the above verses we learn that:-

- i. Fraudulent trade is prohibited in Islam.



- ii. Allah doesn't allow misappropriation of wealth and misuse of other people's resources by false means.
- iii. The right measure should be taken because excess measure in purchasing and less measure in selling is equivalent to stealing the extra amount.
- iv. Business is a commitment before Allah (SWT) and the trader must have the consideration that he is seen by Allah (SWT), so any virtue is a good deed performed before Allah while any misdeed is an evil committed before Allah.
- v. People will be brought back to life on the day of Judgement and will be asked to account for everything they did, including their trading activities.
- vi. Those who conduct their businesses honestly will get goodwill and legitimate earnings in this world and be rewarded by Allah (SWT) for their honesty in the hereafter. Conversely, those with bad business practises will pile up illegitimate earnings in this world and be punished for their evils in the hereafter.

Importance of honesty in trade

- i) It enables a Muslim business man to make lawful profit.
- ii) Through honesty a business man will maintain a good relationship with his customers.
- iii) It enhances truthfulness in all trading activities and one will not engage in vices like price hiking.
- iv) Allah blesses the business that is done with honesty.

b) Record keeping

Read [Q 2:282-283]

For a Muslim to run a successful business he needs to keep accurate financial information. There are several documents that a business person is required to maintain. Can you mention some of them? Apart from the ones that you have mentioned, we also have the following: receipts, delivery notes, invoices, inventories, bank slips. The keeping of business records is essential in an Islamic business environment. Allah (SWT) has ordained the keeping of records Surat ul Baqara:

"O you who believe! When you deal with each other, in transactions involving future obligations in a fixed period of time, reduce them to writing. Let a scribe write down faithfully as between the parties: let not the scribe refuse to write: as Allah Has taught him. So let them write..." [Q 2:282]



From the above verse, we learn that record keeping is essential in all business matters. The following teachings should guide a Muslim during the writing and keeping of records:

1. The scribe who can be the accountant, bursar or any person authorized by the trader to write should keep records with fairness and without favouritism.
2. The scribe should be objective in recording because that knowledge is a treasure from Allah.
3. The scribe should write exactly what the owner is dictating.
4. Where the owner cannot dictate (due to such disabilities as impairment or sickness), the guardians of his interest e.g. his or her next of kin, business partner(s) and professional employees should dictate in truth and fairness.
5. There must be two male witnesses or one male and two female witnesses who will witness the dictation as well as reminders in case of forgetfulness.
6. Anything, whether big or small in the terms of the dealings should not be left out.
7. For cash transactions, the records may either be kept or not, depending on the necessity.
8. To harm, terrify or kill the witnesses in order to corrupt the evidence written is a sin.
9. It is important for both parties to observe trust in honouring their pledges.

As we have mentioned earlier, it is important for a Muslim trader to always keep records in his or her business transactions. This is significant because of the following reasons:

- It allows time for the trader to monitor the success or failure of the business.
- Good records help one to easily retrieve information about the business and also to know its progress.
- It is an easy way of identifying threats, opportunities or weaknesses in the business.
- It assists one to have information on the financial consequences of his or her decisions.
- Well kept and up to date records help one to clear doubts in the business.
- They help when transferring business or property to the heirs or next of kin.
- The records help you in maintaining a good relationship with your customers.

c) Lawful and unlawful acts in trade

Even though trade has been allowed in Islam, there are some acts that are lawful and others that are unlawful according to the Islamic law. As we had discussed earlier in this chapter, whatever a Muslim does should be in line with the teachings of the Qur'an and the prophet's tradition. Likewise, issues to do with business transactions and trade must avoid all that have been



prohibited and encourage that which has been ordained. In our study, we shall look at the following lawful and unlawful acts during business dealings:

i) Money lending

Islam has allowed money be lent to those who are in need on the grounds that it will be paid back to the owners. According to the Qur'an, there should be a written record of the money lent in the presence of reliable witnesses. The amount lent out should exactly be the amount to be paid back. Anything more paid shall constitute *riba*, which is highly forbidden in Islam. At the time of taking a loan, the borrower should be truly concerned to repay it within the stipulated time. If the borrower cannot repay the loan in lump sum, he should make it clear beforehand and promise how he wishes to repay it. We must realize that Allah (SWT) will cause humiliation (in this world) and shall punish (in the hereafter) those who take a loan with a bad intention.

Abu Hurairah (RA) related that the prophet (ﷺ) said, *'The person who takes wealth from people with the intention of repaying it, Allah will assist him in the repayment of that loan. The person who takes wealth from people with the intention of squandering it, Allah will cause him destruction.'* (Sahih Bukhari, Musnad Ahmad bin Hanbal)

ii) Riba (usury or interest)

The word 'interest' is referred in the Holy Qur'an as *Riba* or *Al-riba* (usury) which means 'excess'. In the Islamic Sharia, *riba* is any excess amount which is levied or charged beyond the amount that is borrowed at the time of its re-payment. In the present world, there are many financial challenges that may drive a Muslim into taking loans charged with interest. However there are ways in which a Muslim may avoid such institutions that are unislamic. Muslims should set up Islamic financial institutions e.g Islamic banks which are interest free, interest free micro-lending that will avail small sums of money at zero rated interests.

Allah (SWT) has forbidden interest in the Holy Qur'an. He says,

"Those who devour usury will not stand except as stands one whom the Evil One by his touch has driven to madness. That is because they say: 'Trade is just like usury' But Allah has permitted trade and forbidden usury. Those who after receiving direction from their Lord, desist, shall be pardoned for the past; their case is for Allah (to judge); But those who repeat (the offence) are companions of the Fire; they will abide therein (forever). Allah will deprive usury of all blessing, but will give increase for deeds of charity; for He loves not creatures ungrateful and wicked. Those who believe, and do deeds of righteousness, and regular prayers and regular



charity, will have their reward with their Lord: On them shall be no fear; Nor shall they grieve. O you who believe! Fear Allah and give up what remains of your demand for usury, if you are indeed believers. If you do it not, take notice of war from Allah and His Messenger: But if you turn back, you shall have your capital sums; Deal not unjustly, and you shall not be dealt with unjustly.”[Q2:275-279]

We can learn from the above verses that:

1. Believers should refrain from all kinds of *riba* (usury/interest)
2. However much one will see trade and interest resembling, Allah has forbidden usury and permitted trade.
3. Whoever repents and refrains from the practice of *riba* and keeps the past profits and Allah knows best.
4. Those who practice usury will abide in hell forever for their impiety and guilt.
5. Any excess given for the sake of charity or alms is allowed and is not counted as usury.
6. Whatever remains from usury should be given out but not consumed.
7. Those who repent for taking *riba* should have their principal and forego the interest.
8. Everybody should practise fairness so that nobody is wronged or wrongs another.

Effects of Riba (interest)

The person who charges interest and the one who pays it are equally guilty according to the Islamic Sharia. Apart from the two parties, even the persons writing the documents and bearing witness to the transaction are condemned although they may not have an active role in the deal. The curse and wrath of Allah (SWT) is cast upon any person who gets involved in the transactions involving *riba*. *Riba* earns a person a severe penalty before Allah (SWT) because it is based on suppression, selfishness and exploitation. Devouring interest has adverse effects on a Muslim both in this world and in the hereafter. Some of the effects of *Riba* are as follows:

- i) Allah (SWT) does not accept charity of wealth earned through *riba*, and the giver does not receive any blessings in it.
- ii) It encourages selfishness, lust and greed for wealth.
- iii) Allah (SWT) does not grant the *dua* (supplication) nor give blessing to those who engage in *riba*.
- iv) It breaks the interpersonal relationship and cohesion among members of the society.
- v) In a society where interest is the order of the day, the gap between the rich and the needy is widened.



- vi) One who fails to pay can be psychologically affected leading to strain and even committing suicide.
- vii) Whoever takes riba is a companion of shaitaan and shall be cast into the hell fire.
- viii) The heart of the one who engages in riba becomes corrupt, and as result it turns away from the remembrance of Allah (SWT).
- ix) It encourages corruption, injustice and violation of human rights.
- x) It leads to debt bondage or debt slavery whereby the needy are always owed by the rich and hence whatever they earn, no matter how small it is, is already consumed as part of the payments. This may be inherited by the heirs.
- xi) Any consumers of ribaa will be punished in the grave, and on the day of judgement will rise from their graves while suffocating and in the state of insanity.

iii) Hoarding.

Islam encourages freedom for individual and natural competition in trade and condemns all practices driven by greed, ambition and selfishness. It also condemns the habit of a trader who accumulates wealth at the expense of other traders and enriches himself by manipulating the prices of goods and other necessities. Hoarding is the hiding of essential commodities so as to cause an artificial shortage so that to sell at higher prices in times of scarcity. Such scarcity causes difficulty in the community and unnecessary suffering. The Prophet referred to those who hoard goods as sinners and cursed people. The Prophet (PBUH) said, *“If anyone withholds goods until the price rises, he is a sinner.”* (Muslim)

The Qur'an also condemns the practice of hoarding. Allah (SWT) says,

“...those who hoard gold and silver and spend it not in the way of Allah, give unto them tidings of painful doom, on the day when it will be heated in the fire of hell, and their foreheads and their flanks (the upper part that supports the stomach) and their backs will be branded therewith (and unto them will be said): Here is what you hoarded for yourselves. Now test of what you used to hoard.” [Q 9:34-5]

Therefore hoarding is an evil that will earn a grievous punishment for those who practice it.

Effects of hoarding

- i) It leads to unnecessary suffering among people in the society due to lack of basic commodities.
- ii) People end up buying goods at very high prices.
- iii) It brings about uncalled for shortages of goods.



- iv) The hoarded goods may expire thus affecting the health of the consumers.
- v) It derails a person from the path of Allah (SWT) and is promised a painful retribution by Allah (SWT). Allah (SWT) says,
“O you who believe! There are indeed many among the priests and anchorites, who in falsehood devour the substance of men and hinder (them) from the way of Allah. And there are those who burry gold and silver and spend it not in the way of Allah: announce unto them a most grievous penalty.” [Q 9: 34]
- vi) It creates disunity and enmity among members of the society due to the suffering caused by those who practice hoarding.
- vii) Allah (SWT) has cursed the person who engages in hoarding. In a Hadith narrated by Umar (RA) from the Messenger of Allah who said: *“Bringer of food-grains (to a city) is given provision, and the monopoliser is cursed.”* (Ibn Ma’ja)
- viii) It is a form of exploitation and whoever engages in it earns sins from Allah (SWT).
- ix) It will encourage other vices such as stealing, vandalism, intolerance among others.
- x) It ruins relationships among members of the community
- xi) It encourages selfishness yet Allah (SWT) teaches Muslims to share the wealth we have with the needy and the disadvantages than to hide it away where it benefits no one.

iv) Buying and Selling

You must have been to a market place and witnessed people buying and selling goods. Can we have any business transaction without a seller or a buyer? How was the relationship between the buyers and the sellers in your market place? It is important to note that in any business transaction, there must be a seller and a buyer. Islam teaches that economic organization is in the hands of Allah (SWT) and he is the one who connects the needs of some people with those of others. The buyer and the seller are therefore in need of each other and as such there is no way one can do without the other. Allah (SWT) says in the Holy Qur’an,

“It is they who would portion the mercy of your Lord? It is We who portion out between them their livelihood in the life of this world: And we raise some of them above others in ranks, so that some may command work from others. But the mercy of your Lord is better than the (wealth) which they amass.” [Q 43:32]

Conditions of buying and selling in Islam:

- In Islam, trade transactions become invalid if either the seller or the buyer is a slave, insane or a minor e.g. this is because these groups of persons are not legally accountable of the transactions.
- There should be seriousness in the business matters between the seller and the buyer e.g there is no reality for a seller who jokingly says: ‘I will sell you my house for forty shillings.’
- A seller and a buyer should willingly transact their business without either party being compelled.



- The property exchanged should be owned by them or by the representative(s) of the original owner or both or one of them is a guardian of a minor.
- It is obligatory that the quantity of the product should be known by measurements such as height, weight, volume or number.
- The buyer should be able to pay for the items he is buying i.e it is unfair for the seller to negotiate for the sale of an item only to discover later that the buyer is not in a position to settle the payment.
- The seller should be capable of taking the commodity into possession. According to this, it is not proper to sell an animal that has fled from its owner.

Rights of the buyer

- The right to accept goods and inspect them before taking them into one's possession is allowed in Islam. For example electronics should be tested before hand.
- The buyer has a right to reject defected goods or those that do not meet the standards as agreed by the two parties.
- He should be informed about any defects in the goods he or she is buying. According to this, the seller should willingly show and explain to the buyer any defects in the goods so that the buyer accepts with a clean heart.
- The seller should not withhold any documents that may have been purchased with the items that would assist the buyer in the operation of the products e.g user manuals.
- He has the right to choose the goods he wants i.e the seller should not restrict the buyer from selecting the item he or she desires to buy in a case where there is a choice.
- The buyer should be issued with a receipt for the purchased goods. This is important to the buyer for record keeping and for security purposes.
- The seller should not remove parts of the product which are supposed to be sold together with the product with the view of making profit by selling it separately.

v) Monopoly (or ihtikaar)

Ihtikaar is Arabic word which means monopoly. It is the exclusive possession or control of the supply of services or trade commodities within an area. For example;

- Buying goods and products from traders before it reaches the market so as to sell it at your own price,
- Selling goods to persons who are unfamiliar with the market i.e the seller takes advantage of the buyer's lack of knowledge of the market and the prices for his selfish ends.

We cannot restrictively and exhaustively define the term monopoly due to its various types.

Due to these different types, it is important for us to identify some the conditions under which monopoly is allowed in Islam. These are as follows:

- a. The price charged should not be too high to exploit buyers.



- b. Other sellers should only be barred by other conditions of entry apart from favouritism and biasness.
- c. The sellers should not intentionally hike the prices abruptly and drastically without notifying the buyers.
- d. The system of distributing goods and services should be fair and not be discriminatory.
- e. The monopoly should not be attained through, blackmail, cut or any other unfair means.

3) Agreements and contracts

In any business a person does not give what he or she has in return for nothing. Hence, it is very important for him or her to take precautions in any business transactions. This is usually done through entering into an agreement or signing a contract with the parties involved. An agreement is a mutual understanding between two parties for the sake of transactions, payment, exchange or transfer of property among others. A contract is an agreement to undertake a programme, business, or investment for a given period of time that may involve acquisition of ownership and transfer of property or services. As Muslims, we are encouraged to understand the subjects of contracts and agreements. The contracting parties should make clear their intentions to take part in the transactions i.e. the person offering (Ijab) and the one accepting the offer (Qubul). Contracts and agreements must fulfill certain conditions as follows:

a) Conditions of agreements and contracts

For agreements to be valid, they have to follow the following conditions:

- i. The contract and agreements should be clear and in a language that is understandable to both parties and their witnesses.
- ii. They should not involve goods and services that are haram e.g. any agreement concerning intoxicants, zina, usury is void.
- iii. They should conform to the teachings of the Qur'an and hadith.
- iv. There should be free consent of the parties concerned i.e. they should not be forced into the contract.
- v. The parties concerned should be aware of the terms in the contracts or agreement.
- vi. The parties involved should have attained maturity. i.e. Mukallaf
- vii. There must be witnesses i.e. either two male or one male and two female.
- viii. It must contain a termination clause that states how the agreement or contract can be terminated.

b) Factors that invalidate agreements and contracts



The following factors render a contract or agreement null and void:

1. Death of any of the parties involved.
2. Misunderstanding of the parties where there is fear that the pledge will not be honoured.
3. Insanity of either of the parties.
4. Where the contract or agreement is contrary to the teachings of Islam. i.e transactions that are dealing with the haram.
5. Where there will be negative impact on Islam e.g. suppression or war against Muslims.
6. Where one of the parties is not a *mukhalaf* (mature).
7. If the contract has not been written down.
8. Where force or trickery has been employed to influence the pledge.
9. Where some information was not disclosed such that one of the parties was not fully aware of the elements of the agreement or contract.
10. Where there were no reliable witnesses to the agreement or contract.

4) Corruption

This is defined as spiritual or moral impurity or divergence from an ideal. It can also be referred to as the wrongdoing on the part of an authority or powerful party through means that are unlawful, decadent, or contrary with ethical standards. For example a person being dishonest or has fraudulent conduct. In the Qur'an, Allah (SWT) has used the word *fasad* in reference to corruption. Allah (SWT) says,

“When it is said to them: “Make not mischief on the earth,” They say: “Why, we only want to make peace.” [Q 2:11]

This vice may include many activities such as bribery and misappropriation. Government, or ‘political’, corruption occurs when a person in power makes decisions that concern others in favour of his own interest. Corruption can be due to real needs caused by income or greed and desire to live good life beyond one's means. This evil that has cropped up in the society is definitely a sinful act and all benefits derived from it are unlawful. We are aware that any income from unlawful means is forbidden in Islam. The person involved in unlawful income will have no abode in the hereafter but will dwell in hell. Let us now look at the causes of corruption:

a) Causes of corruption

Corruption may arise due to the following:



- i) Segregation on social, political, economic lines. For example racial and religious differences where individuals favour only members of their group.
- ii) Greed for acquiring wealth where people compete to be economically better than others.
- iii) Nepotism and favouritism where people want to reserve every fortune to the members of their families and clans.
- iv) Lack of faith. Any Muslim who fears Allah (SWT) will shun corruption since it has been prohibited by Allah (SWT).
- v) Weak, corrupt or absence of management systems.
- vi) Weak judicial system. In this situation, there is no enforcement of the law.
- vii) Misuse of power vested upon individuals or offices.
- viii) Lack of professional integrity, transparency and accountability among people.
- ix) Inefficient public sectors which results in a state of lawlessness.
- x) Breakdown of social values and norms.

b) Effects of corruption

Any vice has its own repercussions to the individual both rich and the poor or society in general. Corruption has adverse effects on the economic, social, political and the environment. Some of these effects are as follows:

1. The curse of Allah (SWT) is upon the one who pays a bribe, the one who takes it and the mediator between the two.
2. Corruption leads to division of people on tribal and religious lines.
3. Corruption erodes democracy and impedes the rule of law and undermines the visions of governance. Public institutions and offices may lose their legitimacy due to corruption.
4. Widening of the gap between the rich and the poor.
5. Vicious cycle of poverty among those who live below poverty line.
6. Slow pace of development because some areas will be marginalized.
7. Political corruption breeds lack of productivity and creativity to put sound policies, which could lead to development.
8. Misallocation of resources to areas that are more favoured by those in authority.
9. Inhuman feelings that make the poor and the needy to be ignored.
10. Hatred between the rich and the poor because the poor see the rich as grabbers and a source of suffering resulting in social inequality.
11. Lack of blessings from Allah as people become inhuman and heathen.
12. Social evils e.g. robbery, prostitution, drug abuse etc.
13. This vice has channelled the benefits of development to a few hands while majority are languishing in poverty.
14. This dishonest and illegal behaviour has resulted suspicion, jealousy and hatred among people.



15. Continuous exploitation of the poor by the rich due to increased cost of life.
16. When this happens, it can easily lead to gross inefficiencies both financially and productivity wise resulting in downfall of governments.

c) Remedies for corruption

Corruption can be stopped or avoided through various ways. Among them are the following:

- i. Following the teachings of Allah (SWT) about acquisition of wealth as well as use of power and authority.
- ii. Muslims should act with God consciousness in any economic activities or responsibilities.
- iii. Legislations should be passed to regulate the use of power in offices.
- iv. There should be national unity rather than affiliation to parties, religions etc in appointments.
- v. Rationality and fairness by the public service commission and directorate of personnel Management in offering employment positions.
- vi. Civic education should be done to sensitize the public on their roles in politics, religion and nation building without conflicting interest.
- vii. Laying out strategies for a nation with balanced development.
- viii. Prosecuting the corrupt so as to serve as an example to others.

Answer the following questions and activity in your I.R.E revision books

1. Identify the legal and illegal sources of earnings.
2. Explain the importance of honesty in trade.
3. Identify the effects of corruption.
4. What are the Islamic teachings on agreements and contracts?

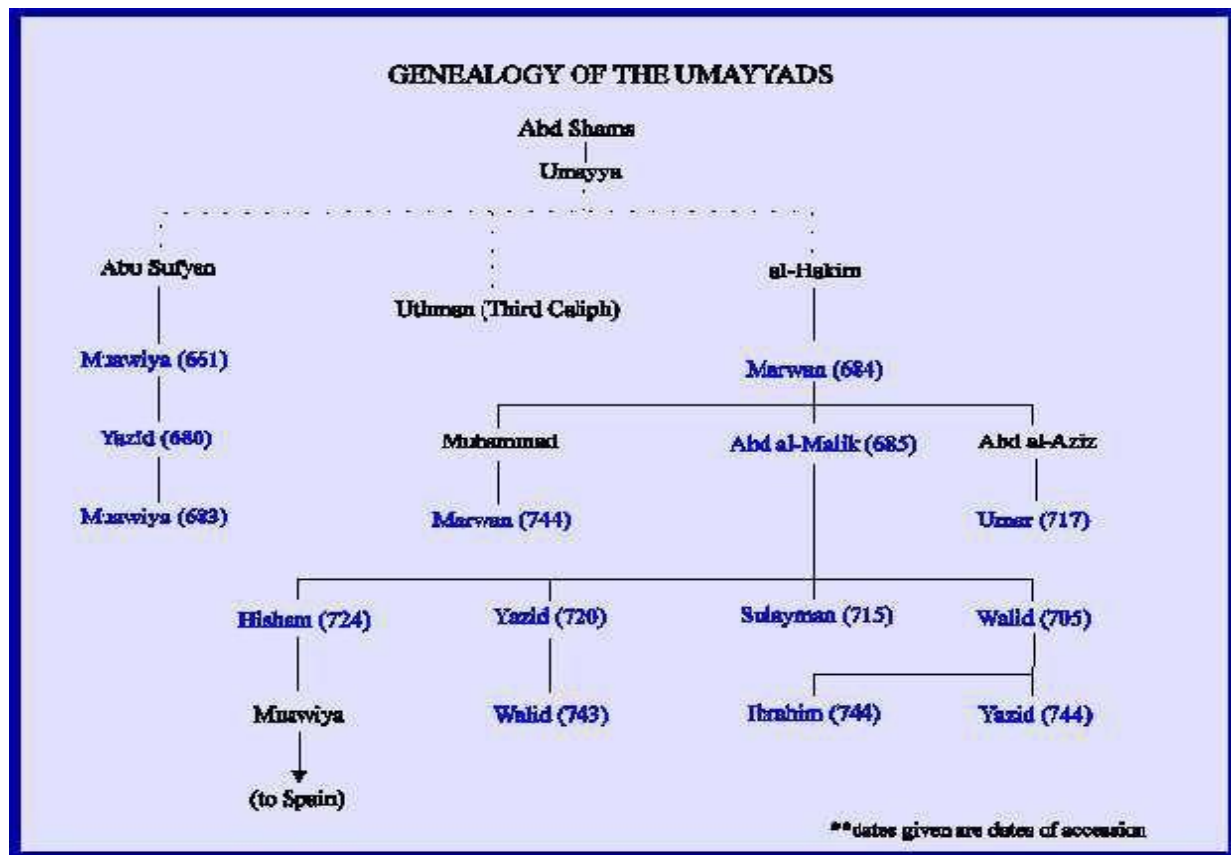


CHAPTER EIGHT

HISTORY OF ISLAM

THE UMAYYAD DYNASTY





The Umayyads were the first among the great Dynasties that ruled the Islamic world. Its rule lasted close to 90 years(660-750 C.E) It derived its name from Ummaya bin Abd Shams, a great grand father of Muawwiya who was the first Caliph of the Dynasty. The clans of Hashim and Umayya had been competitors since the time of the Prophet and had constantly tried to out do each other both in leadership and trade. When the Prophet was alive, most of the Umayyads embraced Islam and become great supporters of the Prophet. Among such supporters was Muawwiya bin Abu Sufyan. However, the Umayyads were still awaiting an opportunity to take the leadership from their arch rivals. This happened during the time of Ali as a Caliph when Muawwiya refused to step down as a governor of Yemen leading to the battle of Siffin. Muawwiya greatly advanced and won the support of all the Syrian prompting him to call for the cessation of Syria.

Upon the death of caliph Ali (RA), the people of Kufa supported his son Hassan to succeed him. However, Hassan could not prevail due to the superiority of Muawwiya and the military support he had. Hassan therefore opted to resign and Muawwiya assumed the reigns of power, thus becoming



the first caliph of the Umayyad dynasty. We are now going to look at some of the reasons that contributed to the rise of this dynasty.

Reasons for the rise of the Ummayyad dynasty

1. Ancient rivalry between the Banu Hashim and Banu Umayya. One of the characteristics of pre- Islamic era was clan rivalry which was as a result of struggle for leadership and management of resources. The rivalry between the two clans (Banu Hashim and banu Ummaya) once again emerged with each clan trying to clinch the leadership of the Muslim Nation.
2. Failure of Caliph Ali (RA) to bring to book the murderers of Caliph Uthman (RA). Caliph Uthman was from the Ummayyad clan therefore the Banu Ummayya called for murderers' punishment as it was the tradition of the Arabs.
3. Shifting of the Muslim headquarters from Makkah to Syria by Mu'awiyah and Madina to Kufa by Ali.
4. Death of Uthman and the calls for his avange led to disunity in the Muslim nation. The supporters and the clan of Umayya continued to challenge Ali (RA) to punish the murderers.
5. Constant revolts faced by Caliph Ali (RA) weakened his army e.g the Battles of Siffin, Battle of the Camel and Nahrawan. After the Battle of Siffin the arbitration process which declared Muawwiyya as the winner brought more instability.
6. The results of the Battle of Siffin leading to division among Muslims. Arbitration during this battle greatly divided the camp of Ali and Mu'awiyah eventually emerging strong. It led to the emergence of Khawarij movement that contributed to the weakening of Sayyidna Ali (RA).
7. Refusal of Muawwiya to step down as the governor of Syria ignited the battle of Siffin. As he had been appointed by Uthman who had been placed by his clan member in more influential post in the government
8. Muawwiya took an advantage of the large and fertile Syrian district to strengthen his army and win support from the Syrians.
9. Unity among the Umayyads to give support to Mu'awiyah as their caliph. This is because during the reign of Caliph Uthman, the Ummayyad clan had enjoyed maximum priviledges.

Umayyad Administration

When the Umayyad took over the leadership of the Islamic empire, there were several changes that happened in both the administration and the leadership style. One of Mu'awiyah's first tasks was to



create a stable administration for the empire. He followed the main ideas of the Byzantine Empire which had ruled the same region previously, and had three main governmental branches:

- Political and military department
- Tax collection department
- Religious administration.

Each of these was further subdivided into more branches, offices, and departments to form a very stable administration. We shall now look at the features of the Umayyad administration as follows:

Features of the Umayyad administration

1. The caliph was supreme the leader of the empire and this position became hereditary.
2. The empire was sub divided into various regions comprising of Syria-Palestine, Basra- Persia, Yemen- South Arabia, and Kufa- Iraq among others.
3. Each region had a govenor appointed by the Caliph to serve in the best interest of the caliph.
4. The Umayyads established a Monarchy that served the best interests of the Arabs.
5. They established a well trained army to defend the state from any attacks and give security to the caliphs. The army was divided into five bodies: The center, two wings, and the van guard (fore front) and the rear guard.
6. The Umayyad had a judiciary system with a systematic way of appointing judges succeeding each other. The judiciary had courts of justice managed by Muslim Ulamas (Scholars). All religious issues were resolved and addressed by these Muslim scholars.
7. The revenue department was lead by a special officer appointed by the caliph. All the income from the kharaj (land tax), jizya (poll tax), zakat, customs and duty were kept by this department. However, the expenses of the local administration were met from the local income.

Decline of the Umayyad

Even though the Umayyad became a very successful empire for a period of ninety years, it was unable to outwit the many opposing groups and internal challenges they faced. Finally, the Umayyads had to bow and leave the leadership of the empire. We shall now look at the reasons that led t the decline of the Umayyad Dynasty:



- Some Umayyad caliphs and Governors imposed very tough and inhumane policies to their subjects and the opposition. This caused rebellion from the people. For example, Al hajjaj bin Yussuf at one time laid a siege on the Kaaba after being prevented to perform Hajj he bombarded Makkah and attacked the pilgrims.
- Internal conflicts. In addition to the almost continuous challenge presented by various groups, the Umayyads faced difficulties from fellow Arabs, due to class differences. Groups like the Alids and the Abbasids felt that they had the right to the leadership of Islam.
- The ruling class had acquired great wealth from its territorial gains, and its luxurious lifestyle contrasted with the poverty faced by many of the empire's subjects. Most people therefore agitated for a change in the management of the state affairs.
- Succession disputes among the ruling family led to division of power and struggle to attain leadership. There were disagreements and fights among family members over who had the right to inherit especially when some Caliphs appointed two successors. This happened during the time of al- Walid and Suleiman. This led to a series of Palace coups which disrupted the leadership in the last years of the dynasty.
- Harshness of the rulers to members of other religions resulted in social unrest and demonstrations for freedom in the empire.
- Natural catastrophe such as prolonged drought, outbreak of epidemic diseases like cholera.
- Misuse of state fund especially by the caliphs who loved pomp and luxury. This led to bankruptcy of the state.
- Conflict arose between the Arab and non Arab army men since the Umayyad caliphs were not giving pension to the non Arab army men.
- Negligence of state duties by some of the caliphs gave the opposition a chance to re-establish and fight the Umayyads.
- Vastness of the empire. The Umayyads had conquered a very large area that was challenging for one caliph to manage. This led to revolts and calls for cessation by some of the states.
- Deviation of some caliphs from the teachings of the Qur'an and Sunnah made the religious leaders to oppose the Dynasty.
- Dishonesty and lack of sincerity from some of the governors who were advancing their own selfish interests. They concentrated on gaining political popularity and wealth at the expense of state responsibilities.
- Union of all opposition to fight the dynasty. The Alids, Shia and Fatimids agreed to work towards the goal of removing the Umayyads from the leadership. This group, led by descendants of the prophet's uncle, Abbas, called for the Abbasids to succeed in overthrowing the Umayyads.
- External attacks from the Byzantines and the Romans weakened the army of the Umayyads thus giving the opposition an upper hand over them. These attacks weakened the defence of the Umayyads.



- The army become idle thus engaging in indiscipline activities and could not defend the state from external attacks.
- Domination of the Arabs over the non Arabs in the running of the affairs of the state brought inequality. This caused tension and social unrest as the non Arab Muslims became rebellious to the ruling class.

Achievements of the Umayyads

We have earlier seen the rule of the Umayyads and how it became unpopular among the people. Regardless of this unpopularity, the Umayyads made several achievements and contribution to Muslim empire. Among these contributions and achievements are:

- i) Wide expansion of the Muslim empire to parts of North Africa, Asia and Europe.
- ii) They consolidated the Muslim empire and maintained peace after a series of social unrest.
- iii) They established a strong, well trained and efficient army to protect the Dynasty.
- iv) The department of registry was introduced to keep records of all people and population census started by Umar bin Abdul aziz.
- v) Muawiyya built the first Muslim navy.
- vi) They constructed a ship building factory at Akka along the Syrian Coast.
- vii) Abdul Malik bin Marwan made Arabic the official language of the state.
- viii) The civil administration was well structured with improved postal services and regularized taxation.
- ix) Social amenities like schools, hospitals, roads, canals, and bridges were constructed to improve infrastructure.
- x) Arabic culture was developed. Architecture and gold decoration taking center stage. The caliphs encouraged poetry, horse racing and hunting.
- xi) Urban centers developed with the formation of new towns and cities e.g. Merv, Sistan.

Selected Umayyad rulers

Muawiyya bin Abi Sufyan (661-680 C.E)

Muawiyya bin Abi Sufyan was the founder of the Umayyad dynasty in 661 C.E. The Umayyad house was one of the major clans of the Quraysh tribe. Muawiya was the son of Abu Sufyan, the leader of the Abd Shams clan. Most of the members of Abd Shams clan had rejected Muhammad's Prophetic mission until the conquest of Makka in 630 C.E. Muawiya and his father were among those enemies who were reconciled to Islam during the conquest of Makkah. Muawiya then served as one of Prophet Muhammad's scribes. At the time of the rightly guided caliphs, Muawwiya served in



various key positions. During the caliphate of Abubakar (RA), he served in the Muslim army sent against the Byzantines in Syria. Caliph Umar appointed him as the governor of Damascus. During the time of Uthman bin Affan, he appointed members of his clan to various positions of leadership. Muawiya bin Abi Sufyan was appointed the governor of Syria and north-western Iraq. Upon the accession of Ali to the Caliphate; he asked all the governors who had been appointed by Uthman to step down. Muawiya refused to pay allegiance to him but rather with the support of the Syrians, announced himself a caliph after the battle of Siffin. In the same year, following the death of Ali, he gained control of Egypt and then formally established himself as caliph. Ali's eldest son, Hassan, who briefly succeeded his father, was persuaded to abdicate his position in favour of Muawwiya. Muawiya consolidated his power over this region by building up a strong army. He effectively launched both land and sea attacks against the Byzantines. With Muawiya's accession, the seat of the caliphate was moved to Damascus. Having secured the loyalty of the Syrian tribes, Muawiya reconciled with the Iraqi tribes by adopting the traditional council of notables where each tribe was represented by its leader. These councils linked to the caliph through his governors, who were from his kinsmen. However, this arrangement was not sufficient in itself to administer a growing empire. To solve this problem, Muawiya made use of Byzantine administrative structures, the key positions of which were held by Christians who in some cases came from families that had served the Byzantine government. Muawiyah also encouraged peaceful coexistence with the Christian communities of Syria granting his reign with "peace and prosperity for Christians and Arabs alike". Muawiyah had a special unit of body guards who moved with him from the palace to the mosque or whenever he had state functions. Before Muawiya's death in 680 C.E, he appointed his son Yazid as his successor; this move established hereditary succession as the norm for the caliphate. Although he secured allegiance to Yazid before his death, resistance to his appointment manifested itself upon Yazid's accession.

Achievements of Muawiyah

- Muawiya is credited with the creation of specialized bureaus, known as diwans, to increase the centralization of the government. They included; Diwan al-Kharaj (the Board of Revenue), Diwan al-Rasa'il (the Board of Correspondence), Diwan al-



Khatam (the Board of Registry), Diwan al-Bard (the Board of Postal services), Diwan al-Qudat (the Board of Justice) and Diwan al-Jund (the Military Board)

- The capital of the Muslim empire was transferred from Makkah and Madina to Damascus.
- He established a highly-trained army of Syrian soldiers which was used to expand Muslim authority east into Khorasan and west into North Africa.
- Muawiya also led expeditions into Anatolia beginning in 672 C.E which resulted in an unsuccessful three-year siege of Constantinople (674-677 C.E).
- He retained the administrative structures left by the Byzantines and Persians but consolidated his authority by appointing kinsmen to key posts.
- He constructed a gigantic palace called the Green Palace of Damascus.

Yazid bin Muawiyya (680-683 C.E)

Muawiyya bin Abu Sufyan was in favour of his son, Yazid to become his immediate successor. He wanted to pass over the caliphate to his immediate descendants and moreover retain the aristocracy of the Banu Umayyad. He started campaigning for his son's succession. He approached his most devoted followers and was able to convince them since they wanted to retain the solidarity of Muslims. Representatives from various provinces such as Damascus and Hijaz soon started pledging allegiance to the succession offer of Yazid. However, Makka and Madina received the Muawiyas request with mixed reactions due to the ancient rivalry between the Banu Hashim and Banu Umayyad. Despite this resistance, Muawiyya decided to use force and material bribes. He finally succeeded in making Yazid his successor. After his accession, Yazid was confronted with several rebellions. The first was that of Husayn, son of Caliph Ali (RA), the grandson of the Prophet (PBUH), which occurred at Karbala in 680 C.E. This encounter had adverse effect to the Muslim ummah. Let us now look at the tragedy of Karbala.

The tragedy of Karbala

After the death of Hassan, the people of Kufa requested Hussein, his brother to take over the caliphate with their support. Hussein then sent his cousin Muslim bin Aqil to verify if their claims of supporting him were true. When the news reached Yazid he sent Ubaidullah bin Ziyad, ruler of Basrah, with the instruction to prevent the people of Kufa from rallying behind Hussein. Ubaidullah bin Ziyad managed to disperse the crowd that had gathered around Muslim bin Aqil and arrested him. When Muslim bin Aqil realized the intention of Yazid was to prevent any support from the Kufans, he requested a message to be sent to Hussein to prevent his immigration to Kufa. The request was denied and Ubaidullah bin Ziyad, under the command of Yazid, killed Muslim bin Aqil. Hussein then decided to travel on to Kufa with his family. There were 200 people in Husayn's caravan, many of whom were women including his sisters, wives and daughters and children. Hussein and his family were intercepted by Yazid's forces led by Amru bin Saad, Shamar bin Thi Al-Joshan, and Hussain bin Tamim who fought Al-Husayn and his male family members until they



were killed. The sole adult male survivor from the caravan was Ali ibn Hussein who was with fever to too ill to fight when the caravan was attacked. The women and children were taken as prisoners of war and led back to Damascus to be presented to Yazid. They remained imprisoned until the public turned against Yazid when they learnt of Husayn's death. They were then granted freedom back to Madina.

Madina had been home to Prophet Muhammad (PBUH) and his family, including Husayn, word of his death and the imprisonment of his family led to a large opposition movement. In 683 C.E, Yazid dispatched an army consisting mainly Christians to subdue the revolt. The army suppressed the opposition from Madinat al-Battle of al-Harrah; the Holy Grand Mosque in Medina was severely damaged. Yazid's army continued on and laid siege to Makkah, where Ibn al-Zubayr had taken refuge. At some point during the siege, the Holy Kaaba was badly damaged in a fire. However, during the siege news arrived that Yazid had died. Doubts about his successor prevented a speedy resolution to the conflict and the Umayyad General suspended the operations. The Umayyad army returned to Damascus, leaving Ibn al-Zubayr in control of Makkah. Although Yazid was a dissolute ruler, he attempted to continue his father's administrative and military policies. He reformed the tax system and improved the irrigation system in the surroundings of Damascus. Yazid's son Muawiyya II initially succeeded him but seems to have never been recognised as caliph outside of Syria.

Achievements of Yazid bin Muawiyya

- i) He reformed the financial system of his government by regulating the collection of *Jizya* (poll tax)
- ii) He improved the Agricultural sector by developing the irrigation system using the Damascus Oasis.
- iii) Infrastructure was greatly improved in the empire.
- iv) He strengthened the military defence of Syria.

Downfall of Yazid bin Muawiyya

Yazid just like his father, started as a vibrant, focused and determined ruler. However, later on he changed his character and indulged in unIslamic practices. He became very unscrupulous and cruel to his enemies. He was neither pious nor just in making rulings. He engaged in luxurious life full of festivities and entertainment. He preferred hunting using dogs, drinking wine, dancing, listening to Music and playing sports rather than performing his state functions.

Abdul-Malik bin Marwan (685-705C.E)

He was born in 26A.H at a time when Uthman bin Affan was the Caliph. He became the Caliph after the death of his father Marwan bin al Hakam in 685 AD. The early reign of Abd al-Malik was marked by the revolt in Kufa led by Al Mukhtar, who had hoped to elevate Muhammad ibn al-Hanafiyyah, another son of Ali, to the caliphate. The troops of al-Mukhtar engaged in battles with



the Umayyads at the river Khazir but were defeated. In 691A.D, Umayyad troops re-conquered Iraq, and in 692 the same army captured Makkah.

Abdul Malik represented a new spirit to the Umayyad dynasty. He had to face many foes and it was through courage, determination and wise policies that he was able to suppress the revolts. He expanded the empire to North Africa through his commander and Governor to Africa, Musa bin Nusayir. He was more pious than any of his predecessors. He treated the religious leaders and scholars with respect. Through his respect to Madinan people, he was able to win their support and they abandoned their earlier opposition to the Umayyads. He supervised state affairs very closely and helped in advancing the religious rites. He died in 705 C.E after 20 years of rule and was succeeded by his son, Al Walid.

Achievements of Abdul Malik bin Marwan

Abdul Malik was one of the most important early caliphs of the Umayyad dynasty. He made a number of significant reforms among them the following:

- It is during his reign that the empire broke from following the ways of its Byzantine and Persian predecessors, and instead developed its own unique character that would define Islamic states from then on.
- Abdul Malik emphasized the importance of Islam to the state, and claimed the role of leader of Muslims, as well as leader of the empire.
- He used state money to build mosques, and also constructed one of the most important buildings in Islam such as the Dome of the Rock.
- He expanded the Islamic empire to North of Africa.
- He increased the number of units of the postal services and made them more efficient.
- Under Abdul Malik, the government of the caliphate abandoned the use of Greek and Persian language among its officials. All records were to be kept in Arabic, which became not only the primary language of religion (since the Qur'an was written in Arabic) but also the primary religion of government.
- He encouraged poetry and rewarded poets with the intention of using them to propagate his rule.
- Abd al-Malik also began minting the first coins with Islamic motifs and inscriptions on them.
- Previously, the caliphate had taken over the Byzantine and Persian mints and produced coins based on their models. Under Abd al-Malik, completely new coins were made, inscribed with text from the Qur'an, emphasizing that the Islamic Empire was not a continuation of Byzantine or Persian rule, but a new state based on Islam.

Umar bin Abdul Aziz (717-720 C.E)

He was the son of Abdul Aziz ibn Marwan and Ummu Asim Layla bint Asim, who was the grand daughter of the second caliph, Umar al-Khattab. He was born in 682 C.E in Halwan, a village of



Egypt. He memorised the Holy Qur'an at a young age then his father sent him to Madina to study Islamic Sciences and Akhlaq. He stayed in Madina until when his father died in 704 C.E. His uncle, Abdul Malik bin Marwan then asked him to come back to Egypt where he took care of him. He married Fatima, who was the daughter of Abdul Malik, Umayyad Caliph and the sister of two successive Umayyad Caliphs, Al-Walid and Sulaiman.

During the caliphate of Al- Walid, Umar bin Abdul Aziz was appointed the Governor of Madina. Unlike other autocratic governors, Umar chose to be consultative. He therefore formed an advisory council immediately on arrival in Madina. It comprised of ten eminent Muslim jurists and notables of the city of Madina. He would always ask for their advice before making any decisions. They also kept a close eye over his subordinates.

During his two years as the Governor of Madina, he repaired and expanded the Mosque of the Prophet (PBUH). He also beautified the Holy cities with public structures and improved the suburban roads leading to Madina. Umar's leadership was beneficial to all classes of people and he was always ready to promote the welfare of the people, whom he governed. Infact, it was during his time as a Governor that a large number of refugees from Iraq who were groaning under the oppression of Hajjaj Bin Yusuf emigrated to Madina for safety.

Caliph Sulaiman Bin Abdul Malik took over the caliphate from his brother Al-Walid. He had great respect for Umar Bin Abdul Aziz's leadership and after consulting his advisor, Rajaa ibn Haytaa, he nominated him as his successor. Upon his death, the mantle of Caliphate fell upon Umar Bin Abdul Aziz who reluctantly accepted it. His first act after assuming office was the restoration of properties confiscated by the Umayyads to their rightful owners. He chose to lead a simple life and distance himself from pride associated with the previous caliphs. He devoted his time to serve his people. Let us look at some of the changes that Umar bin Abdul Aziz brought:

- He asked his family members and relatives to return all the property they had earned unlawfully to the public treasury.
- He gave to the Baitul Maal the wealth he had inherited.
- He sold the the horses of the royal family and deposited the money in the *baitul maal*.
- He asked his wife to give all her jewellery and other valuable presents she had received from her father and brothers to the *baitul maal*, which she did willingly.
- He chose to live in the tents as ordinary people and left the palace for the family of Suleiman.



- He restored the possession of the garden of Fadak which had been appropriated by Marwan during the Caliphate of Uthman, to the descendants of the Prophet (SWT)
- He dismissed all the Governors who had been cruel to their subjects.
- He urged his subject to publicly discuss religious matters without fear.
- He allowed his people to break their oath of allegiance to him, if he wavered from the path of Allah (SWT).

His short rule was noted for great democracy and healthy activities in the Dynasty. In general, he laid great stress on compensating the victims of illegal extortion in any form. The house of Umayyads that had been used to luxuries at the expense of the common man, revolted against this just but revolutionary step. They bitterly protested against the disposal of their age-long properties. His administration of impartial justice went against the interests of the Umayyads who were accustomed to all sorts of licences and could hardly tolerate any check on their unbounded freedom. The Umayyads then plotted against the life of this virtuous member of their clan. A slave of the Caliph was bribed to administer a deadly poison in his food. The Caliph having felt the effect of the poison sent for the slave and asked him why he had poisoned him. The slave replied that he was given one thousand dinars for the purpose. The Caliph deposited the amount in the public Treasury and freeing the slave asked him to leave the place immediately, lest anyone might kill him. He died in 719 C.E. at the age of 36 at the place called Dair Siman near Hams. His martyrdom plunged the Islamic world into gloom. He was buried in Dair Siman on a piece of land he had purchased from a Christian.

The short rule of Umar Bin Abdul Aziz was like an oasis in a vast desert. It was the brightest period in the 91-year Caliphate of the Umayyads. Though short lived, it had transformed the outlook of the State. His reign witnessed several achievements.

Achievements of Umar bin Abdul Aziz

He introduced a number of reforms; administrative, fiscal and educational.

- Under his instructions a population census was taken on the diverse nationalities, races and creeds, inhabiting the state.
- A survey of the entire peninsula including those of her cities, rivers, seas and mountains was made.
- He improved Agriculture by carrying out a survey on the nature of the soil; varieties of products as well as mineral resources available. He asked his Governors to encourage their people to carry out farming and would repossess any land untilled for three years.



- A number of bridges in southern Spain were constructed and repaired.
- All over his vast empire thousands of public wells and inns were constructed.
- Charitable dispensaries were also opened to assist the poor.
- A spacious Friday Mosque was built at Saragossa in northern Spain.
- The Bait-ul-Maal (Public Treasury) was used for the sake of the poor Muslims. He ended the misappropriation that was done by the Umayyads.
- He reformed the taxation and made adequate arrangements for easy realization of taxes. He reduced the taxes for the non Muslims and the Muslims were exempted from paying taxes.
- He paid special attention to the prison reforms and instructed his General of Prisons to make weekly inspection of jails. Every prisoner was given a monthly allowance and proper seasonal clothing. Education of the prisoners led to their reformation.
- Umar Bin Abdul Aziz was very kind and just towards the non-Muslims and he made no distinction between the Arabs and non Arabs.
- He set a code of conduct for the rulers where justice was the measure for good administration. Any ruler who was unjust was dismissed.
- The postal services were made more efficient and accessible for the public.
- He forbade unpaid labour and raised the salaries for the workers as an incentive for hard work.

Answer the following question and activity in your I.R.E revision exercise book.

1. Discuss the factors that led to the decline of Umayyad dynasty.
2. Mention the contributions made by Umar bin AbdulAziz during his time as a caliph.

Activity

In groups, elaborate how the following reasons led to the decline of the Umayyad Dynasty.

1. Vastness of the empire
2. Luxurious lifestyle of some Umayyad Caliphs
3. Internal conflicts

CHAPTER NINE

ISLAM IN EAST AFRICA

Spread of Islam in the interior of Kenya

North Eastern

The Galla and Borana are the main inhabitants of this area. They are Eastern Cushites who originated from Arabia. The conquest of the horn of Africa and parts of East Africa by the army of



Abdul Malik bin Marwan of the Umayyad Dynasty in the 7th century played a key role in the spread of Islam in this region. Inhabitants gradually embraced Islam and by the 8th century, momentum had grown due to strong trade links with the Arabs. During dry seasons, several conflicts arose among the people over pasture. This consequently led to movement from one place to the other in search of water and pasture for their animals. It is from these movements that different people were able to interact with others and taught them about Islam.

In the 8th century, the Somalis were attacked by the Ethiopians and forced to move southwards to East Africa in search of safety. After this movement, most of them settled permanently and helped in the spread of Islam. As they moved south west of the horn of Africa, the Hawiyas came across the Galla and Boranawho had first posed an opposition to the teaching of Islam by the Somalis. They attacked and displaced the weaker Boranas. After some conflict over grazing land, the Gallas accepted Islam. The two tribes of Galla and Hawiyas then inter married and gave birth to clans like Gure, Ajuran, and Rahwein who all practiced Islam. However, not all the Boranas accepted Islam. This is because of the long misunderstanding between them and the Somalis. The Boranas held the view that Islam was for Somalis. Christian Missionaries took advantage of this and converted most of the Boranas to Christianity.

When the Somalis reached river Tana, they met the Orma and inter married giving rise to the Wardi group, who occupied River Tana District.

Spread of Islam became even more effective in the 20th century when mobile sheiks from the coast visited North Eastern. They built Madrassas and a mosque in Wajir, Mandera and Garissa. This played a key role in the spread of Islam.

During the British colonial rule, the Somalis were employed as administrators. Among them included District Commissioner Daudi Dabasso, al Hajj Galma Dido as the Government senior chief and Sayyid Mohammed, an Islamic reformer from British Somali land.

Central Kenya

In the 1920s, the colonial government moved many of the Muslims to vacate the areas they had inhabited in Nairobi to pave way for racial zoning. Most of them moved to Fort Hall (Nyeri and



Murang'a). These were the main centers of Islam in Mt. Kenya region. Two brothers; namely Mohamad Mubarak Domani and Abeid Mubarak Domani from the coast were among the early Muslims in this region. They built a mosque in Murang'a. In 1920, an Islamic foundation was built in Embu under the guidance of Said Mubarak, Said bin Shams, Said bin Sultan, Ahmed Dawood, Salman bin Mughbir and Nondo bin Mughbir. Inter marriage between these pioneers and the locals help spread of Islam. Arab traders travelled extensively around Mt. Kenya and constructed mosques and madrassas.

Ukambani area

This region is in the Eastern part of Kenya bordering the coast of Kenya to the South. Islamic activities in this area were concentrated in Machakos and Kibwezi. Due to its closeness with the coast of Kenya, the spread of Islam in this area took long following the Portugues attacks. However, after the Portuguese were defeated, the Arabs and Swahilis travelled into the interior of Ukambani before the Europeans. By mid 19th century, the relationship between the Akamba and the Arabs had grown stronger and the Akamba guaranteed Muslims security and protection. Trade flourished between the Muslims and the Akambas for long. They traded in beads, copper, cotton in exchange for grains, domestic animals and ivory.

Qur'an teachers like Maalim Tarimi and Said Ahmed Mubarak walked along with the traders, ready to teach those who embraced Islam. Most of the Akambas who interacted with the Arabs embraced Islam. However, the Arabs were not able to penetrate deeper into the interior due to hostile tribes like the Kikuyu, Nandi and Masai.

The situation became better for the Arabs during the construction of the Kisumu- Mombasa railway line. The Asian railway constructors were Muslims and they preached Islam as they did their work.

Nairobi

Muslim missionary work started in the 19th century with Maalim Mtondoo from Tanga who settled in Pumwani. He founded a small mosque here that soon attracted the Akambas and Kikuyus of Nairobi. More other Muslims joined him to continue with the missionary work. These early Muslims



built Islamic villages in Nairobi. These include; Kambi ya Wasomali in Pangani (The current Eastleigh); which had three mosques, Mji wa Mombasa in Ngara region and Mji wa Kabete in Port Smith.

In 1945, Hamisi Ngige, a Kikuyu student of Maalim Mtondoo became a figure to reckon with at Pumwani. Other Sheikhs who were instrumental in the spread of Islam in this region were; Ali Bin Khalid, Muhdhar bin Mohammad and Sheikh Sheikhuna Mohammad.

Nairobi was also inhabited by some Sudanese who settled in Kibera. Most of these Sudanese of Nubian origin were Muslims and therefore formed an Islamic village in Kibera and started preaching Islam.

The British government also played a major role in the spread of Islam in Nairobi and its environments. They employed Muslims from the coast or of Somali origin as soldiers of the KAR (Kings African Rifle), porters or carriers for the military, and the early domestic servants of the British settlers and officials.

In addition to these groups, the Asian Muslims who had been constructing the Kenya Uganda railway decided to remain behind and settled along the Railway line. They built mosques and madrassas and participated in the spread of Islam. Pumwani still remained the center for Islamic activities.

WESTERN KENYA

This part of the country includes both Nyanza and Western Provinces. The Islamic activities were mainly in Mumias District of Kakamega County, Kisumu and Kendubay. Between 1870 and 1885 A.D. the Swahili and Arab caravans started arriving in Mumias. They brought with them merchandise like; cloths, salt, necklaces, utensils in exchange for ivory. The first such group came in search of a route to the famous Baganda Kingdom. The paramount chief of the area, Nabongo Mumia welcomed the caravans and allowed them to settle in the area. The first such caravan was led by Sharif Hassan Abdullahi from Pangani District in Tanganyika. The warm welcome by the chief made the Arab and Swahili traders to form settlements in the area. The Mrima, Bajuni, Barawa and Comoran traders then established themselves and started teaching the natives Qur'an. Nabongo later accepted Islam and became known as Muhammad Nabongo Mumia. He became a key in the spread



of Islam. His subjects including his three brothers, Murunga, Mulama and Kadima and chiefs also accepted Islam and soon the local inhabitants of Wanga clan started embracing Islam. The Swahili traders now established a good relationship with the Wanga people through their Paramount Chief. They vowed to defend the Wangas and Bagandas from the frequent attacks of the Luos, Masais and Bukusus. The Arabs and Swahili used guns to fight and protect the local community. This in turn made the Paramount Chief to accept them as part of the community and they formed a village called Mjini. Meanwhile, Sharraf Hassan sent more Muslim missionaries to this area. Among them is Maalim Hamisi who went to teach in a town called Kwahalisi while Maalim Gazeti was sent to Sieywe (Kakamega), Maalim Masangeni went to Kisii while Sharraf Abubakar was sent to Bungoma.

During the construction of the Kenya-Uganda railway line, the Asian Muslims reached Kisumu and formed Islamic families' settling along the railway lines. Villages like Manyatta were started by these Muslim settlers. They acted as a stimulus in the Islamic activities in the area and in 1901, they constructed the Railway Mosque. The Jamia Mosque and Madrassa in Kisumu were constructed in 1924. The presence of Maalim Mwinyi Aqida Jeshi was also instrumental in the spread of Islam in the area.

In 1909, Nasir bin Ali with the help of other Arabs, laid a strong foundation of Islam at Kendubay. The natives inter married with the Arabs, Asians and Swahili traders to increase the number of Muslims in the area.

The role of Nabongo Mumia in the spread of Islam in Mumias

- He welcomed the Arab and Swahili traders in his territory and extended to them African hospitality.
- He converted to Islam and was referred to by a Muslim name Muhammad.
- He asked his chiefs and subjects to embrace Islam.
- He used to practice Islamic rituals like Swalat, Saum and often used the Islamic greetings.
- He allowed the Swahili traders to settle in Mumias and interact with the natives.
- He organized missionary activities through his chiefs.
- During his leadership, Muslim missionaries from Tanganyika were invited in order to preach Islam and settle disputes according to the Sharia.

Islam in Uganda

Colonization



Uganda was ruled by Kings who hailed from various Kingdoms. They include the Baganda (which was the most powerful), Bunyoro, Lango, Acholi and Toro kingdoms. Muslim traders from the coast first arrived in Uganda in 1844. The leader of this troupe was Sheikh Ahmad bin Ibrahim from Tanganyika, who visited the courts of Kabaka Suna of the Buganda kingdom. This kingdom used to call their kings by the title 'Kabaka'. During this visit, they found out that the king used to order for the execution of people for the sacrifice of their pagan gods. Sheikh Ahmad questioned this traditions and Kabaka Suna became interested in his beliefs. Sheikh Ahmad then assigned Muley bin Salim to teach the Kabaka about Islamic beliefs. However, Kabaka Suna died before embracing Islam and was succeeded by Kabaka Mutesa 1.

The role of Kabaka Mutesa 1 in the spread of Islam in Uganda

Kabaka Mutesa 1 succeeded Kabaka Suna in 1860 A.D. This was a time when many Arab traders were visiting Uganda in search of ivory. Barter trade existed between the Baganda and the Muslims with the exchange of ivory for goods like cloths, utensils, cotton, fire arms among others. However, the most important tool for trade among the Baganda, were the fire arms. They needed to use the superior weapons like guns to fight their enemies like the Bunyore Kingdom. The good relationship between the Muslim traders and the Buganda Kingdom made the later to be interested in Islamic teachings. In 1865 A.D, Kabaka requested the Muslim traders to start teaching Islam to the natives. Mutesa declared himself a Muslim in the same year and ordered his chiefs and the rest of the Kingdom to embrace Islam. Kabaka had his tutor, Ali, who taught him some Arabic and how to recite the Qur'an. The Baganda kingdom enjoyed Islamic rites for a long period of time with Kabaka himself declaring Islam as the state religion. He made considerable efforts to strengthen Islamic teachings in his empire. Among them include:

- He ordered all his chiefs and subjects to embrace Islam and send messages with gift to the neighbouring kingdoms asking them to join Islam.
- He declared Islam as the state religion.
- He held Qur'an recitation forums at his palace.
- He offered employment to many Muslims as clerks and secretaries.
- A central mosque was constructed in his palace and ordered all his chiefs to construct mosques in their regions.
- He also encouraged family mosques to be constructed.
- He stopped the Baganda tradition of killing people after the death of the King.
- He approved the use of the Islamic calendar in his kingdom.



- Islamic rituals like prayers, fasting were observed freely.
- He strictly observed the daily and Jumua prayers.
- The Arabic greeting was made the greeting of the state.
- He ordered animals to be slaughtered according to the Islamic law.

Even though the Kabaka professed Islam, he refused to accept the Islamic circumcision rites because a Baganda king was forbidden from shedding blood. This made some devoted Muslims to refuse to pray behind him. They even refused to eat meat slaughtered by his butchers. Kabaka was angered by this and he ordered for the execution of more than seventy Muslims as others ran to Zanzibar to seek refuge.

This incident was followed by the arrival of Christian missionaries led by H.N Stanely. They visited the court of the Kabaka and convinced him to join Christianity. In 1870, Mutesa converted to Christianity. This conversion was a boost to the Christian mission and the leader of the Mission asked for more missionaries to be sent from Europe. The Kabaka however reverted back to Islam in 1881 and went further to declare Islam the state religion. He died in 1884 professing Islam and was succeeded by his son, Kabaka Mwanga.

Kabaka Mwanga continued to enjoy the service of the Muslims which made him gain considerable influence. He however did not convert to Islam or Christianity but chose to remain a traditionalist. Mwanga then declared a war on the Christians by first plotting for the murder of Bishop Hannington then ordering for the execution of twenty two Catholics and some Protestants. This angered both the Muslims and Christians who united to overthrow him. He sensed a strong opposition and felt he would be defeated. He then fled across Lake Tanganyika.

Influence of Christianity in Uganda

We have earlier seen in this chapter that the coming of the Christian missionaries in Uganda saw the conversion of Kabaka Mutesa 1 to Christianity. This was the beginning of the spread of Christianity in a state that had seen Islam flourish. By 1877 A.D. more Christian missionaries had arrived in Uganda. Missionary activities aimed at wiping out Islam were organized and many Muslims converted to Christianity. In 1890, the Muslims by the help of Lugard, an agent of Imperial British East Africa (IBEA) were removed from Bunyoro. The colonial government had now taken control of Uganda, both economically and politically. The government supported Christian missions while



blocking any attempts of the Muslims to liberate themselves. In 1833, Captain Mac Donald spearheaded the removal of Muslims from top administrative positions. The government offered gifts to the chiefs and the royal Kabaka family annually for supporting them. The Christian missionaries established their mission schools with the aim of facilitating Bible teachings and spreading Christianity. Muslims were denied access to formal education offered by the mission schools who were opposing the establishment of government schools.

Islam in Tanzania

The trade caravans from Arabia started arriving at the shores of Tanzania as early as 8th century. These traders established themselves mostly at the coastal strip towns of Pangani, Tanga, Kilwa and Pemba. It was not until 1830 A.D that they were able to access the interior of Tanzania. Sayyid Said was by then the Sultan of Zanzibar and had a strong influence both politically and religiously. Great expansion of Islam in the interior of Tanganyika began during the German colonial period. The Swahili were employed by the colonial government as messengers, guides, Tabora and Ujiji were the two major areas where the Muslim traders arrived first. We shall therefore look at the spread of Islam in these two areas:

Tabora

Tabora is in central Tanzania and is inhabited by the Wanyamwezi. This area was ruled by Chief Mirambo. Through the Arab traders, Sayyid Said established good relationship with chief Mirambo. The Arabs kept visiting Tabora to get important trade goods like ivory, slaves and precious stones. The trade activities between the Arabs and the inhabitants of Tabora resulted in the Arabs building a small Swahili town near Tabora. This town acted as an important depot for trade goods and a resting place for the caravans arriving from the coastal towns or Arabia. Chief Mirambo used the Arab traders to strengthen his rule. This made the Arabs to easily interact with the natives and teach them Islam. Most of his chiefs accepted Islam and spread it further to the southern shores of Lake Victoria and the Southern strip of Lake Tanganyika. The Arab and Swahili traders employed the Wanyamwezi converts as potters, messengers, soldiers and traders. As they moved further into the interior, they were able to convince many others to embrace Islam.

Ujiji



This was a town close to Tabora and a trading and resting centre for the Swahili traders moving across to Congo. Ujiji had important trade items like bananas and ivory which encouraged the Arabs to keep visiting the area. The Muslims established a good relationship with the inhabitants of Ujiji thus influencing their culture and religion. This area was close to the sea which gave the Arabs easy access. It also had a good flourishing port that was used to receive and transport goods by the traders. Muslim teachers arrived from Ujiji and helped in the spread of Islam in the area. Ujiji had more than fifty flat roofed Arabic houses that hosted the Swahili and Arab traders. Increase in the number of converts saw the construction of mosques and madrassas to facilitate teaching of Islam. Mohammad bin Hamid, commonly known as Tipu Tipu was a renowned trader who lived in this area and helped to protect the Arab traders.

The Roles of Jumbes and Akidas in the Spread of Islam in Tanzania

The Jumbes and Akidas were appointed as administrators in their communities, hence played a very influential role to their subjects in the spread of Islam.

- i) They embraced Islam and this influenced their subjects to convert to Islam.
- ii) They adopted the Islamic culture and traditions i.e. mode of dressing, housing and greetings that were influenced by the Arabs.
- iii) They practiced polygamy thus increasing the Muslim population.
- iv) They accepted the establishment of *mosques* and *madrassas* as symbols of Islamic identity.
- v) Some leaders preached Islam to their subjects. Most of them converted to Islam.
- vi) Their political and economical position in the society made them have wider social interaction with their subjects and this made them to be gradually attracted to Islam.

Contributions of Muslims in East Africa

- a) Political
 - i) They contribute to the formation of constitutions for their countries.
 - ii) Muslim's serve as representatives in the houses of parliament and the senates for their respective countries.
 - iii) Muslims contribute ideas in the running of the government.
 - iv) Help in peace keeping through sermons in the mosques.
 - v) Muslims have been included in different parliamentary committees to spearhead reforms in their countries.



- vi) Muslims have been included in different Parliamentary Committees to spearhead reforms in their respective countries.
- vii) They are ambassadors who represent their countries in other nations.
- viii) The Kadhi's office in the judiciary plays an intermediary role between the Muslim and the governments.
- ix) Participate in civic education forums.
- x) Serve in the defence forces in different categories.

b) Social

- i) Participate in the education sector as educationists, administrators, Curriculum developers, head teachers, tutors, writers, examiners, policy makers, and school managers.
- ii) They establish homes and orphanages for the destitute members in the society.
- iii) Establish relief organizations like WAMY, MUSLIM AID to assist in disaster management e.g. food relief programs.
- iv) Provide water and sanitation services by establishing water projects such as wells to reduce water shortages to the members of the society.
- v) They initiate welfare programs such as monthly ration supply, monthly financial services to the widows, burial services and other welfare services.
- vi) They set up association to promote Medicare services which train doctors, nurses and also facilitates research on health matters.
- vii) Participate in the environmental conservation programmes such as African Muslim Environmental Network in executing their action plans to promote environmental sustainability.
- viii) Participate in sports and games both at local and international levels.

c) Economic development

- i) Muslim traders and business men are engaged in the wholesale and retail business.
- ii) Have made contributions in the transport and communication sector as managers, workers, transporters and clearing and forwarding services.
- iii) Have also engaged in commerce and industry either as a worker or employers.
- iv) They are also working in Agriculture and animal husbandry.
- v) Working in fisheries involved in commercial fishing.
- vi) The newly introduced Islamic banks provide employment and promote banking industry.
- vii) They participate in the printing and publishing industry as Publishing managers, authors, writers, book reviewers, editors and employees.
- viii) They are also in Hotel business and also work and run the tourism industry.
- ix) Participate in the international business.
- x) They run or sponsors institutions which offer skills necessary for employment or self-employment.



Challenges faced by Muslims in East Africa

Even though Islam spread in most parts of East Africa, and has been embraced by most ethnic groups as a universal religion of truth, there were challenges that continually faced the Muslims in this region. Among these challenges were:

- i) Arab traders were associated with slave trade which negatively impacted on the spread of Islam.
- ii) The East African Coast had unfavourable weather conditions. i.e. The weather was either too hot or too cold.
- iii) The Arabs suffered from tropical diseases.
- iv) The arrival of Christian Missionaries and spread of Christianity slowed down the Islamic activities in East Africa.
- v) Some of the communities were too harsh and hostile on foreigners and would attack their troupes.
- vi) The colonial government supported the Christian Missionaries while sidelining any attempts to spread Islam or Muslim activities.
- vii) The Muslims lacked organized missionary activities to advance the spread of Islam.
- viii) The Arabs had very little knowledge of the interior and had a difficulty in moving around the interior due to thick forests, hills and mountains that were impassable.
- ix) Muslims in East Africa lacked unity which made it difficult to co-ordinate the spread of Islam.
- x) The Muslims lacked Islamic books (like Qur'an or Hadith) and other materials that would guide the converts in understanding Islam better.
- xi) Portuguese conquest of the East African Coast led to constant attacks to the Arab traders.

Answer the following question and activity in your I.R.E revision exercise book.

1. Outline the factors that helped in the spread of Islam in the interior of East Africa.
2. Explain the roles of the Jumbes and Aqidas in the spread of Islam.

Activity

Compare the role played by Nabongo Mumia of Mumias and Kabaka Mutesa I of Baganda Kingdom in the spread of Islam.



CHAPTER EIGHT

MUSLIM SCHOLARS

UTHMAN DAN FODIO

Birth and early life

Shehu Uthman Dan Fodio was born on 29th Safar 1168 A.H or 15 December 1754 C.E at Marata, a town in the Hausa state of Gobir. His full name is Uthman bin Muhammad bin Uthman bin Salih. Shehu Uthman was from the Fulani ethnic community of West Africa. He belonged to a family that had strong Islamic foundation which prompted him to learn the Holy Qur'an at an early age. He also studied *Fiqh* (Islamic Law) and mastered the Arabic language.

Educational Background

Uthman Dan Fodio began his early education from his father who was a scholar in Gobir. Since he came from a family with a strong Islamic background, he went through the traditional Muslim system of education. He learnt from different teachers including his uncle Uthman Binduri, also known as Biddrui, who taught him *Al Mukhtasar* of Imam Malik. He also learnt Theology from his maternal Uncle, Jibril bin Umar.

He then undertook advanced studies in Fiqh, Hadith, Tafseer, Mathematics, Astronomy and Arabic language from when known scholars. He was a simple man, pious and intelligent. This earned him a lot of respect from his people and attracted many followers.

Works and contributions

Dan Fodio lived a life that can be described as of two parts. The first part which falls in the 18th century was a period where he concentrated on writing, teaching, preaching and reforming. He was disturbed by the social problems affecting his society. These social problems included the following;

- High level of ignorance especially among the Muslim Women. The social system was terrible in that women were oppressed, neglected and mistreated. Women were locked into their houses against their will. The mode of dressing was that of women walking around in nothing but waist-cloth while exposing their upper part of the body. The society also practiced female circumcision.



- The increasing rate of *bid'aa* (innovation) in Islam. Shehu was strongly opposed to any innovation that disagreed with the Holy Qur'an or the Sunnah.
- The wide spread unislamic practices. The society used to engage in practices that did not have its roots or origin from the Qur'an and the prophet's traditions such as *shirk*. There was a class of sheikhs who posed as spiritual leaders and earned their living through false prophecy and fortune telling. They swindled their followers by pretending to have supernatural powers. Most people also engaged in haram businesses while others practiced *kufr* (things that are unacceptable and offensive to Allah).
- The violation of the *Sharia* and neglect of the *Sunnah*. Most teachers were hypocrites. They took advantage of the people's ignorance and collected their wealth and property under several pretexts. They misguided the rulers in several matters and made them perpetuate all manners that defied the Islamic religious law. The results of this was a decay in the society's social and moral life.

Due to these challenges, he decided to devote his whole life in educating the public on the fundamentals of the Islamic religion. In order to achieve this; he wrote books in Arabic and a poem praising the Prophet (PBUH). He also gave lectures during Friday prayers and public seminars. His teachings were focused on Fiqh, Tawheed and basic Islamic teachings on acts of Ibada. Since he was well versed in classical Arabic, Hausa, Fulani and Tawadil language he attracted masses of people during his da'wa activities. He was involved in daawa for 30 years in different areas in Hausa land. He would pay special attention to the spiritual development of his students through *tasawwuf*.

He criticized the Ulama who supported the authorities to protect their vested interests and those who performed all kinds of corruption. One of his biggest tasks was to create high standard of morality within the society. Once the sultan of Gobir invited all ulama including Uthman to his palace and presented gifts to them. The Ulama made their requests to the Sultan. Uthman requested for some major changes in the administration. These included; freedom of participation in daw'a activities, removal of restrictions in practicing the religion, respect to religious people and reduction of the taxes. The Sultan conceded to his request. This encouraged Uthman to keep up with the spirit of re-establishing the Islamic teachings within the society.

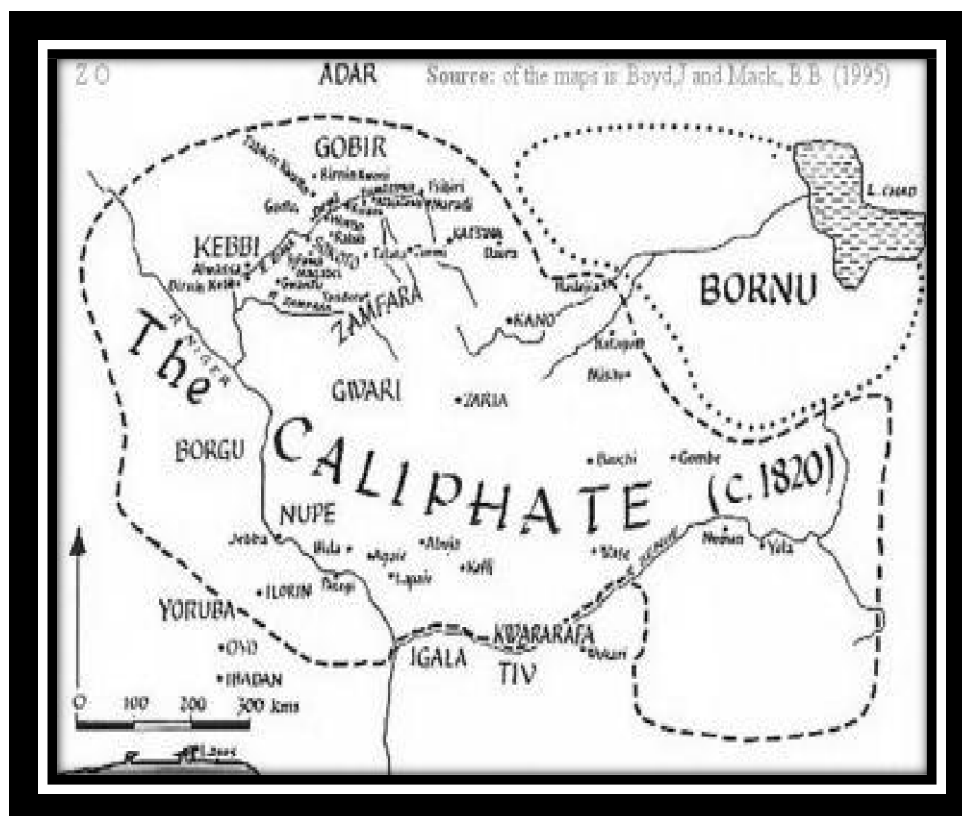
The second part of his life which began in 1802 witnessed his migration and struggle against the unjust and tyrant regimes of North Africa. Hausa land was at a critical stage in its history characterized by unbelief, inequity and open defiance to the laws of Allah (SWT). The social system was immoral and oppression was the order of the day. This prompted Uthman to raise



against the Hausa rulers and establish his own caliphate which he called ‘the Sokoto Caliphate.’

He strongly criticized the Hausa ruling class for the following:

- Their heavy taxation and violation of the Muslim Law.
- Their oppression and unfairness.
- The giving and acceptance of bribes.
- The imposition of unfair taxes to their subjects.
- Forceful seizing of land from its owners.
- Unauthorized grazing of animals on other people’s crops.
- Extorting money from the poor.
- Imprisonment of his subjects on false charges.



Map showing the Sokoto Caliphate

Establishment of the Sokoto caliphate

We have earlier learnt that Shehu Uthman had gained great popularity among his people due to his general concern for the interest of the people. His reformist process inspired many people including the rulers of Sarakuwa. The people then started opposing and revolting against their rulers. Due to his popularity among the people, the Hausa rulers became afraid of him and thus began harassing



him. They even attempted to assassinate him but he escaped. This forced him to organize an army that would defend him against his enemies. In 1812 r.E Uthman's army emerged victorious over the Hausa States. He thus established his empire based on the Islamic Sharia. The caliphate had its capital in Sokoto which is today's Northern Nigeria and the surrounding areas. Uthman died in 1817 C.E and was succeeded by his son Muhammad Bello.

Reforms brought by the Sokoto Caliphate under Uthman

- He challenged the scholars of the time over extremism by writing a book showing that extremism was a wrong concept.
- He taught that all Madhabs are correct and should be respected.
- He reconciled Islamic scholarship with Sufism and emphasized that *Tassawuf* should be for the knowledge of the heart.
- He declared custom duties as a source of public revenue.
- He forbade revenue officers from accepting gifts from their subjects.
- He fought against the cultures that were undermining the rights of women e.g. denial of education, restriction from movement, female circumcision, among others.
- He warned the society against Bid'aa (inventing things which are contrary to Islamic belief).
- The government should establish roads, bridges, mosques, city walls to ensure comfort for the citizens.
- He emphasized revival of the *Hisbah* institutions whose functions included checking the prices, quality of goods, correct weights and measures, prevention of fraud and earning interest.
- Zakat should be administered according to the Sharia and be spent in the same region from where it is collected.
- He fought against the corrupt Hausa kings and advocated for the removal of oppressive rules on the defeated lot and the powerless people.
- He wrote a book called (Nurul Al Baab) 'The light of men of understanding.'
- He was the founder of the Sokoto Caliphate which secured firm roots for the spread of Islam in Hausa Land.

Literary works

- i) Nurul Al Baab (the light for men of understanding)
- ii) *Tanbih al-Ikhwan 'ala ahwa al Sudan* (concerning the government of our country and the neighbouring country of Sudan.)
- iii) *Wathiqa al Ikhwan*
- iv) *Kitab al Farq* (Book of differences)



- v) *Najma al Ikhwan* (star of the brothers)
- vi) *Siraj al Ikhwan* (lamp of brothers)
- vii) *Bayan Wajib al Hijra* (description of the obligation of migration)

IMAM GHAZALI

His early life

Al-Ghazali is one of the greatest Islamic Jurists, theologians and mystical thinkers from Persia. His full name is Abu Hamid Muhammad Al Ghazali al-Tusi. He was born in 450 AH (1058 C.E) in a town called Tus, in North Eastern Persia. His father was a craftsman who used to make clothes from sheep skin. His father often used to sit in the company of learned theologians and would pray for a son who would be a Faqih (Muslim Jurist) and whose sermons would be listened to by many. His father died when he was still young. Al Ghazali was then entrusted under the care of his father's friend who became his first teacher. Later, in the year 1070 C.E, Al- Ghazali and his brother enrolled in a Madrassa in Gurgan town. There, he studied fiqh (Islamic jurisprudence) from Abu'l Qasim Jurjani and Ahmad ibn Muhammad Razkhani for a period of seven years. He attended the village madrassa and then joined Nizamia Madrassa, which was a very famous educational institution in Nishapur. He was an intelligent and keen student who took interest in all subjects. After the death of his teachers, he travelled to Baghdad where he learnt Sahih Bukhari from Abu Sahal bin Mohammad ibn Ahmed al Hafsi.

Educational background

We have earlier seen that Imam al-Ghazali started his basic education at a tender age. He started schooling at his own town and mastered the shafii system of teaching from Sheikh Ahmad Al Razkhani. He first took interest in understanding Fiqh (the Islamic law). He then went to Jurjan to learn science from Imam Abu Nasr al Isma'ili. Thereafter he went to Nishapur where he joined Nizamiya Academy and became a student of Abu'l Ma'ali Juwayni also known as Imam Haramain for eight years. He earned the title 'ocean of knowledge' from Imam Haramayn because of his excellent academic performance in a variety of fields like Fiqh, Theology, Natural Science, Logic and Philosophy. He undertook his studies with seriousness and graduated with a distinction as a teacher. He frequently criticized the works of the Greek Philosophers like the concept of Meta Physics in the study of Theology. He also further criticized the works of other Muslim philosophers



like Ibn Sina and Al Farabi. He then began his career of teaching, giving fatwa, and authoring books in nearly all the Islamic Sciences.

After the death of Imam Haramayn in 1085 C.E, Al-Ghazali was invited together with other scholars to go to the court of Nizamul Mulk Tusi, the powerful Minister of the Seljuq Sultans. The Minister was so impressed by Al-Ghazali's scholarship and participation and in 1091 C.E, he appointed him as the chief professor in the Nizamiyya Academy. He became a great advisor in religious and political matters to several ministers of the state. He would participate in Islamic debates and discussions and give lecture to more than 300 students. This made him earn popularity all over the Muslim world. By 1095 C.E, Imam al Ghazali had made great advance in his career. He then had an internal call and felt that he had neglected the Creator and his whole life was attached to the world. He passed through a spiritual crisis and abandoned his teaching career. He disposed off his wealth and adopted the life of Sufism. He spent some time in Damascus and Jerusalem then visited Madina and Makkah in 1096 C.E. Finally he settled in a village called Tus where he spent the next several years in seclusion until his death in December, 1111 C.E.

Imam al Ghazali Lived in Seclusion

We earlier learnt that the second period of al-Ghazali's life was characterized by his brilliant career. During this time was not only lecturing on Islamic Fiqh, but was also refuting heresies and responding to questions from all segments of the community. There was too much political tension resulting in the assassination of Nizam al-Mulk and Sultan Malik Shah. Due to this, Al-Ghazali himself fell into a serious spiritual crisis. He found it is necessary to renounce the world and to devote oneself to mystical practice. He finally left Baghdad, renouncing his career and the world. The following are some of the reasons that made Imam Al Ghazali renounce the world and live in seclusion:

- i) He was not satisfied with the success of the world i.e. his high position as a Professor and the brilliant teaching career.
- ii) He wanted to concentrate on studying the doctrines that were against the Islam and try to find solutions.
- iii) He realized that Science and Philosophy will be of no help to him in the hereafter.
- iv) He wanted to strengthen the societal laws by removing the social vices like corruption and injustice.
- v) He wanted to meditate in order to give up all temptations in the world.
- vi) He wanted to understand philosophy and then criticized it in order to give it an Islamic perspective.



Ten rules of conduct by Imam Ghazali

Imam Ghazali gave us the following rules of conduct which sum up the Muslim ethical system.

- i) Good intention is most essential in Muslim deeds and action. It should remain unchanged under all circumstances.
- ii) Muslims should have a unity of purpose in the service of Allah (SWT), the Creator of this universe.
- iii) Muslims should conform to truth and have the courage to fight against their own inclination by forsaking pleasure and enduring pain by exercising self discipline.
- iv) Muslims should avoid bid'a (all innovations in matters of religion) and conform to life established practice, for authority is always better than anarchy.
- v) They should be alive to the evils of procrastination and show steadfast zeal and determination in their work.
- vi) As human beings, we should acknowledge our inability to accomplish anything without the help of Allah, but we should not use it as a pretext to laziness.
- vii) The doctrine for salvation by faith with 'Al ahazali' for the 'fear and hope' (Khawf wa Raj'a) means that muslims should not feel secure (with Allah's punishment) and satisfied merely with their good conduct in life, but should also place their hope (Raja) in Allah who is all Merciful.
- viii) Muslims should lead a life of devotion and prayers.
- ix) Muslims should continuously observe and watch over their hearts (Muraqabah). He who persists in watching and observing his own heart and banishes there from everything will find Allah and His grace.
- x) A consecration to the knowledge of Allah brings us closer to Him.

Contributions of Imam Ghazali

Imam al Ghazali made several contributions to the growth of Islam, philosophy, education and theology.

Contributions on Theology

- i) He was a professor of Islamic theology in Nishapur, Nizamia Academy.
- ii) People came to him to for advice on Islamic theology.
- iii) He discussed and held debates on various issues related to Islam Theology.
- iv) He travelled widely in the Middle East in order to teach theology and rid the society from evils.
- v) He established a madrassa in his home town and taught Fiqh, Qur'an, Hadith and Sufism.



- vi) He authored several books on theology. For example, al Munqidh Minal Dhalal (deliverance from error)
- vii) He became a Sufi and contributed to Sufism by establishing a ministry of Sufism. Thus he contributed to the monastic life in Islam.

Contributions to children's education

- i) Children should be given knowledge in order to actualize their potential.
- ii) Children should be taught Qur'an and Hadith at the elementary stage of education.
- iii) Parents and teachers should give their children a good impression and be role models to their children, since they are a trust from Allah (SWT).
- iv) Children should be taught not to love money.
- v) Education for the boys should start early enough because boys mature earlier than girls.
- vi) Education should be aware of the changing interest caused by growth and development.
- vii) A child must observe cleanliness, fast for a few days and avoid wearing silk, gold and silver.
- viii) Children must learn to respect and obey the parents, teachers and elders and behave well towards other students.

Contributions to teacher's education

- i) He stated that teaching is a great responsibility and he who undertakes it performs a noble task which is rewarded by Allah (SWT).
- ii) The teacher should not overburden the child but perform his duties as required by his profession.
- iii) The teacher should not criticize the subjects taught by other teachers but should teach the learners the inter relationship between the subjects.
- iv) Teaching should be linked to concrete situations to facilitate easy understanding.
- v) After the lesson, the teachers should allow the learners to have reactions to the lesson by asking questions.
- vi) Students should be taught various skills in order to be functional in the day to day life.
- vii) He explained that education should cultivate in man obedience to the teachings of religion in order to attain salvation in the hereafter.
- viii) The teacher should not criticize the less gifted children but should respect and help.
- ix) The teacher must be very tender to his pupils and treat them like his own children.
- x) Teachers should introduce concepts in bits and ensure the students have mastered the previously taught concepts.



- xi) Memorization, repetition and inculcation should be at an early stage but incorporated with understanding.

Contributions to the development of Islam

- i) He advocated for the removal of all unislamic practices and customs in the society.
- ii) He carved out a detailed analysis of moral and spiritual growth, that is, the fulfilment of a Muslim.
- iii) He wrote his famous book, 'The Revival of Religious Sciences.'
- iv) He suggested for reformation of the society from its deep malice, he criticized the *Ulama* (scholars) for debating on insignificant issues and called them to devote their energy to duties.
- v) He stressed on the study of Sunnah of the Prophet and modelling the Muslims according to his life.
- vi) He led the foundation of scientific and scholastic systems which is emulated in the Muslim world today.
- vii) He taught that a believer must be free minded and avoid imitations but have a sincere belief in Allah (SWT).
- viii) He came up with moral conduct that could guide Muslims to be good believers. He taught that moral teaching helps in curbing evils, just like medicine helps in controlling and curing diseases.

Al Ghazali's economic contributions

- i) He emphasized that subsistence living is adequate but warned against its dangers.
- ii) He condemned hoarding, *riba* and other malpractices in trade.
- iii) Ethical behaviour should be upheld in market places.
- iv) He advised Muslims to avoid extravagance and miserliness.
- v) He declared production and supply of necessities to be an obligatory duty.
- vi) He taught that any economic system of a government should consider: individual and social life, religion, family life property and intellect.
- vii) He cited the differences between necessities, comfort and luxury.
- viii) He identified justice, peace and stability as pre conditions of any economic progress.

Books of Imam al Ghazali

	Books on Philosophy	Books on Theology	Books on Sufism	Books on Fiqh
1	Maqasid al falasifa (Aims of Philosophers)	al-Munqidh min al-dalal (Rescuer from Error)	Mizan al-'amal (Criterion of Action)	Fatawy al-Ghazali (Verdicts of al-Ghazali)
2	Tahafut al-Falasifa (The	Hujjat al-Haq (Proof of the	lhya'ul ulum al-din,	Al-wasit fi al-mathab (The



	Incoherence of the Philosophers)	Truth)	"Revival of Religious Sciences",	medium [digest] in the Jurisprudential school)
3	Miyar al-Ilm fi fan al-Mantiq (Criterion of Knowledge in the Art of Logic)	al-Iqtisad fil-i`tiqad (Median in Belief)	Bidayat al-hidayah (Beginning of Guidance)	Kitab tahzib al-Isul (Pruning on Legal Theory)
4	Mihak al-Nazar fi al-mantiq (Touchstone of Reasoning in Logic)	al-maqsad al-asna fi sharah asma' Allahu al-husna (The best means in explaining Allah's Beautiful Names)	Kimiya-yi sa'adat (The Alchemy of Happiness)	al-Mustasfa fi 'ilm al-isul (The Clarified in Legal Theory)
5	al-Qistas al-mustaqim (The Correct Balance)	Jawahir al-Qur'an wa duraruh (Jewels of the Qur'an and its Pearls)	Nasihah al-muluk (Counseling Kings)	Asas al-Qiyas (Foundation of Analogical reasoning)
6		Fayasl al-tafriqa bayn al-Islam wa-l-zandaqa (The Criterion of Distinction between Islam and Clandestine Unbelief)	al-Munqidh min al-dalal (Rescuer from Error)	
7		Mishkat al-Anwar (The Niche of Lights)	Minhaj al-'Abidin (Methodology for the Worshipers)	

Death of Imam al Ghazali

Imam al ahazali spent his last days in devotion, Qur'an recitations, prayer and fasting, and the company of Sufis. He died at Tabran in 1111C.E at the age of 55 years. Ibn al Jawzee narrated in his book, *Al-Thabat 'Inda al-Mamat* (Firmness at the Time of Death) from al-ahazali's brother Ahmad: "On Monday [11th Jumadul-Akhira] at the time of the dawn prayer my brother Abu Hamid made his ablution, prayed, then said: 'Bring me my shroud.' He took it, kissed it and put it on his eyes, saying: 'We hear and obey in readiness to enter the King's presence.' Then he stretched his legs, facing the Qibla, and died before sunrise." – may Allah sanctify his soul! Imam al-Ghazzali's life was spent in self-sacrificing service to Allah (SWT) and humankind. He left behind him a fine example for all Muslims to follow.



Answer the following questions and activity in your I.R.E revision exercise books.

1. a) Outline the early life of Imam Ghazal
b) State Imam Ghazal contribution to education
2. Identify the Ten rules of conduct by Imam Ghazal
3. Outline the contributions of Shehu Uthman Dan Fodio to the development of Islam

Activity

Using a table summarize the literary works of Imam al Ghazali and Uthman Dan Fodio.

FORM FOUR

CHAPTER ONE: QUR'AN

Distinctive Features of the Qur'an

In form two, we learnt that Allah (SWT) revealed various scriptures to different generations. Can you identify some of these scriptures? We also learnt the reasons why humankind needed divine guidance. Can we remind ourselves some of these reasons? You will realise that the main purpose of all the revealed scriptures was to guide humankind to the path of Allah (SWT).

It is important to note that all the revealed scriptures have certain similar characteristics. Can you mention some of these characteristics? The characteristics you have mentioned differentiate the revealed scriptures of Allah (SWT's) from all other books written by human beings. Among the characteristics of revealed scriptures such as *Taurat*, *Zabur*, *suhuf*, *Injil* and *Qur'an* are as follows:

- They were revealed by Allah (SWT).
- They teach Tawheed (Monotheism).
- They were sent to specific *umma* (nations) apart from the Qur'an which was sent to the entire humankind.